

PUBLIC INTERNATIONAL LAW

UNIT I — Foundations of International Law

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions	—	—
PART A — Q1	Definition, Nature & Scope of Int'l Law	6	★★★★★★
PART A — Q2	Importance of International Law	6	★★★★★☆
PART A — Q3	Sources of International Law	6	★★★★★★
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PART B — Q11	Sources of International Law (Essay)	15	★★★★★★
PART C	Problem Questions (IRAC)	10	★★★★★☆
QUICK REVISION	Key Numbers, Cases, Mnemonics, Traps	—	—



UNIT I — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Definition, Nature, Scope and Importance of International Law
- Relation of International Law to Municipal (Domestic) Law
- Sources of International Law
- Codification of International Law

✗ TOPICS NOT IN THIS UNIT (Do NOT mix)

- State Recognition, State Succession, State Territory → Unit II
- Extradition, Asylum, Diplomatic Immunities, Treaties → Unit III
- Law of the Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- 🟡 MOST LIKELY Part B: Relationship between Int'l Law and Municipal Law — has appeared in 2024 paper (Q9)
- 🟡 VERY LIKELY Part B: Sources of International Law — Article 38 ICJ Statute
- 🟡 LIKELY Part A: Definition, Nature & Scope; Codification; Importance

1 2 3 4 CRITICAL NUMBERS TO MEMORIZE

- Article 38 of ICJ Statute → The ONLY authoritative list of Sources of Int'l Law
- 1815 → Congress of Vienna — first major codification effort
- 1947 → UN International Law Commission (ILC) established for codification
- 1969 → Vienna Convention on the Law of Treaties
- Dualism vs Monism → TWO major theories on Int'l Law vs Municipal Law relationship



PART A — SHORT NOTES (6 Marks Each)

Instructions: Write definition + 4-5 key points + 1 case + 1 example. Target: 1.5 pages. Time: 8-10 min.

Q1 — Definition, Nature & Scope of International Law ★★★★★

Definition

International Law (also called Public International Law or Law of Nations) is the body of rules and principles that govern the legal relations between sovereign States and other subjects of international law such as international organizations, and in certain contexts, individuals.

★ *J.G. Starke: 'That body of law which is composed for its greater part of the principles and rules of conduct which States feel themselves bound to observe, and therefore, do commonly observe in their relations with each other.'*

★ *Oppenheim: 'Law of Nations or International Law is the name for the body of customary and treaty rules which are considered legally binding by States in their intercourse with each other.'*

Nature of International Law

- Debate: Is Int'l Law truly LAW? — Austin called it 'positive morality' (not law). But this is rejected today.
- Modern view: It IS law because States recognize it as binding; violation leads to diplomatic/economic consequences.
- Primary subjects: Sovereign States; Secondary: International Organizations (UN, WHO); Individuals (in limited contexts — war crimes, human rights).
- Lacks a central legislature, executive, or judiciary — yet observed by States due to reciprocity, reputation, and consent.
- Sources: Custom, Treaties, General Principles, Judicial Decisions, Jurist writings (Article 38 ICJ Statute).

Scope of International Law

- Traditional scope: Relations between States only (war, peace, diplomacy, territory).
- Modern scope: Human rights, trade law, environmental law, space law, cyber law, refugee law.
- Horizontal system: No hierarchy — all States formally equal (sovereign equality).
- Hard Law: Binding treaties and customary law. Soft Law: Resolutions, declarations, guidelines.

📌 *Example: India-Pakistan Pulwama matter was raised in UNSC — demonstrating how Int'l Law operates even between adversaries.*

🏛️ **Case: *The Paquete Habana* (USA, 1900)** — US Supreme Court held that customary international law is part of US law — fishermen's vessels exempt from capture during wartime.

🏛️ **Case: *Nicaragua v. USA* (ICJ, 1986)** — ICJ applied customary international law to hold USA liable for supporting Contra rebels — classic on nature and binding force of Int'l Law.

💡 **EXAM TIP:** Mnemonic for nature debate: 'AUSTIN was Wrong — OPPENHEIM was Right' (AW-OR). Remember: Starke, Oppenheim = Int'l Law IS law.

📌 **KEY DISTINCTION:** Public International Law (State relations) vs Private International Law

(Conflict of Laws between private parties in different States)

Q2 — Importance of International Law ★★★★★

Definition / Introduction

International Law serves as the legal framework that enables peaceful coexistence, cooperation, and order among sovereign States in an interdependent world.

Why International Law is Important

- Maintenance of Peace and Security: Provides rules for peaceful resolution of disputes (ICJ, UN Charter Article 2(3) — settle disputes peacefully).
- Regulation of Diplomatic Relations: Governs recognition of States, privileges and immunities of diplomats (Vienna Convention 1961).
- Trade and Economic Order: WTO, bilateral trade agreements — all governed by Int'l Law principles.
- Protection of Human Rights: UDHR 1948, ICCPR, ICESCR — all binding Int'l instruments.
- Environmental Protection: Kyoto Protocol, Paris Agreement — Int'l Law framework for climate.
- Space and Cyber Governance: Outer Space Treaty 1967, emerging cyber norms.
- Prevention of War Crimes: ICC, Geneva Conventions — hold individuals accountable.
- Sovereign Equality: Article 2(1) UN Charter — all States equal regardless of size/power.

 *Example: COVID-19 pandemic: WHO regulations under Int'l Health Regulations (2005) — an Int'l Law instrument — governed global response.*

 **Case: Corfu Channel Case (ICJ, 1949)** — Albania held responsible for mines in its waters injuring British warships — fundamental obligation of States not to allow territory used against other States.

 **EXAM TIP:** For 6-mark answer: Pick 5 importance points + 1 case. Time: 9 min. Do NOT go into definitions of each instrument — just name them.

Q3 — Sources of International Law ★★★★★

Introduction

Sources of International Law are the materials and processes from which rules of international law are derived. The definitive list is found in ARTICLE 38 OF THE STATUTE OF THE INTERNATIONAL COURT OF JUSTICE (ICJ).

ARTICLE 38(1) ICJ STATUTE — THE MASTER LIST OF SOURCES

Primary Sources (Binding)

1 International Conventions/Treaties (Art. 38(1)(a))

- Written agreements between States — most important modern source.
- Bilateral (2 parties) or Multilateral (many parties).
- Examples: UN Charter, VCLT 1969, UNCLOS 1982.
- Binding only on States that ratify — pacta sunt servanda (treaties must be kept).

2 International Custom (Art. 38(1)(b))

- Two elements: (a) State practice — consistent, general practice over time; (b) *Opinio juris* — belief that practice is legally obligatory.
- Examples: Freedom of the high seas, diplomatic immunity, principle of non-intervention.

 **Case:** *North Sea Continental Shelf Cases (ICJ, 1969)* — ICJ laid down test for customary international law: extensive, uniform State practice + *opinio juris*.

3 General Principles of Law (Art. 38(1)(c))

- Principles common to major legal systems of the world (civil law + common law).
- Examples: Good faith, estoppel, *res judicata*, *pacta sunt servanda*.
- Used when no treaty or custom applies — fills gaps.

Subsidiary Sources (Persuasive)

4 Judicial Decisions (Art. 38(1)(d))

- ICJ decisions, PCIJ decisions, Arbitral awards.
- Not binding as precedent (Article 59 ICJ Statute — only binding between parties in that case).
- BUT highly persuasive — courts follow their own decisions (*comity*).

5 Writings of Publicists (Art. 38(1)(d))

- 'Teachings of the most highly qualified publicists of the various nations.'
- Examples: Grotius, Oppenheim, Lauterpacht, Starke, Vattel.
- Used to determine what the law IS when primary sources are unclear.

Other Sources (Soft Law)

- UN General Assembly Resolutions — not binding but reflect opinio juris (e.g., UDHR 1948).
- Equity — used by ICJ to achieve fair results (ex aequo et bono — Art. 38(2), only if parties consent).

📌 *Example: India's Bilateral Investment Treaties with USA, UK, Japan — treaties as primary source of Int'l Law governing foreign investment.*

🏛️ **Case: *Asylum Case (Colombia v. Peru, ICJ, 1950)*** — ICJ refused to recognize Colombian custom of granting asylum as binding on Peru — shows requirements for custom: consistent and extensive practice.

💡 **EXAM TIP: Mnemonic: 'C-C-G-J-W' = Conventions, Custom, General Principles, Judicial Decisions, Writings. Art. 38 = ALWAYS cite this in Sources questions.**

Q4 — Codification of International Law ★★★★★

Definition

Codification of International Law is the process of systematically restating, recording, and clarifying the existing rules of customary international law and developing new rules in written, authoritative form.

Historical Evolution

- Early efforts: Scholars like Grotius (Father of International Law) — 'De Jure Belli ac Pacis' (1625) — first systematic work.
- 1815: Congress of Vienna — codified rules on diplomatic ranks and river navigation.
- 1856: Declaration of Paris — first multilateral effort on laws of war at sea.
- 1864: Geneva Convention — first codification on treatment of wounded soldiers (Red Cross).
- 1899/1907: Hague Peace Conferences — codified laws of war.
- League of Nations era: Limited codification efforts through conferences.
- 1947: International Law Commission (ILC) established by UNGA — systematic codification.

International Law Commission (ILC)

- Established: 1947 by UNGA Resolution 174(II)
- Mandate: Progressive development AND codification of international law.
- Members: 34 experts serving in personal capacity.
- Major outputs: VCLT 1969 (Law of Treaties), UNCLOS 1982 (Law of Sea), Draft Articles on State Responsibility.

Advantages of Codification

- Certainty and predictability — States know the rules clearly.
- Uniformity — removes conflicting customary rules.
- Accessibility — written form, available to all.
- Progressive development — new rules can be introduced.

Disadvantages of Codification

- Rigidity — codified rules less flexible than custom.
- Incomplete — not all States ratify all conventions.
- Politics — States negotiate based on interests, not pure law.
- Possible freezing — may stop natural evolution of custom.

 *Example: Vienna Convention on Law of Treaties 1969 — codified centuries of customary treaty law into one binding instrument. India ratified it.*

 **Case:** *ILC Draft Articles on State Responsibility (2001)* — Though not a treaty, treated as authoritative codification — cited by ICJ as reflecting customary law.

💡 EXAM TIP: Remember: ILC = 1947; VCLT = 1969. Grotius = Father of Int'l Law. Codification ≠ legislation; it systematizes existing custom into text.

Q5 — Relation of International Law to Municipal Law ★★★★★

📖 Introduction

Municipal Law (domestic law) and International Law are two distinct legal systems. Their relationship — which prevails in case of conflict — is one of the most debated questions in international law.

⚖️ Three Major Theories

1. MONISM — One Legal Order

- Proponents: Kelsen, Lauterpacht, Scelle.
- View: Int'l Law and Municipal Law are PART OF ONE LEGAL SYSTEM.
- Sub-theory A (Int'l Law supremacy): Int'l Law prevails — Kelsen.
- Sub-theory B (Municipal Law supremacy): National will is supreme — rarely accepted.
- International Law is directly applicable in domestic courts without transformation.

2. DUALISM — Two Separate Legal Orders

- Proponents: Triepel, Anzilotti.
- View: Int'l Law and Municipal Law are SEPARATE, DISTINCT systems — different sources, subjects, and enforcement.
- Int'l Law cannot operate in domestic courts unless INCORPORATED by legislation.
- Example: UK — treaties must be incorporated by Act of Parliament.

3. HARMONIZATION / COORDINATION THEORY (Modern)

- Practical approach — recognizes both systems coexist; seeks harmonious interpretation.
- Courts give effect to Int'l Law as far as possible without overriding clear domestic law.

🟡 **KEY RULE:** Under international law, a State CANNOT invoke its domestic law to justify non-performance of international obligations (Art. 27, VCLT 1969)

I N Position in India

- India follows a modified DUALISM approach.
- Constitutional basis: Art. 51 — directive to foster respect for Int'l Law.
- Treaties: NOT automatically binding — need Parliamentary legislation (Indian Aluminum Co. v. Kerala Electricity Board).
- Customary Int'l Law: Directly applicable — but subject to fundamental rights and Constitutional provisions.
- Courts interpret domestic law consistently with India's int'l treaty obligations (Vishaka v. State of Rajasthan — CEDAW applied).

⚖️ **Case:** *R v. Secretary of State for Home Department, ex parte Brind (UK, 1991)* — UK House of Lords — treaty not binding domestically unless incorporated by legislation — classic dualism.

⚖️ **Case:** *Vishaka v. State of Rajasthan (Supreme Court, 1997)* — Supreme Court of India applied CEDAW (Int'l treaty) to fill gap in domestic law on sexual harassment — indirect monism in practice.

⚖️ **Case:** *Gramophone Company of India v. Birendra Bahadur (SC, 1984)* — Held: Customary Int'l Law is part of Indian law; but treaties need Parliamentary incorporation.

📌 *Example: European Union: operates as near-monist system — EU law directly applicable in member states without separate legislation.*

💡 **EXAM TIP:** Mnemonic: MONISM = 'M for Merge' — one system. DUALISM = 'D for Divide' — two separate systems. India = DUALISM for treaties, MONISM for custom.



PART B — LONG ESSAYS (15 Marks Each)

Instructions: 4-5 pages per answer. Use headings. Cite 3+ cases. Conclude with legal basis.
Time: 20-22 min each.

Essay Q9 — Relationship Between Int'l Law & Municipal Law (Theories)



I. Introduction

The relationship between International Law and Municipal (domestic) Law represents one of the most fundamental and contested questions in legal theory. Two legal systems — one governing relations between States, the other governing relations within a State — inevitably interact, overlap, and sometimes conflict. The central question is: when they conflict, which prevails? Three theories have been advanced: Monism, Dualism, and the modern Harmonization approach.

■ **Core tension: A State may be bound by int'l treaty but its domestic courts follow national law — who wins?**

II. Monism — Unity of Legal Order

Monism holds that International Law and Municipal Law form part of a SINGLE, unified legal order. Both derive from the same ultimate source — whether rational law, natural law, or the universal legal community.

Key proponents and their views:

- Hans Kelsen (1881-1973): International Law sits at the apex of a unified hierarchy — 'Grundnorm' of the entire legal system. International Law prevails over Municipal Law in case of conflict.
- Hersch Lauterpacht: Emphasized individual as the ultimate subject — Int'l Law and Municipal Law are one because both ultimately concern individuals.
- Georges Scelle: 'Solidarist' monism — all law is ultimately one; individual is the true subject.

Practical implications of Monism:

- International treaties become automatically operative in domestic courts without need for legislation.
- Domestic court must apply international law even if it conflicts with national statute.
- Used in Netherlands, Germany (Art. 25 Basic Law — general rules of Int'l Law = integral part of federal law).

🏛️ **Case: *Lotus Case (PCIJ, 1927)*** — France v. Turkey — PCIJ applied Int'l Law directly to determine criminal jurisdiction — monist approach by international court.

III. Dualism — Separation of Legal Orders

Dualism, advanced by Heinrich Triepel (1899) and Dionisio Anzilotti, holds that International Law and Municipal Law are fundamentally SEPARATE and DISTINCT legal systems. They differ in:

- Sources: Int'l Law — treaties and custom between States; Municipal Law — legislation, judicial decisions, custom of one State.
- Subjects: Int'l Law — States and international organizations; Municipal Law — individuals.
- Substance: Int'l Law — regulates conduct between States; Municipal Law — conduct of individuals.

Consequence of Dualism:

- International Law cannot operate in domestic courts as such — it must first be TRANSFORMED or INCORPORATED into Municipal Law by legislative act.
- England's classic example: Treaty of Rome (EEC) only became part of UK law through European Communities Act 1972.
- If Municipal Law conflicts with Int'l Law, Municipal Law governs in domestic courts; but the State incurs international responsibility.

⚖️ **Case:** *Attorney General for Canada v. Attorney General for Ontario (Privy Council, 1937)* — Labour Conventions Case — even though Canada had ratified ILO conventions, they were not binding on provinces without domestic legislation — dualism.

⚖️ **Case:** *Parlement Belge (UK, 1879)* — Court held a Belgian royal yacht treaty could not override domestic law without Parliamentary act — foundational dualist decision.

IV. Harmonization / Coordination Theory

The modern approach seeks to avoid the absolute positions of Monism and Dualism. Rather than asking 'which prevails?', harmonization asks 'can they be reconciled?'

- Courts should interpret domestic law consistently with international obligations where possible.
- Only when clear conflict arises should priority be determined.
- Reflects the practical reality that most States operate between monism and dualism.

V. Position Under International Law

📄 **Article 27, Vienna Convention on the Law of Treaties 1969:** A State cannot invoke its internal law as justification for failure to perform its treaty obligations.

This is the fundamental rule from the international plane: whatever domestic law says, a State remains internationally responsible. Domestic law cannot excuse international breach.

⚖️ **Case:** *Alabama Claims Arbitration (1872)* — USA held internationally responsible despite absence of domestic law to prevent British ship construction for Confederacy — State cannot escape int'l liability via domestic law.

VI. India's Constitutional Position

- Article 51, Constitution of India: The State shall endeavour to foster respect for international law and treaty obligations.
- India follows DUALISM for treaties: Treaties not self-executing; need Parliamentary legislation (e.g., Protection of Plant Varieties Act for TRIPS compliance).
- India follows MODIFIED MONISM for customary international law: Automatically part of Indian law unless inconsistent with Constitution or Act of Parliament.

⚖️ **Case:** *Vishaka v. State of Rajasthan (1997)* — Supreme Court used CEDAW (int'l treaty) as a guiding document to frame guidelines on sexual harassment — demonstrating pragmatic harmonization.

⚖️ **Case:** *NALSA v. Union of India (2014)* — SC used Yogyakarta Principles (soft law) + ICCPR to

recognize rights of transgender persons — int'l law shaping domestic constitutional interpretation.

VII. Critical Analysis

- Pure monism is impractical — sovereigns will not allow foreign law to automatically override national legislation.
- Pure dualism creates a gap — States can shield domestic courts from int'l obligations.
- Modern trend: harmonization — use int'l law as interpretive tool; incorporate by legislation where possible.
- Globalization and human rights law are pushing States toward greater monist tendencies.

VIII. Conclusion

The relationship between International Law and Municipal Law is not one of rigid hierarchy but of dynamic interaction. While dualism remains the dominant approach in practice (especially for treaties), the modern trend — visible in India's Supreme Court jurisprudence and EU practice — moves toward harmonization. The ultimate principle, enshrined in Article 27 VCLT, is clear: a State cannot hide behind domestic law to escape international responsibility. The two systems must coexist; and States must bridge the gap through legislation, judicial interpretation, and good faith.

Essay Q11 — Sources of International Law (Article 38 ICJ Statute) ★★★★★

I. Introduction

Sources of International Law are the processes and materials from which rules binding upon States are derived. Unlike domestic legal systems with a single legislature, International Law develops through multiple sources. The definitive and authoritative enumeration of these sources is found in ARTICLE 38(1) OF THE STATUTE OF THE INTERNATIONAL COURT OF JUSTICE, which the Court is directed to apply.

■ Article 38 is not merely a list — it is the CONSTITUTIONAL PROVISION of international law sources.

II. Article 38(1) ICJ Statute — Text and Framework

Article 38(1) directs the ICJ to apply:

- (a) International Conventions — general or particular, establishing rules expressly recognized by contesting States.
- (b) International Custom — as evidence of a general practice accepted as law.
- (c) General Principles of Law — recognized by civilized nations.
- (d) Judicial Decisions and Teachings of publicists — as subsidiary means for determination of rules.

Note: Article 38 does NOT create a strict hierarchy — but in practice, treaties are applied first, then custom, then general principles.

III. Treaties / International Conventions

Treaties are written agreements between States (or international organizations) governed by international law. They are the MOST IMPORTANT modern source of international law because:

- They create express, clear, written obligations — certainty for States.
- Bilateral Treaties: Between two States (e.g., India-USA nuclear deal).
- Multilateral Treaties: Many States (e.g., UN Charter, VCLT, UNCLOS).
- 'Law-making' treaties bind only parties; but may crystallize into customary law over time.

■ Fundamental principle: PACTA SUNT SERVANDA — treaties must be observed in good faith (Art. 26, VCLT 1969).

🏛️ **Case:** *Anglo-Iranian Oil Co. Case (ICJ, 1952)* — ICJ held it lacked jurisdiction because Iran's declaration only accepted jurisdiction for treaties after a specific date — importance of treaty text and scope.

IV. International Custom

Customary International Law (CIL) is the oldest and most widespread source. It arises from the consistent and general practice of States followed from a sense of legal obligation.

Two essential elements:

- 1. State Practice (usus): Consistent, widespread, and representative state behavior over time. Includes diplomatic acts, legislation, court decisions, military manuals.
- 2. Opinio Juris (psychological element): States must follow the practice because they believe it is legally required — not mere courtesy.

⚖️ **Case: *North Sea Continental Shelf Cases (ICJ, 1969)*** — Definitive statement on custom: State practice must be extensive and virtually uniform + opinio juris. Equidistance principle was NOT custom as Germany had not accepted it.

⚖️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — ICJ found customary rules on non-use of force and non-intervention binding on USA even independently of UN Charter — shows autonomy of customary law.

- Special/Local Custom: Binding only between specific States — must be proved by consistent practice between those States.

⚖️ **Case: *Asylum Case (Colombia v. Peru, ICJ, 1950)*** — Colombia failed to prove a uniform, consistent regional custom on diplomatic asylum binding on Peru.

V. General Principles of Law

General Principles of Law are legal principles common to the major legal systems of the world (civil law, common law, Islamic law, etc.). They fill gaps when neither treaty nor custom provides a rule.

- Examples: Good faith, estoppel, pacta sunt servanda, ne bis in idem, res judicata, proportionality.
- Basis: All major legal systems share certain fundamental notions.

⚖️ **Case: *Chorzow Factory Case (PCIJ, 1928)*** — Established the general principle that breach of international obligation creates duty to make reparation — derived from principles common to all legal systems.

VI. Judicial Decisions and Scholarly Writings (Subsidiary Sources)

Article 38(1)(d) provides these as subsidiary means — for DETERMINING rules, not creating them.

- ICJ decisions: Not binding as precedent (Article 59 — only between parties) but immensely persuasive.
- PCIJ, arbitral awards, tribunals: Also cited.
- Scholarly writings: Grotius (*De Jure Belli ac Pacis*, 1625), Vattel, Oppenheim, Brownlie — used to determine state of law.

📌 Modern addition: UNSC/UNGA Resolutions may contribute to custom formation by evidencing opinio juris.

VII. Other Modern Sources

- UNGA Resolutions: Not binding per se; but consensus resolutions reflect opinio juris (e.g., UDHR 1948 — now largely customary law).
- Decisions of International Organizations: Binding decisions of UNSC under Chapter VII are binding on all UN members.
- Equity (Art. 38(2)): ICJ can decide ex aequo et bono (in equity) if parties agree.
- Jus Cogens (Peremptory Norms): Highest-ranking, non-derogable norms — prohibition of genocide, slavery, torture. No treaty can override them (Art. 53, VCLT).

■ JUS COGENS = Non-derogable peremptory norms. Examples: prohibition of genocide, slavery, torture, aggression.

VIII. Conclusion

Article 38 of the ICJ Statute remains the bedrock of international law's sources. In the modern era, the traditional hierarchy has been supplemented by UNGA resolutions, decisions of specialized tribunals (WTO DSB, ITLOS), and emerging norms of jus cogens. The genius of the international legal order lies in this pluralism of sources — enabling law to develop through State practice, treaty-making, and judicial elaboration without requiring a world legislature.

⚖️ PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Instructions: STRICTLY follow IRAC. Issue → Rule → Application → Conclusion. Each section should be clearly labeled. Time: 15 min each.

IRAC Problem 1 — State X and an Unincorporated Treaty

Scenario: State X ratifies a treaty protecting workers' rights. Its domestic courts refuse to apply it saying it has not been enacted into domestic law. Worker A seeks remedy.

I — Issue

Whether an international treaty automatically becomes part of domestic law upon ratification, or whether it requires separate legislative incorporation to be enforceable in domestic courts.

R — Rule

- Dualism vs Monism: Under dualist systems (UK, India), treaties must be incorporated by legislation to be operative in domestic courts.
- Article 27, VCLT 1969: A State cannot invoke its internal law as justification for failure to perform treaty obligations — but this operates on the INTERNATIONAL plane, not domestic.
- Article 51, Indian Constitution: Directs the State to foster respect for international law.
- In India: Treaties need Parliamentary incorporation — Indian Aluminum Co. v. Kerala State Electricity Board (SC, 1975) confirmed this.
- Pacta Sunt Servanda (Art. 26 VCLT): The State must perform the treaty in good faith — but domestic courts follow domestic law until legislature acts.

A — Application

State X follows a dualist system. The treaty has been ratified — creating INTERNATIONAL OBLIGATION on State X. However, ratification alone does not make it enforceable in domestic courts without legislation.

Worker A's remedy in domestic courts is limited because the treaty has not been incorporated. However: (1) State X bears international responsibility for failure to implement; (2) Worker A could pursue remedies through international mechanisms if available; (3) Courts may use the treaty as an interpretive aid to read domestic law harmoniously.

C — Conclusion

CONCLUSION: The treaty is NOT automatically enforceable in State X's domestic courts. Worker A's domestic remedy depends on whether enabling legislation exists. However, State X is internationally liable for breach and must implement the treaty through legislation. Courts should interpret existing domestic law consistently with treaty obligations wherever possible.

IRAC Problem 2 — Custom as Binding Law

Scenario: State A claims that State B is bound by a customary rule protecting a minority group. State B denies the rule exists or that it accepted it. Decide.

I — Issue

Whether a rule of customary international law is binding on State B, and what must be established to prove the existence and applicability of a customary rule.

R — Rule

- Article 38(1)(b) ICJ Statute: Custom = 'general practice accepted as law.'
- North Sea Continental Shelf Cases (ICJ, 1969): Two elements for custom — (i) extensive, uniform State practice; (ii) *opinio juris* (belief that practice is legally obligatory).
- 'Persistent Objector' Rule: A State that consistently objected to a custom before it crystallized is NOT bound by it (Asylum Case).
- Regional/Local Custom: Binding only between specific States — must prove consistent practice between them (Asylum Case, ICJ 1950).

A — Application

State A must prove: (1) The alleged rule has widespread, consistent State practice, and (2) States follow it from a sense of legal obligation (*opinio juris*).

If State B was a persistent objector during the formation of the custom — i.e., it openly rejected the rule before it crystallized — it is NOT bound.

If State B is a newly independent State that did not exist when the custom formed, general view is that new States are bound by existing customary law (succession to custom).

C — Conclusion

CONCLUSION: State B is bound by the customary rule IF State A proves both State practice and *opinio juris*. However, if State B was a persistent objector, it is NOT bound. State A bears the burden of proof. The ICJ would apply the North Sea Continental Shelf test. Mere assertion of custom is insufficient — evidence of consistent state practice and legal obligation must be demonstrated.

QUICK REVISION SHEET — UNIT I

Critical Numbers

Art. 38 ICJ Statute → Sources of Int'l Law (THE master list)
Art. 27 VCLT 1969 → Cannot invoke internal law to escape treaty obligation
Art. 26 VCLT 1969 → Pacta Sunt Servanda — treaties must be observed
Art. 53 VCLT 1969 → Jus Cogens — peremptory norms
Art. 51 Indian Constitution → Foster respect for Int'l Law
Art. 2(3) UN Charter → Peaceful settlement of disputes
1625 — Grotius' De Jure Belli ac Pacis
1947 — ILC established
1969 — VCLT adopted
1986 — Nicaragua v. USA (custom)

Top Cases — One Liner Each

- Paquete Habana (1900): Custom = part of US law; fishermen's vessels exempt from wartime capture.
- Nicaragua v. USA (1986): Customary non-intervention binding on USA; \$100M damages.
- North Sea Continental Shelf (1969): 2 elements of custom — practice + opinio juris.
- Asylum Case (1950): Need consistent + uniform practice; regional custom not proved.
- Corfu Channel (1949): State responsible for harm from its territory to other States.
- Chorzow Factory (1928): Breach of int'l obligation → reparation — general principle.
- Vishaka v. Rajasthan (1997): India used CEDAW to fill domestic law gap — harmonization.
- Lotus Case (1927): Criminal jurisdiction — PCIJ applied int'l law directly.

Memory Mnemonics

SOURCES = 'Craving Great Justice With Equity' → Conventions, Custom, General Principles, Judicial Decisions, Writings, Equity (Art. 38)

MONISM vs DUALISM: 'M = Merge (one system), D = Divide (two systems)'

Custom ELEMENTS: 'P + OJ' = Practice + Opinio Juris

India's position: 'TREATIES = Dualism (need legislation); CUSTOM = Monism (automatic)'

JUS COGENS = 'Just Can't Go' = rules that cannot be derogated by treaty

TRAP QUESTIONS — Common Exam Mistakes

- TRAP 1: 'Does India automatically follow all signed treaties?' — NO. India is dualist for treaties. Need legislation.
- TRAP 2: 'Is ICJ judgement binding as precedent?' — NO. Article 59 — only binding between parties to that case.
- TRAP 3: 'Is UNGA resolution binding?' — NO, in general. UNSC Resolutions under Chapter VII

ARE binding.

- TRAP 4: 'Can a State escape int'l liability by passing domestic law?' — NO. Art. 27 VCLT.
- TRAP 5: 'Is Int'l Law really law? (Austin)' — Austin was WRONG. Modern view: Int'l Law is law. Cite Oppenheim, Starke.
- TRAP 6: 'What is ex aequo et bono?' — Deciding on equity (Art. 38(2)) — only if BOTH parties agree.



Last-Minute Checklist

- ☒ Always cite Article 38 ICJ Statute when answering Sources question
- ☒ For Municipal Law question: Mention Monism + Dualism + Art. 27 VCLT + India's position
- ☒ Always mention TWO elements of custom: Practice + Opinio Juris
- ☒ Cite at least 2 cases per Part B answer
- ☒ In IRAC: Label each section clearly — ISSUE / RULE / APPLICATION / CONCLUSION
- ☒ Conclude with constitutional/international law basis

 **TARGET:** Attempt all 5 Part A questions (5 x 6 = 30). Do Q9 from Part B (int'l law vs municipal law — Unit I topic). For Part C choose wisely — IRAC problems on Sources or custom are likely from this unit.

— End of Unit I: Foundations of International Law —

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PUBLIC INTERNATIONAL LAW

UNIT II — States: Recognition, Succession, Responsibility & Territory

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	State Recognition	6	★★★★★★
PART A — Q2	De Facto vs De Jure Recognition	6	★★★★★★
PART A — Q3	State Succession	6	★★★★★☆
PART A — Q4	State Responsibility / International Delinquency	6	★★★★★★
PART A — Q5	State Territory	6	★★★★★☆
PART A — Q6	Modes of Acquiring State Territory	6	★★★★★★
PART B — Q1	State Recognition — Theories & Practice (Essay)	15	★★★★★★
PART B — Q2	State Responsibility for Int'l Delinquencies (Essay)	15	★★★★★★
PART B — Q3	UN Membership & Recognition (from 2024 Paper Q14)	15	★★★★★☆
PART C — IRAC 1	State Responsibility Problem	10	★★★★★★
PART C — IRAC 2	State Recognition / UN Membership Problem	10	★★★★★★
QUICK REVISION	Key Numbers, Top Cases, Mnemonics, Traps	—	—

UNIT II — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- State Recognition — De Facto and De Jure; Theories of Recognition
- State Succession — to treaties, debts, territory
- Responsibility of States for International Delinquencies
- State Territory — Definition, Components
- Modes of Acquiring State Territory — Occupation, Prescription, Cession, Conquest, Accretion

✗ TOPICS NOT IN THIS UNIT (Do NOT mix)

- Sources, Nature, Codification of Int'l Law → Unit I
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- Law of the Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- MOST LIKELY Part B: State Recognition — Theories (Constitutive vs Declaratory) — classic essay
- MOST LIKELY Part B: State Responsibility for Int'l Delinquencies — ILC Articles 2001
- FROM 2024 PAPER Q14: UN Membership problem (State XYZ ethnic riots) — directly from this unit
- VERY LIKELY Part A: Modes of Acquiring Territory; De Facto vs De Jure Recognition

CRITICAL NUMBERS TO MEMORIZE

Montevideo Convention 1933 → Art. 1: 4 criteria for Statehood (Permanent population, Defined territory, Effective government, Capacity for int'l relations)

ILC Draft Articles on State Responsibility 2001 → Art. 1: Every int'l wrongful act of State = int'l responsibility

Vienna Convention on Succession of States in Respect of Treaties 1978

Vienna Convention on Succession of States in Respect of State Property, Archives and Debts 1983

UN Charter Art. 4 → Membership conditions: peace-loving + accept Charter + able/willing to carry out obligations

5 Modes of Acquiring Territory: Occupation, Prescription, Cession, Conquest (now illegal), Accretion



PART A — SHORT NOTES (6 Marks Each)

Instructions: Definition + 4-5 key points + 1 case + 1 example. ~1.5 pages. Time: 8-10 min.

Q1 — State Recognition ★★★★★

Definition

Recognition in International Law is the formal acknowledgment by an existing State that a new entity (State, government, or belligerent) has acquired legal personality and is entitled to the rights and duties under International Law.

Key Points

- Recognition is a political act with legal consequences — a discretionary act of the recognizing State.
- WHAT can be recognised: (1) New State; (2) New Government (unconstitutional change); (3) Belligerency; (4) Insurgency.
- WHO recognizes: Other States, International Organizations (e.g., UN admission is collective recognition).
- Two major theories: Constitutive Theory vs Declaratory Theory (see below).
- Premature recognition = interference in internal affairs — internationally wrongful act.
- Withdrawal of recognition: Rare; politically sensitive.

Two Major Theories

- CONSTITUTIVE THEORY (Oppenheim, Hegel, Anzilotti): Recognition CREATES the State as a legal person. Without recognition, no legal existence in int'l law. Criticism: What if no State recognizes? Does entity have no rights?
- DECLARATORY THEORY (Brierly, Lauterpacht, modern view): Recognition merely ACKNOWLEDGES an already existing fact. Statehood exists once Montevideo criteria are met — recognition is political, not constitutive.

 MODERN VIEW: Declaratory theory is preferred — recognition is political acknowledgment, not legal creation. Statehood = Montevideo criteria.

 *Example: Kosovo declared independence in 2008. Over 100 States recognized it, but Serbia and Russia did not. ICJ Advisory Opinion 2010 held declaration was not illegal under int'l law — but did not settle the recognition debate.*

 **Case: *Luther v. Sagor* (UK, 1921)** — UK court refused to recognize acts of Soviet government as valid until UK formally recognized Soviet Russia — constitutive theory in practice.

 **Case: *Tinoco Arbitration* (1923)** — Arbitrator Taft held that non-recognition by UK did not invalidate Tinoco government's acts — declaratory approach applied.

 **EXAM TIP:** Mnemonic: 'CONSTITUTIVE = Creates; DECLARATORY = Declares.' Modern = Declaratory. Exam tip: ALWAYS state which theory you prefer and why.

Q2 — De Facto vs De Jure Recognition ★★★★★

Definition

De Facto recognition is provisional, qualified recognition extended where a new government/State controls territory but stability is uncertain. De Jure recognition is full, permanent, unconditional recognition of a State/government as having legal standing in international law.

Comparison Table

BASIS	DE FACTO	DE JURE
Nature	Provisional, hesitant	Full, permanent
Stability	Uncertain control	Stable, established
Legal effect	Limited rights	Full rights and duties
Diplomatic relations	Informal/limited	Full diplomatic ties
Retroactivity	No retroactive effect	Retroactive from date of recognition
Example	Soviet govt 1917 (initially)	Soviet govt after 1924 UK recognition

- De Facto can be UPGRADED to De Jure once stability is established (UK upgraded recognition of Soviet Russia from De Facto to De Jure in 1924).
- De Facto recognition does NOT entitle to full diplomatic immunity or state property abroad.

 *Example: China's government: After 1949 revolution, many States initially gave De Facto recognition to People's Republic of China while maintaining De Jure relations with Republic of China (Taiwan).*

 **Case:** *Carl Zeiss Stiftung v. Rayner & Keeler Ltd (UK, 1967)* — House of Lords recognized that acts of an unrecognized government (East Germany) could be given effect through the concept of De Facto recognition.

 **EXAM TIP:** Trick: De Facto = 'Fact-based'; De Jure = 'Law-based.' De Jure is RETROACTIVE — validates past acts from the date of recognition.

Q3 — State Succession ★★★★★

Definition

State Succession occurs when one State replaces another in the responsibility for the international relations of a territory. The new State 'steps into the shoes' of its predecessor in respect of rights and obligations.

Types of State Succession

- Universal Succession: One State completely absorbs another (e.g., German Reunification 1990 — West Germany absorbed East Germany).
- Partial Succession: Part of a territory separates to form a new State (e.g., Bangladesh from Pakistan 1971).
- Dissolution: One State breaks into multiple States (e.g., USSR in 1991 → 15 States; Yugoslavia → multiple States).
- Newly Independent States: Former colonial territories (India from UK, 1947).

Succession to Treaties

- General rule (Clean Slate Theory): New State is not bound by predecessor's treaties — starts fresh.
- Exception (Moving Treaty Frontiers): Territorial treaties (boundary treaties) pass automatically — land borders remain.
- Vienna Convention on Succession of States in Respect of Treaties 1978: Codifies these rules.
- Newly independent States: Can choose to continue or not; multilateral treaties — can accede.

Succession to State Debts

- General rule: Successor State takes over public debt of predecessor proportionally.
- Odious Debts: Debts contracted for purposes hostile to interests of the people of the territory — NOT transferred (e.g., colonial exploitation debts).
- Vienna Convention on Succession of States in Respect of Property, Archives and Debts 1978.

 *Example: After dissolution of USSR in 1991, Russia was recognized as the 'Continuator State' — it assumed all treaty obligations, UN membership, and nuclear arsenal of Soviet Union. The other 14 former Soviet Republics were treated as new States.*

 **Case:** *West Rand Central Gold Mining Co. v. R (UK, 1905)* — UK not liable for debts contracted by former Boer Republics — early application of succession principles.

 **EXAM TIP:** Mnemonic: 'SUCCESSION = STEP IN' — new State steps into shoes of old. Clean Slate for new states; territorial/boundary treaties always pass. Remember: Russia = Continuator of USSR.

Q4 — State Responsibility for International Delinquencies ★★★★★

📖 Definition

State Responsibility is the principle of international law that holds a State internationally liable when it commits an internationally wrongful act — i.e., a breach of its international obligations — attributable to it. The primary codification is the ILC Articles on State Responsibility (2001).

🔑 Elements of International Responsibility (ILC Art. 2)

📌 Art. 2 ILC Articles 2001: Two elements — (a) Conduct attributable to the State; (b) That constitutes a breach of an international obligation.

- 1. ATTRIBUTION: Act must be attributable to the State — committed by: State organs (army, police, officials); persons exercising governmental authority; persons under direction/control of State.
- 2. BREACH: Violation of an existing int'l obligation — treaty, custom, general principles.
- No requirement of fault/intention as a general rule (objective responsibility) — some treaties require fault.
- Circumstances precluding wrongfulness: Consent, Self-defence, Force majeure, Distress, Necessity, Countermeasures.

📋 Types of International Delinquency

- Denial of Justice: Failure to provide aliens access to courts or fair trial.
- Failure to protect aliens: Not protecting foreign nationals from mob violence.
- Expropriation without compensation: Taking alien property without adequate payment.
- Treaty violations: Non-performance of treaty obligations.

⚖️ Consequences / Remedies

- Restitution: Restore the situation that existed before the wrongful act.
- Compensation: Payment for damage caused.
- Satisfaction: Acknowledgment, apology, punishment of responsible officials.

📌 Chorzow Factory Principle: Reparation must, as far as possible, wipe out all consequences of the illegal act.

📌 Example: ICJ ordered USA to pay Nicaragua approximately USD 17 billion in reparations (*Nicaragua v. USA*, 1986) for mining ports and supporting Contra rebels — State responsibility in action.

⚖️ Case: *Chorzow Factory Case (PCIJ, 1928)* — Germany's unlawful expropriation of Polish factory — PCIJ held State must make full reparation; established the restitution principle.

⚖️ Case: *Corfu Channel Case (ICJ, 1949)* — Albania responsible for mines injuring British warships in its territorial waters — State responsible for acts occurring in its territory.

⚖️ Case: *Tehran Hostages Case (ICJ, 1980)* — Iran held responsible for failure to protect US Embassy staff — State responsible for inaction of officials when it has knowledge and means.

💡 EXAM TIP: Mnemonic: 'ABRC' = Attribution + Breach = Responsibility → Consequences (Restitution, Compensation, Satisfaction). ILC 2001 = THE source to cite.

Q5 — State Territory ★★★★★

Definition

State Territory is the geographical space over which a State exercises full and exclusive sovereignty — its supreme authority — in accordance with International Law. It is one of the four essential criteria for Statehood under the Montevideo Convention 1933.

Components of State Territory

- 1. Land Territory: The solid ground including islands and internal waters (rivers, lakes) within the State's boundaries.
- 2. Territorial Waters (Territorial Sea): 12 nautical miles from baseline under UNCLOS 1982 — full sovereignty, subject to right of innocent passage.
- 3. Airspace: Column of air above land and territorial sea — complete and exclusive sovereignty (Chicago Convention 1944).
- 4. Subsoil: Resources beneath land and territorial sea.
- 5. Continental Shelf: Seabed beyond territorial sea — sovereign rights over resources (up to 200 NM or extended).

Characteristics of Territorial Sovereignty

- Exclusive jurisdiction: Only the territorial State may exercise jurisdiction.
- Inviolability: No other State may enter without consent.
- Duty not to allow harm: Territory must not be used to harm other States (Trail Smelter Principle).
- Non-intervention: Other States cannot interfere in territorial affairs.

 *Example: India's territorial sea: 12 NM from baseline; Contiguous Zone: 24 NM; EEZ: 200 NM — all governed by UNCLOS 1982 which India has ratified.*

 **Case: *Island of Palmas Case (USA v. Netherlands, 1928)*** — Arbitrator Huber: Sovereignty = right to exercise the functions of a State to the exclusion of any other State. Effective occupation (Netherlands) prevailed over discovery (Spain/USA).

 **Case: *Trail Smelter Arbitration (USA v. Canada, 1938-41)*** — Canada responsible for pollution from smelter causing damage in USA — territory must not be used to cause harm to another State — foundational environmental rule.

 **EXAM TIP:** Territory = Land + Water + Air + Subsoil. Mnemonic: 'LAWS' = Land, Air, Water, Subsoil. Island of Palmas = MUST cite for territory sovereignty questions.

Q6 — Modes of Acquiring State Territory ★★★★★

Introduction

Modes of Acquiring Territory are the recognized methods by which a State extends its sovereignty over new territory. International Law recognizes five traditional modes — but CONQUEST is now ILLEGAL under the UN Charter.

1 Occupation

- Definition: Acquisition of territory that is terra nullius (belonging to no State).
- Requirements: (a) The territory must be genuinely unoccupied/unclaimed (terra nullius); (b) Effective occupation — actual administration, not mere discovery.
- Discovery alone is INSUFFICIENT — must be followed by effective, continuous control.

 **Case: *Island of Palmas Case (1928)*** — Netherlands' continuous, effective administration prevailed over Spain's mere discovery — occupation requires effectiveness.

 *Example: European powers' colonization of Africa/Asia in 19th century — justified (problematically) under occupation doctrine by claiming lands were terra nullius, ignoring indigenous peoples.*

2 Prescription

- Definition: Acquisition of territory through long, continuous, open, peaceful occupation and exercise of sovereignty — even if the territory originally belonged to another State.
- Distinguished from occupation: Prescription applies to territory that WAS once another State's; occupation applies to terra nullius.
- Requirements: Long period + continuous + undisturbed + public exercise of sovereignty + acquiescence of original owner.

 **Case: *Minquiers and Ecrehos Case (ICJ, 1953)*** — ICJ awarded islands to UK over France — UK had exercised more consistent governmental acts over islands — prescription and effective control.

3 Cession

- Definition: Voluntary transfer of territory from one State to another by treaty.
- Types: (a) Voluntary cession (sale, gift — e.g., USA purchased Alaska from Russia 1867 for \$7.2 million); (b) Forced cession (under peace treaties after war — now questionable under UN Charter).
- Must be by treaty — unilateral acts insufficient.

 *Example: Louisiana Purchase 1803: USA acquired Louisiana from France for \$15 million. Alaska Purchase 1867: USA from Russia for \$7.2 million — classic cession by sale.*

4 Conquest / Subjugation (NOW ILLEGAL)

- Historical definition: Acquisition of territory through military force followed by annexation.

 **CONQUEST IS NOW ILLEGAL** under UN Charter Art. 2(4) — prohibition on threat or use of force — and UNGA Resolution 2625 (1970) — no territorial acquisition by force.

- Any territory acquired by force after UN Charter is not legally recognized — States are not obliged to recognize such acquisition.

 *Example: Israel's annexation of Palestinian territories — widely unrecognized. Russian annexation of Crimea (2014) — most States reject as illegal under int'l law.*

5 Accretion

- Definition: Natural or artificial addition to existing territory — new land formation attaches automatically to the State whose territory it adjoins.
- Natural accretion: Volcanic islands, alluvial deposits (river sediment), delta formation.
- Artificial accretion: Land reclamation projects (e.g., Netherlands dike/polder system; Dubai's Palm Islands).
- No formality required — sovereignty passes automatically.

 *Example: Surtsey Island: Volcanic island emerged off Iceland's coast in 1963 — automatically became part of Iceland's territory by accretion.*

Comparison Summary

MODE	KEY REQUIREMENT	LEGAL STATUS
Occupation	Terra nullius + Effective control	Legal (if terra nullius genuine)
Prescription	Long + continuous + public + acquiescence	Legal
Cession	Treaty between States	Legal
Conquest	Military force + annexation	ILLEGAL under UN Charter
Accretion	Natural/artificial land addition	Legal (automatic)

 **EXAM TIP:** Mnemonic: 'OPCA-C' = Occupation, Prescription, Cession, Accretion, Conquest (ILLEGAL). Or: 'Only Peaceful Civilians Acquire Countries (Legally)' — Occupation, Prescription, Cession, Accretion, Conquest(illegal).



PART B — LONG ESSAYS (15 Marks Each)

Instructions: 4-5 pages per answer. Use headings. Cite 3+ cases. Conclude with legal basis.
Time: 20-22 min each.

Essay B1 — State Recognition: Theories, Types & Legal Effects ★★★★★

I. Introduction

Recognition is one of the most significant political-legal acts in International Law. When an existing State recognizes a new State or government, it acknowledges that entity's existence and legal personality in the international community. The act is discretionary, but its legal consequences are profound. Two competing theories — Constitutive and Declaratory — have shaped the doctrine, while practice has evolved toward a nuanced middle ground.

■ **Core question: Does recognition CREATE legal personality, or merely ACKNOWLEDGE it?**

II. Prerequisites for Statehood — Montevideo Convention 1933

Before recognizing a State, the entity must generally meet the four criteria of Article 1, Montevideo Convention on Rights and Duties of States, 1933:

- (a) Permanent population — a settled community.
- (b) Defined territory — even if disputed borders.
- (c) Effective government — control over territory and population.
- (d) Capacity to enter into relations with other States — independence.

■ **Montevideo Art. 3: 'The political existence of a State is independent of recognition by other States.' — Declaratory theory in treaty form.**

III. Constitutive Theory

The Constitutive Theory, advanced by Oppenheim, Hegel, and Anzilotti, holds that a State does not become a subject of international law until it is recognized by other States. Recognition is the legal act that creates the State's international personality.

- Only recognized States have rights and duties under international law.
- Unrecognized entities have no legal existence — cannot enter treaties, cannot sue in int'l courts.
- Support: *Luther v. Sagor* (UK, 1921) — UK courts applied this; *Carl Zeiss Stiftung* (UK, 1967).

Criticisms of Constitutive Theory:

- If recognition creates statehood, what happens if no State recognizes? Does the entity have no rights even to self-defence?
- It gives excessive political power to recognizing States.
- Allows politically motivated denials of recognition (e.g., denying recognition to new democracies for strategic reasons).

IV. Declaratory Theory

The Declaratory Theory, favored by Brierly, Lauterpacht, and the modern trend, holds that Statehood is a matter of fact — when the Montevideo criteria are met, the State exists in international law regardless of recognition. Recognition merely acknowledges this existing fact.

- Recognition does not create statehood — it is a political act confirming legal reality.
- An unrecognized State still has rights and obligations under international law.
- Support: Montevideo Convention Art. 3; *Tinoco Arbitration* (1923) — Taft refused to let UK non-

recognition nullify Costa Rican government's acts.

🏛️ **Case: *Tinoco Arbitration (1923)*** — UK challenged acts of Tinoco government claiming non-recognition. Chief Justice Taft held: an entity that effectively controls territory IS a government; recognition is not a prerequisite for legal existence.

V. Collective Recognition

- Admission to the United Nations = collective recognition by the international community.
- Procedure: Application → UNSC recommendation (must not be vetoed by P5) → UNGA approval by 2/3 majority.
- UN Charter Art. 4: Membership open to peace-loving States that accept the Charter.

🏛️ **Case: *Conditions for Admission (ICJ Advisory Opinion, 1948)*** — ICJ held: the conditions in Article 4 are exhaustive — States cannot impose additional political conditions on new members' admission.

📌 *Example: Bangladesh: Declared independence 1971; recognized by India immediately; achieved UN membership 1974 after USA's veto was eventually dropped. Shows how recognition and UN membership are interlinked.*

VI. Recognition of Governments

Recognition of government (distinct from State recognition) arises when the government changes unconstitutionally — coup, revolution, or civil war. The State continues to exist, but who represents it?

- Tobar Doctrine (1907): Do not recognize governments that come to power by unconstitutional means until confirmed by popular will.
- Estrada Doctrine (Mexico, 1930): States should not pass judgment on legitimacy of foreign governments — simply maintain or withdraw diplomatic relations. Most practical.
- Modern UK practice: UK officially stopped recognizing governments (Thatcher 1980) — judges by whether entity controls territory.

VII. Legal Effects of Recognition

- Diplomatic relations can be established.
- Recognized State can sue and be sued in recognizing State's courts.
- Acts and laws of recognized State given effect in recognizing State's courts.
- De Jure recognition is retroactive — validates all past acts of the recognized government/State.
- State property abroad passes to recognized successor.

VIII. Premature Recognition

- Recognizing a State before it meets Montevideo criteria or while still at war with parent State = premature recognition.
- Premature recognition = intervention in internal affairs of the parent State — internationally wrongful.

📌 *Example: Recognition of South Sudan: Sudan's consent was part of the Comprehensive Peace Agreement 2005 — recognition in 2011 was NOT premature because Sudan had agreed. Proper process.*

IX. Conclusion

The doctrine of recognition sits at the intersection of law and politics. The Declaratory Theory correctly identifies that statehood is a factual matter governed by the Montevideo criteria. However, recognition retains immense practical and legal significance — it opens doors to diplomatic relations, treaty-making, and access to courts. The modern approach blends both theories: statehood exists by fact; recognition acknowledges it and triggers legal consequences. Collective recognition through UN admission has become the most authoritative form of international recognition in the modern era.

Essay B2 — State Responsibility for International Delinquencies ★★★★★

I. Introduction

State Responsibility is the cornerstone of enforcement in International Law. In the absence of a world government, the doctrine ensures that States are held accountable for breaches of their international obligations. The International Law Commission's Draft Articles on Responsibility of States for Internationally Wrongful Acts (2001) — though not yet a binding treaty — are widely accepted as reflecting customary international law and are regularly cited by the ICJ.

■ ILC Art. 1 (2001): 'Every internationally wrongful act of a State entails the international responsibility of that State.'

II. Elements of an Internationally Wrongful Act (ILC Art. 2)

Two cumulative elements must be established:

- (a) Attribution: The conduct must be attributable to the State under international law.
- (b) Breach: The conduct must constitute a breach of an international obligation of the State.

There is no requirement of damage or injury as an independent element — breach alone triggers responsibility. However, damage is relevant for the remedy of compensation.

III. Attribution — When is Conduct 'Of the State'?

A State acts through human agents. ILC Articles specify which conduct is attributable:

- Acts of State organs (Art. 4): Legislature, executive, judiciary, military — all organs at all levels of government.
- Acts of persons exercising governmental authority (Art. 5): Private corporations, security guards exercising public powers.
- Acts under direction/control of State (Art. 8): Private individuals acting on instructions or under 'effective control' of State.
- Acts of insurrectional movements that succeed (Art. 10): If rebels become the new government, the State is responsible for their prior acts.
- Ultra vires acts (Art. 7): State organs acting BEYOND their authority — still attributable if they acted in official capacity.

🏛️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — ICJ held: USA directly responsible for mining Nicaragua's ports. But for Contra actions, the 'effective control' test was not met — USA was NOT responsible for all Contra acts. Key case on attribution.

🏛️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — Initially, militant students (private persons) seizing embassy were not attributable to Iran. BUT when Iran endorsed their acts — they became acts of the State. Attribution by subsequent endorsement.

IV. Breach of International Obligation

- Breach = failure to conform to what the obligation requires (ILC Art. 12).
- Obligation can arise from: Treaty, Custom, General Principle, ICJ Judgment, UNSC Resolution.

- Continuing wrongful acts: Breach continues as long as the act continues and State remains bound (Art. 14).
- Composite acts: Multiple acts over time together constitute a breach — e.g., systematic pattern of discrimination.

Key: There is NO requirement of intent (*dolus*) or negligence (*culpa*) as a general rule — strict liability for State organs' acts. BUT some obligations require fault (e.g., due diligence standard for treatment of aliens).

V. Circumstances Precluding Wrongfulness

Even if elements of wrongful act are met, a State may be excused if:

- Consent (Art. 20): The injured State validly consented to the conduct.
- Self-Defence (Art. 21): Lawful self-defence under UN Charter Art. 51.
- Countermeasures (Art. 22): Proportionate, non-forcible responses to prior wrongful act.
- Force Majeure (Art. 23): Irresistible force or unforeseen event beyond control making performance impossible.
- Distress (Art. 24): No other reasonable way to save lives in peril — not applicable if State contributed to distress.
- Necessity (Art. 25): Only essential interest of State threatened by grave and imminent peril — last resort.

IMPORTANT: These circumstances preclude wrongfulness — they do NOT eliminate the underlying obligation. Compensation may still be owed for material loss (Art. 27).

VI. International Delinquencies — Types

Common forms of State delinquency include:

- Denial of Justice: Failure to provide aliens with courts of justice or fair trial (exhaustion of local remedies first).
- Failure to protect aliens: Not protecting foreign nationals from mob violence when State had knowledge and means.
- Unlawful expropriation: Nationalization without prompt, adequate, effective compensation (Hull Formula).
- Breach of Treaty: Non-performance or repudiation of treaty obligations.
- Frontier incidents: Armed border violations.

Case: *Chorzow Factory (PCIJ, 1928)* — Poland's seizure of German factory = unlawful expropriation — breach of Germany-Poland Treaty. PCIJ held: must restore the factory OR pay value + lost profits. Foundational reparation case.

VII. Consequences — Reparation

ILC Art. 31: The State responsible must make full reparation for injury — material or moral.

- Restitution (Art. 35): Re-establishing the situation that existed before the wrongful act — preferred remedy; impossible if legally or materially impossible.
- Compensation (Art. 36): Payment for financially assessable damage not covered by restitution. Includes: lost profits, moral damage to individuals.

- Satisfaction (Art. 37): Non-material forms: apology, acknowledgment, assurance of non-repetition, punishment of responsible officials.

■ **Chorzow Factory Principle:** 'Reparation must, as far as possible, wipe out all the consequences of the illegal act and re-establish the situation which would, in all probability, have existed if that act had not been committed.'

VIII. Invocation of Responsibility

- Injured State: May invoke directly (Art. 42).
- Other States (*Erga Omnes*): Any State may invoke responsibility for breach of obligations owed to the international community as a whole — e.g., genocide, slavery.

🏛️ **Case: *Barcelona Traction Case (ICJ, 1970)*** — ICJ distinguished ordinary obligations (between States) from *erga omnes* obligations (owed to all States and humanity) — States have legal interest in protection of fundamental human rights.

IX. Conclusion

State responsibility is the backbone of international legal accountability. The ILC Articles 2001 represent the most comprehensive codification, embedding decades of ICJ jurisprudence into a coherent framework. The two-element test (attribution + breach), the framework of circumstances precluding wrongfulness, and the hierarchy of reparation (restitution first, then compensation, then satisfaction) provide a workable — if enforced only through political and diplomatic means — accountability system for sovereign States.

Essay B3 — UN Membership & State Recognition (2024 Paper Q14 Type)



Q14 from 2024 paper: 'State XYZ demonstrated tranquility for 9 months despite being historically marked by ethnic riots. What likelihood exists for UN to grant membership?'

I. Introduction

UN Membership is the most significant form of collective international recognition. Article 4 of the UN Charter lays down the conditions for membership, which the ICJ has held to be exhaustive. The scenario of State XYZ — with a history of ethnic violence but 9 months of relative peace — raises questions about the evidentiary standard of 'peace-loving' and the political realities of the Security Council's role.

II. Conditions for UN Membership — Article 4 UN Charter

Art. 4(1): Membership is open to all 'peace-loving States' which accept the obligations of the Charter and, in the judgment of the Organization, are able and willing to carry out these obligations.

- 1. State: Must meet Montevideo criteria — population, territory, government, capacity for int'l relations.
- 2. Peace-loving: Not defined in Charter — assessed by UN organs based on conduct.
- 3. Accept Charter obligations: Must formally sign/accept.
- 4. Able to carry out obligations: Effective government, capacity.
- 5. Willing to carry out obligations: Good faith, demonstrated through behavior.

III. Procedure for Admission

- Step 1: Application to the Secretary-General.
- Step 2: Security Council recommendation — must be approved by 9 of 15 members with NO veto from P5 (USA, UK, France, Russia, China).
- Step 3: UNGA approval by 2/3 majority of members present and voting.

🔑 **Case:** *Conditions for Admission (ICJ Advisory Opinion, 1948)* — ICJ held: conditions in Art. 4 are exhaustive. Member States CANNOT impose additional political conditions — like requiring recognition by other specific States. Must be judged on Art. 4 criteria alone.

IV. Analysis of State XYZ's Situation

Applying Art. 4 criteria to State XYZ:

- Statehood: Presumably established — XYZ is described as a State with defined territory and government.
- Peace-loving: PROBLEMATIC. History of persistent ethnic riots casts doubt. 9 months of tranquility is a very short track record. The Security Council would likely demand longer demonstrated peace.
- Willingness: Suspect given the ethnic conflict history. What concrete measures has XYZ taken — constitutional guarantees, minority protection legislation, etc.?

- UNSC veto risk: Any P5 member with strategic interest in keeping XYZ out (or in) can veto. This is the dominant political reality.

V. Assessment and Conclusion

The likelihood of UN membership for State XYZ in the near term is LOW to MODERATE. Nine months of peace is insufficient to demonstrate sustained commitment to the Charter's peace-loving requirement. The Security Council, in its discretion, would likely require: (1) A longer track record of peaceful conduct; (2) Demonstrated government control over ethnic violence; (3) No P5 veto — which depends on geopolitics. However, if all P5 approve and 9 additional UNSC members agree, the UNGA would likely follow. The ICJ's 1948 opinion confirms Art. 4 conditions are exhaustive — XYZ cannot be kept out on non-Charter grounds if it ultimately meets the five criteria.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section clearly: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — State Responsibility for Private Persons' Acts (Based on 2024 Q13 type)

Scenario: Nationals of State A mob and destroy the embassy of State B in State A's capital. State B claims State A is internationally responsible. Decide.

I — Issue

Whether State A is internationally responsible for the destruction of State B's embassy by private nationals, and what conditions determine attribution of private conduct to a State.

R — Rule

- ILC Art. 1 (2001): Every internationally wrongful act of a State = int'l responsibility.
- ILC Art. 2: Two elements — (a) attributable to State; (b) breach of int'l obligation.
- ILC Art. 4: Acts of State organs are attributable — private mobs are NOT State organs.
- ILC Art. 8: Private conduct attributable IF under State's direction or effective control.
- Vienna Convention on Diplomatic Relations 1961, Art. 22: The receiving State has a SPECIAL DUTY to protect diplomatic premises.
- Tehran Hostages Case (ICJ, 1980): Initially private actors not attributable; but State becomes responsible if it fails in its duty of protection OR subsequently endorses the acts.

A — Application

Step 1 — Initial act: The mob destroying the embassy consists of private nationals of State A — they are NOT State organs (ILC Art. 4). Their initial acts are NOT automatically attributable to State A.

Step 2 — Duty of protection: Under VCDR 1961, Art. 22, State A had a SPECIAL OBLIGATION to protect State B's embassy premises. If State A's police/security forces failed to respond despite knowledge and ability to prevent — this FAILURE is attributable to State A.

Step 3 — Subsequent endorsement: If State A's government condoned or endorsed the mob's actions — as Iran did in the Tehran Hostages case — the acts become fully attributable to the State.

C — Conclusion

CONCLUSION: State A is internationally responsible for BREACH OF ITS DUTY TO PROTECT (VCDR Art. 22) even if the initial mob acts were private. If State A also endorsed the conduct, it is fully responsible for all consequences. Remedy: Restitution (rebuild embassy) + Compensation (property + staff losses) + Satisfaction (apology, prosecution of perpetrators). Precedent: Tehran Hostages Case (ICJ, 1980).

IRAC 2 — UN Membership for State XYZ (Directly from 2024 Paper Q14)

Scenario: Despite being historically marked by persistent ethnic riots, State XYZ demonstrated 9 months of tranquility and peace when applying for UN membership. What likelihood exists for UN to grant membership?

I — Issue

Whether State XYZ satisfies the conditions for UN membership under Article 4 of the UN Charter, given its history of ethnic violence and only 9 months of demonstrated peace.

R — Rule

- UN Charter Art. 4(1): Membership open to 'peace-loving States' that: (a) accept Charter; (b) are able and willing to carry out Charter obligations.
- ICJ Advisory Opinion on Conditions for Admission (1948): Art. 4 conditions are EXHAUSTIVE — no additional political conditions permitted.
- UN Charter Art. 4(2): Admission by UNGA on recommendation of UNSC.
- UNSC: 9 of 15 votes needed; NO veto by any of 5 permanent members (P5).
- Montevideo Convention 1933 Art. 1: Four criteria for Statehood — prerequisite for membership.

A — Application

- Statehood: XYZ presumed to be a State — meets Montevideo criteria.
- Peace-loving: QUESTIONABLE. 'Persistent ethnic riots' historically — suggests XYZ has not been consistently peace-loving. 9 months is a very short period to establish credibility.
- Able and willing: The history raises doubt whether XYZ's government can effectively control its territory and population to fulfill Charter obligations.
- UNSC filter: Geopolitical interests of P5 will determine — any P5 member may veto for strategic reasons beyond Art. 4 criteria in practice (despite ICJ's 1948 opinion that this is impermissible).
- Positive factor: 9 months of peace shows potential. If XYZ provides guarantees (minority protection laws, UN monitoring missions), prospects improve.

C — Conclusion

CONCLUSION: XYZ's application faces SIGNIFICANT HURDLES. Nine months of peace is legally and practically insufficient to overcome a well-documented history of ethnic violence. The 'peace-loving' requirement under Art. 4 demands demonstrated sustained commitment to peaceful conduct. Recommendation: XYZ should seek UN monitoring, enact minority protection legislation, and demonstrate at least 2-3 years of sustained peace before re-applying. Likelihood of immediate membership: LOW. ICJ 1948 Advisory Opinion: conditions are exhaustive — but UNSC's political dynamics will ultimately determine the outcome.

QUICK REVISION SHEET — UNIT II

Critical Numbers & Articles

Montevideo Convention 1933, Art. 1 → 4 criteria for Statehood
UN Charter Art. 4 → UN Membership conditions
UN Charter Art. 2(4) → Prohibition on use of force (conquest illegal)
VCDR 1961, Art. 22 → Duty to protect diplomatic premises
ILC Articles 2001, Art. 1 → State responsibility for wrongful acts
ILC Articles 2001, Art. 2 → Two elements: Attribution + Breach
VCST 1978 → Succession to Treaties
5 Modes of Territory: Occupation, Prescription, Cession, Conquest(illegal), Accretion
Alaska Purchase: 1867 — \$7.2 million (USA from Russia) — classic Cession
Louisiana Purchase: 1803 — \$15 million (USA from France)

Top Cases — One Liner Each

- Tinoco Arbitration (1923): Declaratory theory — recognition not required for legal existence.
- Luther v. Sagor (UK, 1921): Constitutive theory applied — no recognition, no legal effect.
- Conditions for Admission (ICJ, 1948): Art. 4 conditions exhaustive — no extra conditions.
- Island of Palmas (1928): Effective occupation > mere discovery; sovereignty = exclusive exercise.
- Chorzow Factory (PCIJ, 1928): Unlawful expropriation → full reparation (restitution + compensation).
- Corfu Channel (ICJ, 1949): State responsible for harm from territory even if private actors caused it.
- Tehran Hostages (ICJ, 1980): Private acts + State endorsement = State responsibility.
- Nicaragua v. USA (ICJ, 1986): 'Effective control' test for attribution — mining ports = direct.
- Barcelona Traction (ICJ, 1970): Erga omnes obligations — all States can invoke for humanity.
- Minquiers & Ecrehos (ICJ, 1953): Effective governmental acts determine sovereignty over islands.
- Trail Smelter (1941): Territory must not be used to cause harm to other States.

Memory Mnemonics

STATEHOOD (Montevideo): 'PETE' = Population, Effective govt, Territory, External relations capacity
MODES OF TERRITORY: 'OPCA-C' = Occupation, Prescription, Cession, Accretion, Conquest(illegal)
RECOGNITION THEORIES: 'C CREATES, D DECLARES' = Constitutive Creates, Declaratory Declares
STATE RESPONSIBILITY: 'AB = R' → Attribution + Breach = Responsibility
REPARATION: 'RCS' = Restitution first, Compensation second, Satisfaction third
UN MEMBERSHIP: 'P-AWAW' = Peace-loving, Accept charter, Willing, Able, Willing (Art.4)

⚠ TRAP QUESTIONS

- TRAP 1: 'Does recognition create statehood?' — NO (modern/declaratory view). It acknowledges existing fact. BUT: Constitutive theory says YES — cite both, prefer declaratory.
- TRAP 2: 'Is conquest a valid mode of acquiring territory?' — ABSOLUTELY NOT since UN Charter Art. 2(4). ILLEGAL.
- TRAP 3: 'Is State responsible for ALL acts of private persons on its territory?' — NO. Only if: duty of protection breached, OR State endorsed/directed the acts (Tehran Hostages test).
- TRAP 4: 'Do new States automatically inherit all predecessor's treaties?' — NO. Clean Slate Theory. EXCEPTION: boundary/territorial treaties pass automatically.
- TRAP 5: 'Can a P5 member impose extra conditions for UN membership?' — Legally NO (ICJ 1948). Practically YES via veto.
- TRAP 6: 'Is de facto recognition retroactive?' — NO. Only DE JURE recognition is retroactive.

📋 Last-Minute Checklist

- ☒ State Recognition: Always state both theories + modern preference (Declaratory) + Montevideo criteria
- ☒ State Responsibility: Cite ILC Articles 2001 Art. 1 & 2; use Tehran Hostages + Nicaragua cases
- ☒ Modes of Territory: Name all 5; mark Conquest as ILLEGAL explicitly
- ☒ UN Membership: Art. 4 UN Charter; UNSC + UNGA procedure; ICJ 1948 Advisory Opinion
- ☒ Succession: Clean Slate theory + exception for boundary treaties + Russia/USSR example
- ☒ Part C: Label ISSUE / RULE / APPLICATION / CONCLUSION clearly — don't mix them

🎯 FROM 2024 PAPER: Q14 (Part C) on UN Membership for XYZ = DIRECTLY from Unit II. Q13 on Fraud/Bonus = Labour Law (Unit I of Paper 1). Focus on Recognition + Responsibility + Territory modes for max marks.

— End of Unit II: States in International Law —

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PUBLIC INTERNATIONAL LAW

UNIT III — Individual, Nationality, Extradition, Asylum, Diplomatic Immunity & Treaties

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	Position of Individual in International Law	6	★★★★★☆
PART A — Q2	Nationality	6	★★★★★★
PART A — Q3	Extradition	6	★★★★★★
PART A — Q4	Asylum	6	★★★★★★
PART A — Q5	Privileges & Immunities of Diplomatic Envoys	6	★★★★★★
PART A — Q6	Formation of Treaties	6	★★★★★★
PART A — Q7	Reservations to Treaties	6	★★★★★☆
PART A — Q8	Termination of Treaties	6	★★★★★☆
PART B — Q1	Extradition — Law, Principles & Practice (Essay)	15	★★★★★★
PART B — Q2	Diplomatic Privileges & Immunities (Essay)	15	★★★★★★
PART B — Q3	Law of Treaties — Formation, Consent, Reservation, Termination	15	★★★★★★
PART C — IRAC 1	Diplomat arrested for cyber espionage (2024 Q16)	10	★★★★★★
PART C — IRAC 2	Extradition without treaty (2024 Q13 type)	10	★★★★★★
QUICK REVISION	Key Numbers, Cases, Mnemonics, Traps	—	—

UNIT III — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Position of Individual in International Law
- Nationality — acquisition, loss, statelessness, double nationality
- Extradition — principles, double criminality, political offence exception
- Asylum — territorial, diplomatic, extradition vs asylum
- Privileges and Immunities of Diplomatic Envoys (VCDR 1961)
- Law of Treaties — Formation, Modes of Consent, Reservation, Termination (VCLT 1969)

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature of Int'l Law → Unit I
- State Recognition, Succession, Territory → Unit II
- Law of Sea, Airspace, Outer Space → Unit IV
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

- FROM 2024 PAPER Q16 (Part C): Diplomat arrested for cyber espionage — DIRECTLY tests diplomatic immunity (VCDR)
- FROM 2024 PAPER Q13 (Part B): Extradition without treaty — tests double criminality + political offence
- MOST LIKELY Part B: Diplomatic Privileges & Immunities — perennial favourite
- VERY LIKELY Part B: Law of Treaties — formation + reservation + termination
- LIKELY Part A: Asylum (types + non-refoulement); Nationality (statelessness)

CRITICAL NUMBERS TO MEMORISE

VCDR 1961 — Vienna Convention on Diplomatic Relations — THE source for diplomatic immunity
VCLT 1969 — Vienna Convention on Law of Treaties — THE source for treaty law
VCDR Art. 22 — Inviolability of diplomatic premises
VCDR Art. 29 — Personal inviolability of diplomatic agent
VCDR Art. 31 — Immunity from criminal jurisdiction (absolute)
VCDR Art. 32 — Waiver of immunity — by sending State only
VCDR Art. 9 — Persona non grata
VCLT Art. 2(1)(a) — Definition of treaty
VCLT Art. 26 — Pacta Sunt Servanda
VCLT Art. 27 — Cannot invoke internal law to escape treaty obligation
VCLT Art. 46-53 — Invalidity of treaties
VCLT Art. 60-62 — Termination / Suspension
Refugee Convention 1951 + Protocol 1967 — Asylum / Non-refoulement
Hague Convention 1930 — Nationality



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — Position of Individual in International Law ★★★★★☆

Definition

The 'position of individual' refers to the extent to which a natural person (human being) is recognised as a subject of international law — i.e., a bearer of rights and duties directly under international law, independently of the State.

Key Points

- Traditional view: Only States are subjects of int'l law — individuals are mere objects, protected or regulated indirectly through their State.
- Modern view: Individuals have LIMITED but growing subjectivity — rights and duties under int'l law in specific contexts.
- Rights of individuals: Human rights treaties (UDHR 1948, ICCPR, ICESCR); Refugee Convention 1951; Geneva Conventions.
- Duties of individuals: Int'l criminal law — genocide, war crimes, crimes against humanity — individuals personally liable (not just States).
- Locus standi: Individual may petition human rights bodies (UN Human Rights Committee, European Court of Human Rights) — direct access.
- Investment arbitration: Individuals/corporations can sue States directly in ICSID (International Centre for Settlement of Investment Disputes).
- Limitation: Individuals CANNOT bring cases directly before ICJ — only States can.

 *Example: After WW2, Nazi leaders were tried personally at Nuremberg Tribunal (1945-46) — first recognition that individuals bear criminal responsibility under int'l law regardless of State orders.*

 **Case: *Nottebohm Case (ICJ, 1955)*** — ICJ examined individual's nationality in int'l law — held Liechtenstein could not exercise diplomatic protection for Nottebohm against Guatemala because genuine link of nationality was absent.

 **Case: *Nuremberg Trials (1945-46)*** — Individuals convicted of war crimes and crimes against humanity — 'just following orders' defence rejected — individuals ARE subjects of int'l criminal law.

 **EXAM TIP:** Key contrast: Traditional = objects; Modern = limited subjects. Remember: ICJ = States only. ICC/ECHR = individuals directly. Investment arbitration = corporations vs States.

Q2 — Nationality ★★★★★

Definition

Nationality is the legal bond between an individual and a State, conferring rights (protection abroad, consular assistance) and duties (allegiance, military service). It is the primary basis for a State's right to exercise diplomatic protection on behalf of its citizens.

Modes of Acquiring Nationality

- 1. Jus Soli (Law of Soil): Nationality by birth on the territory of the State — USA, UK, Canada use this.
- 2. Jus Sanguinis (Law of Blood): Nationality by descent — from parents' nationality — India, Germany use this primarily.
- 3. Naturalisation: Grant of nationality by the State on application after fulfilling conditions (residence, language, renouncing other nationality).
- 4. Marriage: Acquisition through marriage to a national (varies by State law).
- 5. Annexation/Cession: Territory transferred — inhabitants may acquire new State's nationality.

Special Problems

- Statelessness: Person with NO nationality — no State obliged to protect them. Hague Convention 1930 aims to reduce statelessness. 1954 Convention on Status of Stateless Persons.
- Double/Multiple Nationality: Person holds nationality of two or more States — both States may claim them. Creates conflict. Nottebohm — 'genuine link' test resolves conflicts.
- Diplomatic Protection: State's right to espouse its national's claim against another State — only if national has exhausted local remedies.

 **Nottebohm/Genuine Link Test:** For int'l purposes, nationality must reflect a genuine connection — habitual residence, family ties, participation in public life, centre of interests.

 *Example: India's citizenship: Art. 5-11 Constitution of India; Citizenship Act 1955. India does NOT generally allow dual citizenship — OCI (Overseas Citizen of India) is NOT full citizenship.*

 **Case: Nottebohm Case (ICJ, 1955)** — Nottebohm obtained Liechtenstein nationality on eve of WW2 to avoid enemy-alien status. ICJ held: nationality must reflect genuine link — Liechtenstein's diplomatic protection claim against Guatemala rejected.

 **Case: Hague Convention on Nationality, 1930** — Codified rules on nationality conflicts: each State determines its own nationals; but int'l law limits this in cases of double nationality and statelessness.

 **EXAM TIP:** Mnemonic: Acquisition = 'JJNAM' = Jus Soli, Jus Sanguinis, Naturalisation, Annexation, Marriage. Genuine link = Nottebohm = MUST cite. India = Jus Sanguinis primarily.

Q3 — Extradition ★★★★★

Definition

Extradition is the formal process by which one State (the requested State) surrenders a person accused or convicted of an offence to another State (the requesting State) which has jurisdiction to try or punish the person.

Key Principles of Extradition

- 1. Treaty Basis: No State is under a general obligation to extradite — extradition requires a bilateral or multilateral treaty. (Exception: some States extradite as comity even without treaty.)
- 2. Double Criminality: The offence must be a crime under the laws of BOTH the requesting AND requested State. If not a crime in both — no extradition.
- 3. Principle of Specialty: The requesting State can only try the person for the offence specified in the extradition request — cannot prosecute for other offences.
- 4. Political Offence Exception: Extradition is REFUSED for political offences. Pure political offences (sedition, rebellion against foreign govt) are excepted. BUT: Terrorism, genocide, war crimes are NOT political offences — must extradite.
- 5. Non-extradition of Own Nationals: Many States (including India) refuse to extradite their own nationals — try them domestically instead.
- 6. Extradite or Prosecute (Aut Dedere Aut Judicare): Modern principle — if you don't extradite, you MUST prosecute domestically.

 No general obligation to extradite without treaty — but aut dedere aut judicare fills the gap: extradite OR prosecute.

 *Example: India refused extradition of Warren Anderson (Bhopal gas tragedy CEO) from USA — USA declined as there was no extradition treaty at the time and political considerations prevailed.*

 *Example: Vijay Mallya extradited from UK to India (2023) — bilateral extradition treaty between India and UK used — double criminality satisfied for bank fraud.*

 **Case: *R v. Bow Street Magistrate, ex parte Pinochet (UK, 1999)*** — House of Lords held former Chilean dictator Pinochet could be extradited for torture — crimes against humanity are NOT political offences; no immunity for former Heads of State for int'l crimes.

 **Case: *US v. Alvarez-Machain (USA, 1992)*** — US Supreme Court upheld jurisdiction even though defendant was forcibly abducted from Mexico — controversial; criticised as violating int'l law — shows limits of extradition system.

 **EXAM TIP: Mnemonic: 'DTSP-NE' = Double criminality, Treaty basis, Specialty, Political offence exception, Non-extradition of nationals, Extradite-or-prosecute. Political offence exception = KEY distinction in exams.**

Q4 — Asylum ★★★★★

Definition

Asylum is the protection granted by a State to a person who has left their own State and is fleeing persecution. International law recognises the right of a State to grant asylum — but there is no individual right to receive asylum under general international law (only under specific treaties).

Types of Asylum

- 1. Territorial Asylum: Granted within the territory of the asylum-giving State. The State has sovereign discretion to grant it. Most common form.
- 2. Diplomatic Asylum (Extra-Territorial Asylum): Granted in embassies, legations, consulates, or warships of the asylum-giving State in a foreign country. NOT recognised under general int'l law — only in Latin America (Havana Convention 1928; Caracas Convention 1954).
- 3. Neutral Zone / Ship Asylum: On neutral territory or ships — rare.

Key Principles

- Non-refoulement (Art. 33, Refugee Convention 1951): A refugee must NOT be returned to a territory where they face serious threat to life or freedom. This is the CORNERSTONE principle — arguably jus cogens.
- Refugee definition (Art. 1A, Refugee Convention 1951): Person outside their country having well-founded fear of persecution on grounds of race, religion, nationality, political opinion, or membership of a particular social group.
- Right to grant asylum: State's sovereign right — no obligation to grant to any specific individual.
- Asylum vs Extradition: When extradition is requested for a person who has been granted asylum — asylum generally prevails if the offence is political. But for int'l crimes (genocide, terrorism) — extradition/prosecution must occur.

 Non-refoulement (Art. 33 Refugee Convention 1951) = THE most important principle in asylum law. Cannot return refugee to place of persecution — widely considered customary int'l law.

 *Example: Julian Assange sought diplomatic asylum in Ecuador's London embassy (2012-2019) — diplomatic asylum not recognised by UK under general int'l law. He remained there until Ecuador withdrew asylum and he was arrested.*

 *Example: India does not have a domestic asylum law but follows UNHCR procedures — non-refoulement applied in practice.*

 **Case: Asylum Case (Colombia v. Peru, ICJ, 1950)** — Colombia granted diplomatic asylum to Peruvian rebel Haya de la Torre in its Lima embassy. ICJ held: diplomatic asylum NOT a right under general int'l law; Colombia could not qualify the offence as political unilaterally.

 **Case: R v. Secretary of State, ex parte Adan (UK, 2001)** — UK courts held non-refoulement is an absolute obligation — cannot return asylum seekers even to 'safe third countries' if persecution risk remains.

 **EXAM TIP: Asylum Case (ICJ 1950) = diplomatic asylum NOT recognised in general int'l law — Latin America only. Non-refoulement = Art. 33 Refugee Convention 1951 = MUST cite. Territorial**

| asylum = valid everywhere.

Q5 — Privileges & Immunities of Diplomatic Envoys ★★★★★

Definition

Diplomatic privileges and immunities are the special rights and freedoms granted to diplomatic agents of one State operating in another State (the receiving State), to enable them to perform their functions effectively and without interference. The primary source is the Vienna Convention on Diplomatic Relations (VCDR) 1961.

Basis / Theories

- 1. Exterritoriality Theory (old): Embassy = extension of sending State's territory. REJECTED — too absolute.
- 2. Representational Theory: Envoy represents a sovereign State — personal dignity of the sovereign extends to them.
- 3. Functional Necessity Theory (MODERN/CORRECT): Immunities are necessary so diplomatic agents can perform their functions without fear of interference — adopted by VCDR preamble.

Key Immunities Under VCDR 1961

- Art. 22 — Inviolability of Premises: The receiving State must protect diplomatic premises; its agents may NOT enter without consent of head of mission. Archives and documents are also inviolable.
- Art. 27 — Freedom of Communication: Diplomatic bag inviolable; diplomatic couriers protected.
- Art. 29 — Personal Inviolability: Diplomatic agent is inviolable — cannot be arrested or detained. Receiving State must treat with due respect.
- Art. 31 — Immunity from Criminal Jurisdiction: ABSOLUTE — diplomatic agent immune from ALL criminal prosecution in receiving State.
- Art. 31 — Civil & Administrative Immunity: Generally immune EXCEPT for: (a) real property actions; (b) succession proceedings; (c) professional/commercial activities outside official functions.
- Art. 34 — Tax Exemption: Exempt from all dues and taxes.
- Art. 36 — Customs Exemption: Personal baggage exempt from inspection.

Limits & Waiver

- Art. 32 — Waiver: ONLY the sending State can waive immunity — diplomat CANNOT waive their own immunity. Waiver must be express.
- Art. 9 — Persona Non Grata (PNG): Receiving State may declare any diplomatic agent persona non grata at any time — no reasons required — sending State must recall.
- Art. 41 — Duty to Respect Laws: Diplomatic agents must respect the laws of the receiving State — but cannot be compelled to comply through criminal sanctions.

 VCDR Art. 31: Criminal immunity = ABSOLUTE. Receiving State CANNOT prosecute a diplomat for ANY crime. Remedy: declare PNG (Art. 9) OR request waiver from sending State (Art. 32).

 Example: In 2013, Indian diplomat Devyani Khobragade was arrested in New York for alleged visa

fraud. India invoked VCDR — USA argued she was a consular (not diplomatic) officer with limited immunity under VCCR 1963. Diplomatic row ensued — she was recalled and charges eventually dropped.

⚖️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — ICJ held Iran violated VCDR by permitting seizure of US Embassy and holding diplomats hostage — inviolability of premises (Art. 22) and personal inviolability (Art. 29) grossly violated.

⚖️ **Case: *Congo v. Belgium (ICJ, 2002)*** — Arrest Warrant Case — Belgium issued arrest warrant for Congo's Foreign Minister for war crimes. ICJ held: incumbent Foreign Ministers enjoy full immunity from criminal jurisdiction abroad — even for international crimes.

💡 **EXAM TIP:** Mnemonic for key articles: '22-27-29-31-32-9' = Premises, Communication, Personal inviolability, Criminal immunity, Waiver, PNG. Criminal immunity = ABSOLUTE = Art. 31. Waiver = Sending State only = Art. 32.

Q6 — Formation of Treaties ★★★★★

📖 Definition (VCLT Art. 2(1)(a))

A Treaty is 'an international agreement concluded between States in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments, and whatever its particular designation' — VCLT 1969, Art. 2(1)(a).

📋 Stages of Treaty Formation

- 1. **NEGOTIATION**: States negotiate text through their representatives (plenipotentiaries — Art. 7 VCLT). Full powers (credentials) required, unless Head of State, Head of Government, Foreign Minister — they have inherent authority.
- 2. **ADOPTION**: Agreement on final text — usually by consensus or 2/3 majority at international conferences (Art. 9 VCLT).
- 3. **AUTHENTICATION**: Text certified as authentic and definitive — by signing, initialling, or incorporating in final act (Art. 10 VCLT).
- 4. **EXPRESSION OF CONSENT TO BE BOUND**: States express consent through: (a) Signature; (b) Exchange of instruments; (c) Ratification; (d) Acceptance/Approval; (e) Accession; (f) Any agreed method (Art. 11 VCLT).
- 5. **ENTRY INTO FORCE**: Treaty becomes binding when conditions specified in treaty are met — e.g., ratification by X number of States (Art. 24 VCLT).
- 6. **REGISTRATION**: Art. 102 UN Charter — treaties must be registered with UN Secretariat; unregistered treaties cannot be invoked before UN organs.

🔑 Modes of Consent (Art. 11 VCLT)

- **Signature**: Consent if treaty so provides or parties so agree — less formal treaties.
- **Ratification**: Formal confirmation by State's constitutional authority (parliament) — used for important treaties. India: President ratifies after Parliamentary resolution.
- **Accession**: Joining a treaty after it has already been concluded and entered into force — open to non-original parties.
- **Acceptance/Approval**: Functionally equivalent to ratification.

📌 **Pacta Sunt Servanda (Art. 26 VCLT)**: Every treaty in force is binding on the parties — must be performed in good faith. THE fundamental rule of treaty law.

📌 **Example**: India ratified the Paris Agreement on Climate Change (2016) — Presidential ratification + Parliament approval. India acceded to UNCLOS 1982 in 1995 — could not negotiate original text.

📌 **Case**: *Mavrommatis Palestine Concessions (PCIJ, 1924)* — PCIJ held: a treaty must be interpreted in light of its object and purpose — foundational treaty interpretation case.

💡 **EXAM TIP**: Stages: 'NAAEFR' = Negotiate, Adopt, Authenticate, Express consent, Force (entry into), Register. Ratification ≠ Signature — President/Parliament required for ratification in India.

Q7 — Reservations to Treaties ★★★★★

📖 Definition (VCLT Art. 2(1)(d))

A Reservation is 'a unilateral statement, however phrased or named, made by a State, when signing, ratifying, accepting, approving or acceding to a treaty, whereby it purports to exclude or to modify the legal effect of certain provisions of the treaty in their application to that State.'

🔑 Key Rules on Reservations (VCLT Arts. 19-23)

- When PERMITTED: Any time unless (a) treaty prohibits all reservations; (b) treaty permits only specific reservations not including the one made; (c) reservation is incompatible with object and purpose of treaty.
- Effect between reserving State and others: (a) If accepted by another party — treaty applies as modified by reservation between them; (b) If objected to but treaty not excluded — reservation simply not applied; (c) If objected AND treaty excluded — no treaty relation between those two States.
- Withdrawal: Reservations may be withdrawn at any time (Art. 22 VCLT).
- Jus Cogens exception: Reservation cannot be made to jus cogens norms — void.

🟡 **Compatibility test:** Reservation must not be INCOMPATIBLE WITH THE OBJECT AND PURPOSE of the treaty (Art. 19(c) VCLT). This is the key test — from Reservations to Genocide Convention Advisory Opinion 1951.

📌 *Example: India's reservations to CEDAW (Convention on Elimination of All Forms of Discrimination Against Women) — India made reservations to certain articles citing domestic laws. Other States accepted India's ratification with reservations.*

🏛️ **Case: Reservations to Genocide Convention (ICJ Advisory Opinion, 1951)** — ICJ established the 'object and purpose' test for validity of reservations. A State may maintain a reservation if it is compatible with the object and purpose of the treaty, even if other parties object.

💡 **EXAM TIP:** Key: Reservation = modify/exclude a provision. Permitted unless treaty prohibits OR incompatible with object and purpose. Object-and-purpose test = Genocide Convention Advisory Opinion 1951.

Q8 — Termination of Treaties ★★★★★

📖 Introduction

Treaties, once binding, may be terminated or suspended under specific conditions recognised by the VCLT 1969. Unilateral withdrawal without legal basis is itself a breach of international law.

🔑 Grounds for Termination (VCLT Arts. 54-64)

- 1. By Treaty Provision (Art. 54): Treaty itself provides for termination — on a date, event, or by notice.
- 2. Consent of Parties (Art. 54(b)): All parties may consent to terminate at any time.
- 3. Denunciation/Withdrawal (Art. 56): If treaty is silent — implied right to denounce if: (a) parties intended to allow it; or (b) nature of treaty implies right. Notice usually required.
- 4. Material Breach (Art. 60): Breach by one party entitles others to suspend or terminate. Bilateral treaty — either party may invoke. Multilateral — unanimous agreement of other parties, or injured State may suspend.
- 5. Supervening Impossibility (Art. 61): Permanent disappearance or destruction of object essential for treaty performance — e.g., island sinks below sea.
- 6. Fundamental Change of Circumstances — *Rebus Sic Stantibus* (Art. 62): Radical change in circumstances from those existing at time of conclusion — ONLY if: (a) change was not foreseen; (b) circumstances were essential basis of consent; (c) change radically transforms obligations. STRICTLY construed — very rarely accepted.
- 7. Jus Cogens (Art. 64): If new peremptory norm (*jus cogens*) emerges that conflicts with an existing treaty — treaty becomes void.

🟡 **Rebus Sic Stantibus (Art. 62): Fundamental change of circumstances — VERY STRICT test. Cannot be invoked simply because treaty has become burdensome or inconvenient.**

📌 *Example: USA's withdrawal from Paris Agreement (2017, rejoined 2021) — done by serving notice per treaty's withdrawal provision (Art. 28 Paris Agreement) — lawful termination/withdrawal.*

📌 *Example: UK's withdrawal from EU (Brexit 2020) — invoked Art. 50 TEU — treaty-based withdrawal mechanism.*

🏛️ **Case: Fisheries Jurisdiction Case (ICJ, 1973)** — Iceland invoked *rebus sic stantibus* to claim its 1961 fisheries agreement with UK was terminated due to changed circumstances in fisheries management. ICJ rejected — change must be radical and not foreseeable.

🏛️ **Case: Gabčíkovo-Nagymaros Project (ICJ, 1997)** — Hungary tried to invoke impossibility and *rebus sic stantibus* to terminate dam treaty with Slovakia. ICJ held neither ground was satisfied — strict conditions not met.

💡 **EXAM TIP: Grounds: 'TCDMIJ' = Treaty provision, Consent, Denunciation, Material breach, Impossibility, Jus cogens + Rebus sic stantibus. Rebus = STRICT — rarely succeeds. Always cite Gabčíkovo and Fisheries Jurisdiction.**



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Headings essential. 3+ cases. Conclude with legal basis. Time: 20-22 min.

Essay B1 — Extradition: Law, Principles & Practice ★★★★★

I. Introduction

Extradition is the mechanism by which international law bridges national borders to prevent fugitives from evading justice. At its core, it reflects the principle that no territory should become a safe haven for criminals — while simultaneously respecting State sovereignty and protecting individuals from politically motivated prosecutions. In the absence of a general obligation under international law, the extradition regime is built on bilateral and multilateral treaties, supplemented by customary principles.

■ **Fundamental rule: No general obligation to extradite without a treaty — but aut dedere aut judicare (extradite or prosecute) fills the gap.**

II. Definition and Legal Basis

- Extradition = surrender of a fugitive by the State where they are found (requested State) to the State seeking to try/punish them (requesting State).
- Source of obligation: Bilateral extradition treaties (most common); multilateral conventions (e.g., UN Convention Against Corruption 2003 — Art. 44 creates extradition obligations among parties); customary law (limited).
- India: Extradition Act 1962 + bilateral treaties with over 50 States (UK, USA, UAE, France, etc.).

III. Essential Principles

The following principles govern ALL extradition proceedings:

1. Double Criminality

- The conduct must constitute a crime in BOTH States — if legal in either, extradition fails.
- Modern approach: dual criminality assessed on conduct (facts) not label of offence.

⚖️ **Case: *R v. Bow Street Magistrate, ex parte Pinochet (No. 3) (UK, 1999)*** — House of Lords applied double criminality — torture was a crime in both Chile and UK at the relevant time — extradition permissible to Spain.

2. Principle of Specialty

- The requesting State may only prosecute for the offence(s) specified in the extradition request.
- Protects extradited person from being tried for unrelated charges.
- Requesting State cannot use extradition as a back door to get a person for a different crime.

3. Political Offence Exception

- Pure political offences (sedition, treason, rebellion against foreign government) — EXEMPT from extradition.
- The 'political' character is determined by the requested State's courts.
- EXCEPTIONS — terrorism, genocide, war crimes, crimes against humanity are NOT political offences — must extradite/prosecute.
- 'Attentat Clause' (Brussels Protocol 1965): Assassination of Head of State is NOT a political offence.

⚖️ **Case: *R v. Governor of Brixton Prison, ex parte Kolczynski (1955)*** — UK court held Polish sailors' mutiny to avoid return to Communist Poland was a political offence — extradition refused.

⚖️ **Case: *Pinochet (UK, 1999)*** — Torture and crimes against humanity NOT political offences — former Head of State has no immunity for such acts — extradition permissible.

4. Non-extradition of Own Nationals

- Many civil law States (France, Germany, India) refuse to extradite their own nationals.
- Alternative: prosecute domestically under *aut dedere aut judicare*.
- Common law States (USA, UK) generally DO extradite own nationals.

5. Rule Against Double Jeopardy (Non Bis in Idem)

- No extradition if person has already been tried and acquitted/convicted in the requested State for the same offence.

6. Death Penalty Consideration

- Several States (EU members, India in practice) refuse extradition if requesting State may impose death penalty — unless assurances given.

⚖️ **Case: *Soering v. UK (ECHR, 1989)*** — European Court of Human Rights held UK could not extradite Soering to USA (Virginia) because 'death row phenomenon' = inhuman/degrading treatment under ECHR Art. 3 — extradition would violate human rights.

IV. Procedure for Extradition

- Step 1: Requesting State submits formal extradition request through diplomatic channels.
- Step 2: Requested State's executive/judicial authority examines: treaty basis, double criminality, political offence, specialty.
- Step 3: Court in requested State conducts hearing — person may contest extradition.
- Step 4: Executive decision — even if court approves, executive may refuse (political discretion).
- Step 5: Surrender — physical transfer of person.

V. Aut Dedere Aut Judicare — Extradite or Prosecute

This principle, now firmly part of customary int'l law, provides an alternative to extradition: if a State does not extradite a person accused of serious international crimes, it **MUST** submit the case to its own prosecutorial authorities.

- Applies to: Torture (UN Convention 1984), Terrorism, Piracy, Genocide, Crimes Against Humanity.
- Prevents the requested State from becoming a sanctuary by simply refusing to extradite without consequence.

⚖️ **Case: *Questions relating to Obligation to Prosecute or Extradite (Belgium v. Senegal, ICJ, 2012)*** — ICJ held Senegal was obligated under UN Convention Against Torture to either prosecute or extradite former Chadian dictator Hissène Habré — *aut dedere aut judicare* is binding.

VI. Indian Extradition Law

- Extradition Act 1962: Governs extradition to and from India.

- Bilateral treaties: India has treaties with 50+ countries.
- India does NOT extradite own nationals (Sec. 31, Extradition Act 1962).

 *Example: Vijay Mallya (bank fraud) extradited from UK 2023. Nirav Modi (PNB fraud) extradition approved by UK court 2021 — pending appeal. Warren Anderson (Bhopal) — never extradited — no treaty + political will absent.*

VII. Conclusion

Extradition remains an imperfect but essential tool of international cooperation against crime. The balance between effective prosecution of fugitives and protection of individual rights — through the political offence exception, double criminality, specialty, and human rights conditions — reflects the tension between State interests and individual liberties. The *aut dedere aut judicare* principle increasingly fills the gap left by absent extradition treaties, ensuring that international criminals cannot simply choose their sanctuary State.

Essay B2 — Diplomatic Privileges & Immunities: VCDR 1961 ★★★★★

I. Introduction

Diplomatic relations are the lifeblood of the international system. For States to communicate, negotiate, and maintain peaceful relations, their representatives must be able to operate freely in foreign States. The Vienna Convention on Diplomatic Relations (VCDR) 1961 — ratified by 192 States — codifies the privileges and immunities necessary for diplomatic missions to function effectively.

■ VCDR Preamble: Immunities are granted not to benefit individuals but to ensure efficient performance of diplomatic functions — Functional Necessity Theory.

II. Theoretical Basis

- Exterritoriality Theory (Vattel): Embassy = extension of sending State's territory — legally rejected; too absolute.
- Representational Theory: Envoy represents the sovereign; sovereign dignity demands immunity.
- Functional Necessity Theory (Modern): Immunities necessary to enable diplomatic functions — adopted by VCDR preamble — this is the CORRECT basis.

III. Inviolability of Diplomatic Premises (Art. 22)

- Premises of the mission are inviolable — agents of the receiving State may NOT enter without consent of head of mission.
- Receiving State must take all appropriate steps to protect premises against intrusion or damage.
- Premises, furnishings, and other property are immune from search, requisition, attachment, or execution.
- Archives and documents: ALWAYS inviolable regardless of location (Art. 24).
- Diplomatic bag: Inviolable — shall not be opened or detained (Art. 27(3)).

🏛️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — Iran violated Art. 22 by permitting takeover of US Embassy and holding diplomats hostage. ICJ ordered immediate release — gross violation of VCDR.

IV. Personal Inviolability (Art. 29)

- Diplomatic agent shall NOT be liable to any form of arrest or detention.
- Receiving State must treat them with due respect and take all appropriate steps to prevent any attack on their person, freedom, or dignity.
- This is ABSOLUTE — even for serious crimes, the diplomat cannot be arrested.
- Remedy for receiving State: Declare persona non grata (Art. 9) — sending State must recall.

V. Immunity from Jurisdiction (Art. 31)

Criminal Jurisdiction: ABSOLUTE IMMUNITY — diplomatic agent cannot be prosecuted for ANY crime in receiving State's courts.

Civil and Administrative Jurisdiction: GENERAL IMMUNITY with three exceptions:

- (a) Real property actions relating to private immovable property in receiving State.
- (b) Succession proceedings where agent involved as private person (not on behalf of mission).

- (c) Professional or commercial activity outside official functions.

Art. 31: Criminal immunity = ABSOLUTE. Civil immunity = general with 3 exceptions. Administrative immunity = general. This is the most tested provision.

VI. Waiver of Immunity (Art. 32)

- Immunity belongs to the SENDING STATE — only the sending State can waive it.
- The diplomat CANNOT waive their own immunity.
- Waiver must be EXPRESS — conduct in proceedings does not constitute implied waiver for counterclaim purposes (Art. 32(3)).
- Waiver of immunity from jurisdiction does NOT imply waiver of immunity from execution of judgment (Art. 32(4)) — separate waiver required.

🔑 **Case: *Tabion v. Mufti (USA, 1996)*** — US court held diplomat's domestic employee could not sue diplomat without sending State's waiver — immunity must be expressly waived.

VII. Persona Non Grata (Art. 9)

- Receiving State may at any time declare a member of diplomatic mission persona non grata — no reasons required.
- Sending State must recall the person — failure to do so allows receiving State to refuse to recognize the person as mission member.

📌 *Example: In 2022, multiple European States expelled Russian diplomats following Ukraine invasion — declared PNG en masse. Russia retaliated in kind — standard diplomatic practice.*

VIII. Duties of Diplomatic Agent (Art. 41)

- Must respect laws and regulations of receiving State.
- Must not interfere in internal affairs.
- Must not use premises for purposes incompatible with mission functions.
- These are DUTIES — but cannot be enforced through criminal prosecution; remedy = PNG or breaking diplomatic relations.

IX. Privileges (Non-Immunity Benefits)

- Art. 34: Exempt from all dues and taxes (direct taxes only — not VAT on purchases).
- Art. 35: Exempt from personal services and military obligations.
- Art. 36: Personal baggage exempt from customs duties and inspection.
- Art. 37: Family members of diplomatic agent share immunities (if not nationals of receiving State).

X. Abuse of Diplomatic Immunity

Immunity is frequently criticised when diplomats commit serious offences. The remedy under VCDR is limited:

- Declare PNG — person leaves and sending State may prosecute at home.

- Request waiver from sending State.
- Break diplomatic relations (extreme).

 *Example: In 2001, a Russian diplomat in Ottawa killed a pedestrian while drunk driving — Russia waived immunity allowing Canadian prosecution — rare example of waiver for serious crime.*

XI. Conclusion

The VCDR 1961 has achieved near-universal acceptance because it carefully balances the functional necessity of diplomatic immunity with mechanisms to prevent abuse — the PNG declaration, waiver by sending State, and enumerated duties of diplomatic agents. The absolute criminal immunity of Art. 31 remains the most controversial provision; yet without it, diplomats could be subjected to politically motivated prosecutions undermining the entire diplomatic system. The functional necessity theory correctly explains why these immunities remain essential in the modern international order.

Essay B3 — Law of Treaties: Formation, Consent, Reservation & Termination



I. Introduction

Treaties are the primary source of rights and obligations between States in the modern international system. The Vienna Convention on the Law of Treaties (VCLT) 1969 — often called the 'treaty on treaties' — comprehensively codifies the rules governing the entire lifecycle of a treaty from formation to termination. It reflects customary international law and is widely cited even by States that have not ratified it.

■ VCLT Art. 26: *Pacta Sunt Servanda* — every treaty in force is binding and must be performed in good faith. THE foundational rule of treaty law.

II. Definition and Nature of Treaties

- Art. 2(1)(a) VCLT: Treaty = international agreement in written form, between States, governed by international law.
- Called by many names: Convention, Covenant, Protocol, Charter, Statute, Agreement, Exchange of Notes — all are treaties if they meet Art. 2 definition.
- Oral agreements: Not covered by VCLT but may be binding under general int'l law.
- Agreements with int'l organisations: Governed by VCLT 1986 (separate convention).

III. Formation and Entry into Force

Stages of treaty-making:

- Negotiation (Art. 7): By representatives with full powers — or inherent authority (Heads of State, Foreign Ministers).
- Adoption (Art. 9): Agreement on text — 2/3 majority at international conferences.
- Authentication (Art. 10): Establishes text as final and authentic — by initialling, signing, or incorporating in final act.
- Consent to be Bound (Art. 11): Critical stage — through signature, ratification, accession, acceptance, approval.
- Entry into Force (Art. 24): When treaty specifies — usually on ratification by minimum number of States.
- Registration (Art. 102 UN Charter): Mandatory for UN members — unregistered treaties cannot be invoked before UN organs.

IV. Modes of Consent to be Bound (Arts. 11-17 VCLT)

- Signature (Art. 12): Binds State if treaty so provides — used for less formal treaties or where ratification not needed.
- Ratification (Art. 14): Formal confirmation by constitutional authority — required for major treaties. Allows State to review before binding itself.
- Accession (Art. 15): Joining treaty after it has entered into force — open to non-negotiating States.
- Acceptance/Approval (Art. 14): Functionally same as ratification — different terminology.
- Exchange of Instruments (Art. 13): Bilateral treaties — binding when instruments exchanged.

V. Reservations (Arts. 19-23 VCLT)

- Reservation (Art. 2(1)(d)): Unilateral statement excluding or modifying legal effect of treaty provisions.
- When permitted: Unless treaty prohibits OR incompatible with object and purpose.
- Effect: Modifies treaty obligations between reserving State and accepting parties.
- Withdrawal: Any time (Art. 22).

■ Object-and-purpose test (Art. 19(c) + Genocide Convention Advisory Opinion 1951): Reservation must not undermine the fundamental purpose of the treaty.

⚡ Case: *Reservations to Genocide Convention (ICJ, 1951)* — Advisory Opinion established object-and-purpose test — reserving State remains party if reservation compatible with treaty's fundamental purpose, even if other States object.

VI. Invalidity of Treaties (Arts. 46-53 VCLT)

- Error (Art. 48): Factual error relating to essential basis of consent — rare.
- Fraud (Art. 49): Induced to conclude treaty by fraudulent conduct.
- Corruption (Art. 50): Representative corrupted by other State.
- Coercion of representative (Art. 51): Physical or other coercion.
- Coercion of State by threat of force (Art. 52): Treaty imposed by threat/use of force — VOID (reflects UN Charter Art. 2(4)).
- Conflict with Jus Cogens (Art. 53): Treaty conflicting with peremptory norm = VOID ab initio.

■ Art. 53: A treaty that conflicts with a jus cogens norm at time of conclusion is void in its entirety.
Art. 64: If new jus cogens emerges, existing treaty becomes void.

VII. Interpretation of Treaties (Arts. 31-33 VCLT)

- Art. 31 — General rule: Good faith + ordinary meaning of terms + context + object and purpose.
- Art. 32 — Supplementary means: Travaux préparatoires (preparatory works), circumstances of conclusion — to confirm or determine meaning when Art. 31 leaves ambiguous or absurd result.
- Art. 33 — Authentic languages: If treaty authentic in multiple languages, terms presumed same in each.

VIII. Termination of Treaties (Arts. 54-64 VCLT)

- Treaty provision (Art. 54): Expiry date, event, or denunciation clause.
- Consent of all parties (Art. 54(b)).
- Material Breach (Art. 60): Other party's serious breach — right to suspend or terminate.
- Supervening impossibility (Art. 61): Object of treaty permanently destroyed.
- Rebus Sic Stantibus (Art. 62): Fundamental change of circumstances — STRICT requirements.
- New jus cogens (Art. 64): Emerging peremptory norm voids conflicting treaty.

⚡ Case: *Gabcikovo-Nagymaros (ICJ, 1997)* — Hungary could not terminate dam treaty by invoking rebus sic stantibus or impossibility — conditions for Art. 61/62 not met. Treaty obligations subsisted.

IX. Conclusion

The VCLT 1969 provides the most comprehensive codification of treaty law. Its foundational principle — *pacta sunt servanda* — ensures that the international legal system functions through predictable, binding commitments. From the detailed rules on formation and consent, through the nuanced reservation regime, to the carefully circumscribed grounds for termination, the VCLT represents the maturity of international law in governing the most important instrument of State relations. India, though not having ratified the VCLT, applies its provisions as reflecting customary international law.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section: ISSUE / RULE / APPLICATION / CONCLUSION. Clear headings. Time: 15 min each.

IRAC 1 — Diplomat Arrested for Cyber Espionage (2024 Paper Q16)



Scenario (2024 Q16): A diplomat belonging to State R was arrested in State S under the accusation of participating in cyber espionage. Subsequently, State R has made an official request for the return of its diplomat. Examine.

I — Issue

(1) Whether the arrest of a diplomatic agent by the receiving State is permissible under international law. (2) What are the rights of the sending State (State R) and the obligations of the receiving State (State S) regarding the arrested diplomat. (3) What is the appropriate course of action.

R — Rule

- Vienna Convention on Diplomatic Relations (VCDR) 1961 — governs the entire situation.
- Art. 29 VCDR: A diplomatic agent shall NOT be liable to any form of arrest or detention. The receiving State shall treat him with due respect and take all appropriate steps to prevent any attack on his person, freedom, or dignity.
- Art. 31(1) VCDR: A diplomatic agent enjoys immunity from the criminal jurisdiction of the receiving State — ABSOLUTE immunity. No exceptions for gravity of offence.
- Art. 9 VCDR: Receiving State may at any time declare the diplomat persona non grata — no reasons need be given. Sending State must recall.
- Art. 32 VCDR: Only the SENDING STATE can waive immunity — the diplomat cannot waive their own immunity.
- Art. 41 VCDR: Diplomatic agents must respect the laws of the receiving State — but cannot be compelled through arrest/detention.
- Functional Necessity Theory: Immunities exist to protect diplomatic functions — not the individual.

🏴‍☠️ **Case: *Tehran Hostages Case (ICJ, 1980)*** — ICJ held: detention of diplomats violates Art. 29 VCDR — immediate release required regardless of alleged misconduct.

🏴‍☠️ **Case: *Congo v. Belgium (ICJ, 2002)*** — ICJ held: even for serious international crimes, serving diplomatic/government officials enjoy immunity — criminal immunity is absolute.

A — Application

Step 1 — Legality of arrest: The arrest of State R's diplomat by State S is a CLEAR VIOLATION of Art. 29 VCDR. Criminal immunity under Art. 31 is ABSOLUTE — it applies even to serious offences like cyber espionage. There are no exceptions based on gravity of the alleged crime.

Step 2 — State R's rights: State R has the right to: (a) formally protest the arrest as a violation of VCDR; (b) demand immediate release and return of its diplomat; (c) raise the matter before the ICJ if State S refuses to comply.

Step 3 — State S's options: State S CANNOT prosecute the diplomat. Its legal options are: (a) Release the diplomat immediately (mandatory); (b) Declare the diplomat persona non grata (Art. 9) — no reasons required; (c) Request State R to waive immunity (Art. 32) — State R may decline; (d) If evidence is strong, negotiate with State R for waiver or domestic prosecution.

Step 4 — Cyber espionage context: While cyber espionage may violate international norms and is

politically serious, it does not alter the ABSOLUTE nature of diplomatic criminal immunity under Art. 31 VCDR. The remedy for espionage by diplomats is PNG, not prosecution.

C — Conclusion

■ **CONCLUSION:** The arrest of State R's diplomat by State S is UNLAWFUL under VCDR Art. 29 and Art. 31. State S must immediately release and allow the diplomat to return to State R. State R's request for return is legally valid and must be honoured. State S's proper remedy is to: (1) Release immediately; (2) Declare PNG under Art. 9; (3) Request waiver from State R under Art. 32. If State S refuses to release, State R may bring proceedings before the ICJ. The diplomat's alleged cyber espionage does NOT suspend or override diplomatic immunity.

IRAC 2 — Extradition Without Treaty (2024 Paper Q13 type) ★★★★★

Scenario (2024 Q13): If State Y asks State X to extradite a criminal, but they don't have an extradition treaty. Is State X obligated under international law to extradite? Explain with reasons.

I — Issue

Whether a State (X) is obligated under international law to extradite a person to another State (Y) in the absence of an extradition treaty between them, and what alternatives exist.

R — Rule

- General rule: There is NO general obligation under customary international law to extradite — extradition requires a treaty basis.
- 'Aut dedere aut judicare' (extradite or prosecute): For serious international crimes (terrorism, torture, genocide, war crimes), this customary principle applies — if you don't extradite, you MUST prosecute.
- *Belgium v. Senegal* (ICJ, 2012): ICJ confirmed aut dedere aut judicare applies as treaty obligation under UN Convention Against Torture — and is reflective of custom for serious crimes.
- UN Convention Against Corruption (Art. 44): Treats extradition treaties as the legal basis — but where no treaty, the convention can serve as basis for States that so choose.
- Double Criminality: Even if extradited — conduct must be crime in both States.
- Political Offence Exception: Cannot extradite for political offences.
- India's position: Extradition Act 1962, Sec. 2 — extradition only to treaty countries OR designated countries by notification.

🏴‍☠️ **Case:** *Belgium v. Senegal* (ICJ, 2012) — Senegal obliged to extradite or prosecute former Chadian dictator Habré — aut dedere aut judicare applies under UN Convention Against Torture. Failure to do so = breach of int'l obligation.

🏴‍☠️ **Case:** *US v. Alvarez-Machain* (US Supreme Court, 1992) — US abducted a Mexican national for trial in USA — Supreme Court upheld jurisdiction despite no extradition. Controversial — shows limits of int'l law in practice.

A — Application

Step 1 — No treaty: State X has no extradition treaty with State Y. Under general int'l law, State X has NO obligation to extradite. The request is legally voluntary.

Step 2 — Nature of offence: CRITICAL. If the offence is an ORDINARY CRIME (murder, fraud) — no treaty, no obligation — State X may refuse. If the offence is an INTERNATIONAL CRIME (torture, terrorism, genocide, war crimes) — aut dedere aut judicare applies — State X must either extradite OR prosecute domestically.

Step 3 — Political offence: If the offence is political in nature — State X is justified in refusing extradition even under a treaty. No obligation at all without a treaty.

Step 4 — Comity: State X may extradite as a matter of comity (international courtesy) even without treaty — but this is discretionary, not obligatory.

C — Conclusion

🟡 **CONCLUSION:** State X is NOT generally obligated to extradite without a treaty. HOWEVER: (1) If

the crime is an international crime covered by a multilateral convention (terrorism, torture, genocide), State X is obligated to EITHER extradite OR prosecute under the aut dedere aut judicare principle; (2) For ordinary crimes — refusal is legally permissible; (3) State X may extradite as a matter of comity. Recommendation: State Y should negotiate a bilateral extradition treaty with State X, or invoke applicable multilateral conventions if the crime falls within their scope.

QUICK REVISION SHEET — UNIT III

Critical Articles — Must Memorise

VCDR 1961:

- Art. 9 — Persona Non Grata
- Art. 22 — Inviolability of premises
- Art. 24 — Inviolability of archives
- Art. 27 — Freedom of communication + diplomatic bag
- Art. 29 — Personal inviolability (NO arrest/detention)
- Art. 31 — Absolute criminal immunity; civil immunity with 3 exceptions
- Art. 32 — Waiver by sending State only
- Art. 34 — Tax exemption
- Art. 41 — Duty to respect receiving State's laws

VCLT 1969:

- Art. 2(1)(a) — Definition of treaty
- Art. 7 — Full powers
- Art. 11 — Modes of consent
- Art. 19(c) — Reservation: object-and-purpose test
- Art. 26 — Pacta sunt servanda
- Art. 27 — Cannot invoke internal law vs treaty
- Art. 31 — Interpretation: good faith + ordinary meaning + context + object/purpose
- Art. 52 — Coercion by force → treaty void
- Art. 53 — Jus cogens → treaty void
- Art. 60 — Material breach → termination
- Art. 62 — Rebus sic stantibus (strict)

Refugee Convention 1951:

- Art. 1A — Definition of refugee
- Art. 33 — Non-refoulement (core principle)

Top Cases — One Liner Each

- Nottebohm (ICJ, 1955): Genuine link test — nationality must reflect real connection.
- Asylum Case (ICJ, 1950): Diplomatic asylum NOT recognised in general int'l law.
- Tehran Hostages (ICJ, 1980): Detaining diplomats = gross violation of VCDR Arts. 22 & 29.
- Congo v. Belgium (ICJ, 2002): Absolute immunity for serving diplomatic/govt officials even for int'l crimes.
- Pinochet (UK, 1999): Former Head of State no immunity for crimes against humanity; NOT political offence.
- Soering v. UK (ECHR, 1989): Cannot extradite if death row phenomenon = ECHR Art. 3 violation.
- Belgium v. Senegal (ICJ, 2012): Aut dedere aut judicare binding under UN Convention Against Torture.
- Reservations to Genocide Convention (ICJ, 1951): Object-and-purpose test for reservations.
- Gabčíkovo-Nagymaros (ICJ, 1997): Rebus sic stantibus conditions very strict — not met.
- Fisheries Jurisdiction (ICJ, 1973): Rebus sic stantibus rejected — Iceland's fisheries change not

radical enough.

- Nuremberg Trials (1945-46): Individuals bear int'l criminal responsibility; superior orders no defence.

Memory Mnemonics

NATIONALITY ACQUISITION: 'JJNAM' = Jus Soli, Jus Sanguinis, Naturalisation, Annexation, Marriage

EXTRADITION PRINCIPLES: 'DTSP-NE' = Double criminality, Treaty basis, Specialty, Political offence exception, Non-extradition of nationals, Extradite-or-prosecute

VCDR KEY ARTICLES: '22-29-31-32-9' = Premises, Personal, Criminal immunity, Waiver, PNG

TREATY STAGES: 'NAAEFR' = Negotiate, Adopt, Authenticate, Express consent, Entry into force, Register

TERMINATION GROUNDS: 'TCDMIJ' = Treaty provision, Consent, Denunciation, Material breach, Impossibility, Jus cogens/Rebus

ASYLUM TYPES: 'TDN' = Territorial (everywhere), Diplomatic (Latin America only), Neutral zone

TRAP QUESTIONS — Common Exam Mistakes

- TRAP 1: 'Can a diplomat waive their own immunity?' — NO. Only SENDING STATE can waive (VCDR Art. 32). Diplomat has no personal right to immunity — it belongs to the State.
- TRAP 2: 'Is criminal immunity of diplomat absolute?' — YES, Art. 31 VCDR. No exceptions — not even for murder, espionage, or terrorism. Remedy = PNG or waiver request.
- TRAP 3: 'Is diplomatic asylum recognised in general int'l law?' — NO. Only in Latin America. Asylum Case (ICJ 1950) settled this.
- TRAP 4: 'Is there a general obligation to extradite without a treaty?' — NO. But for int'l crimes — aut dedere aut judicare applies.
- TRAP 5: 'Does ratification = signature?' — NO. Signature = authentication; Ratification = formal consent by constitutional authority. Must be distinguished.
- TRAP 6: 'Can rebus sic stantibus be invoked whenever treaty becomes burdensome?' — NO. Art. 62 VCLT is VERY STRICT — change must be radical, unforeseen, and not caused by the invoking State.
- TRAP 7: 'Is non-refoulement only in Refugee Convention?' — NO. It is widely considered customary int'l law — applies even to States not party to Refugee Convention 1951.

Last-Minute Checklist

-  Diplomatic immunity question: ALWAYS cite VCDR 1961 + specific article + Tehran Hostages + functional necessity theory
-  Extradition: Name all 6 principles; state aut dedere aut judicare; cite Pinochet + Belgium v. Senegal
-  Asylum: Distinguish territorial vs diplomatic; cite Asylum Case ICJ 1950; cite Art. 33 Refugee Convention 1951
-  Treaties: Always cite VCLT 1969 Art. 26 (Pacta Sunt Servanda) + Art. 31 (interpretation) + Art. 62 (rebus)

-  Nationality: Genuine link test = Nottebohm; statelessness = Hague Convention 1930
-  IRAC: Always label ISSUE / RULE / APPLICATION / CONCLUSION clearly — 2-3 marks per section

 2024 PAPER DIRECT HITS:

Q13 (Part B): Extradition without treaty — answered fully in IRAC 2

Q16 (Part C): Diplomat arrested for cyber espionage — answered fully in IRAC 1

Both these IRACes are based on REAL 2024 exam questions — master these first!

— End of Unit III: Individual, Nationality, Extradition, Asylum, Diplomatic Immunity & Treaties —

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PUBLIC INTERNATIONAL LAW

UNIT IV — Law of the Sea · Airspace · Outer Space

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	Evolution of Law of the Sea	6	★★★★★★
PART A — Q2	Freedoms of the High Seas	6	★★★★★★
PART A — Q3	Common Heritage of Mankind	6	★★★★★★
PART A — Q4	Legal Regime of Airspace	6	★★★★★★
PART A — Q5	Five Freedoms of Air	6	★★★★★★
PART A — Q6	Legal Regime of Outer Space	6	★★★★★★
PART A — Q7	Moon Treaty	6	★★★★★☆
PART A — Q8	India's Recent Space Missions	6	★★★★★☆
PART B — Q1	UNCLOS 1982 — Maritime Zones & Freedoms (Essay)	15	★★★★★★
PART B — Q2	Legal Regime of Airspace — Conventions (Essay)	15	★★★★★★
PART B — Q3	Legal Regime of Outer Space — Treaties & Principles (Essay)	15	★★★★★★
PART C — IRAC 1	Space object falls on State N (2024 Q15)	10	★★★★★★
PART C — IRAC 2	Law of the Sea problem — coastal State rights	10	★★★★★☆
QUICK REVISION	Key Numbers, Conventions, Cases, Mnemonics, Traps	—	—

UNIT IV — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- Legal Regime of the Seas — Evolution, Maritime Zones, UNCLOS 1982
- Freedoms of the High Seas — 6 freedoms under UNCLOS Art. 87
- Common Heritage of Mankind — The Area, deep seabed
- Legal Regime of Airspace — Paris 1919, Havana 1928, Chicago 1944, Warsaw 1929
- Five Freedoms of Air — Chicago Convention 1944
- Legal Regime of Outer Space — Outer Space Treaty 1967, Rescue Agreement 1968, Liability Convention 1972, Registration Convention 1976, Moon Treaty 1979
- UNISPACE Conferences; India's Space Missions — Chandrayaan-3, Mangalyaan, Gaganyaan

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature of Int'l Law → Unit I
- State Recognition, Succession, Territory → Unit II
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- UN, ICJ, ICC, WHO, UNESCO → Unit V

🎯 PREDICTED EXAM QUESTIONS (2025)

FROM 2024 PAPER Q10 (Part B): Trace the evolution of the Law of the Sea — directly from this unit

FROM 2024 PAPER Q11 (Part B): Explain the international legal framework governing airspace

FROM 2024 PAPER Q15 (Part C): Country M launches space object — falls on State N — liability — DIRECTLY from Liability Convention 1972

MOST LIKELY Part A: Five Freedoms of Air; Common Heritage of Mankind; Moon Treaty; Freedoms of High Seas

LIKELY Part B: Outer Space Treaty regime; UNCLOS maritime zones full essay

CRITICAL NUMBERS TO MEMORISE

MARITIME ZONES (UNCLOS 1982):

Territorial Sea = 12 Nautical Miles (NM)

Contiguous Zone = 24 NM

Exclusive Economic Zone (EEZ) = 200 NM

Continental Shelf = up to 200 NM (extended to 350 NM possible)

High Seas = beyond 200 NM

AIRSPACE CONVENTIONS:

Paris Convention 1919 — first codification of airspace law

Havana Convention 1928 — Americas; complete sovereignty over airspace

Warsaw Convention 1929 — liability for international air carriage

Chicago Convention 1944 — current global framework; ICAO established

Five Freedoms of Air — Chicago 1944

OUTER SPACE TREATIES:

Outer Space Treaty (OST) 1967 — constitution of outer space law

Rescue Agreement 1968 — rescue and return of astronauts

Liability Convention 1972 — absolute liability for space object damage

Registration Convention 1976 — registration of space objects

Moon Treaty 1979 — Moon as common heritage

UNISPACE I (1968), II (1982), III (1999), +50 (2018)



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — Evolution of Law of the Sea ★★★★★

📖 Introduction

The Law of the Sea is the body of international law governing the rights and responsibilities of States in their use of the world's oceans. Its evolution spans centuries — from Grotius' freedom of the seas to the comprehensive UNCLOS 1982 regime.

🔑 Historical Evolution

- Mare Liberum (1609) — Hugo Grotius: 'Freedom of the Seas' — seas are free for navigation and commerce by all nations; no State can claim sovereignty over open oceans. Argued for Dutch right to trade in East Indies against Portuguese monopoly.
- Mare Clausum (1635) — John Selden: Counter-theory — States CAN claim sovereignty over seas. British claimed North Sea.
- 3-Mile Rule (Cannon-shot Rule, 18th century): Territorial sea = range of cannon from shore (~3 NM). States claim sovereignty within cannon-shot.
- Hague Codification Conference 1930: First attempt to codify law of sea — failed to agree on breadth of territorial sea.
- UNCLOS I (1958, Geneva): Four conventions adopted — Territorial Sea & Contiguous Zone; High Seas; Continental Shelf; Fishing and Conservation. Territorial sea breadth still unresolved.
- UNCLOS II (1960, Geneva): Second conference — still failed to agree on territorial sea breadth.
- UNCLOS III (1973-1982, Montego Bay): 9 years of negotiation — produced UNCLOS 1982 (United Nations Convention on the Law of the Sea) — entered into force 1994. Called 'Constitution of the Oceans'.

📌 UNCLOS 1982 = 'Constitution of the Oceans' — 320 Articles + 9 Annexes. Entered into force 1994. India ratified 1995. 168 parties.

📌 *Example: India-Pakistan maritime boundary dispute in Sir Creek area — governed by UNCLOS 1982 principles on delimitation. India's EEZ covers vast areas of Indian Ocean, Arabian Sea, and Bay of Bengal.*

🏛️ **Case: North Sea Continental Shelf Cases (ICJ, 1969)** — ICJ held equidistance principle NOT customary law — equitable principles govern continental shelf delimitation between adjacent/opposite States.

🏛️ **Case: Corfu Channel Case (ICJ, 1949)** — Right of innocent passage through international straits affirmed — Albania could not close Corfu Channel to British warships in peacetime.

💡 **EXAM TIP:** Timeline: Grotius (1609) → Cannon-shot rule → Hague 1930 → UNCLOS I 1958 → UNCLOS II 1960 → UNCLOS III/1982. '1982 = Constitution of Oceans'. India ratified 1995.

Q2 — Freedoms of the High Seas ★★★★★

Definition

The High Seas are the parts of the sea beyond national jurisdiction — beyond any State's EEZ or territorial waters. The High Seas are open to all States (coastal and landlocked) and no State may subject any part to its sovereignty (UNCLOS Art. 89).

Six Freedoms of the High Seas (UNCLOS Art. 87)

UNCLOS Art. 87: Freedom of the High Seas — open to all States, coastal and landlocked. Comprises at least:

- 1. Freedom of Navigation: All ships of all States have right to sail on the high seas. Flag State has exclusive jurisdiction over its ships on high seas (Art. 92).
- 2. Freedom of Overflight: All aircraft (civil and state) have right to fly over the high seas. No State's airspace extends over high seas.
- 3. Freedom to Lay Submarine Cables and Pipelines: States may lay cables/pipelines on the seabed of high seas.
- 4. Freedom to Construct Artificial Islands and Installations: Subject to UNCLOS Part VI (continental shelf) and Part XI (Area).
- 5. Freedom of Fishing: All States have right to fish in high seas — subject to treaty obligations and conservation measures (Art. 116-120).
- 6. Freedom of Scientific Research: All States and competent international organizations have right to conduct marine scientific research on high seas.

⚠ Limitations on High Seas Freedoms

- Prohibition of piracy: Universal jurisdiction — any State may seize pirate ship/aircraft on high seas (Art. 101-107).
- Prohibition of slave trade: No ship may engage in slave transport (Art. 99).
- Hot pursuit: Coastal State may pursue foreign ship from its waters onto high seas if reasonable grounds for belief ship violated its laws (Art. 111).
- Right of visit: Warships may board ships on high seas suspected of piracy, slave trade, unauthorized broadcasting, stateless ships (Art. 110).
- Flag State jurisdiction: Exclusive — no other State may interfere with ship flying its flag on high seas.

 *Example: Somali pirates attacking commercial vessels in Indian Ocean (2008-2012) — international naval coalition operated under UNCLOS universal jurisdiction over piracy provisions. Indian Navy participated.*

 **Case: *The Lotus Case* (PCIJ, 1927)** — Turkish and French vessels collide on high seas — PCIJ held flag State (France) had exclusive jurisdiction BUT Turkey also had jurisdiction as nationals affected. Controversial — later modified by UNCLOS Art. 97 (exclusive flag State jurisdiction in collision cases).

 **EXAM TIP:** Mnemonic for 6 Freedoms: 'NOFACS' = Navigation, Overflight, Fishing, Artificial

islands, Cables/Pipelines, Scientific research. UNCLOS Art. 87 = cite always.

Q3 — Common Heritage of Mankind ★★★★★

Definition

'Common Heritage of Mankind' (CHM) is a principle of international law declaring that certain areas and resources are the common property of all humanity — not subject to national appropriation — and must be managed for the benefit of all, including future generations. In UNCLOS 1982, it applies to 'The Area' — the seabed and ocean floor beyond national jurisdiction.

Key Features of Common Heritage of Mankind

- 1. No national appropriation: No State may claim sovereignty or sovereign rights over CHM areas (UNCLOS Art. 137).
- 2. Use for benefit of all mankind: Resources must be exploited for the benefit of mankind as a whole — with particular consideration for developing States (Art. 140).
- 3. Peaceful use only: The Area shall be used exclusively for peaceful purposes (Art. 141).
- 4. Scientific research: Free and open to all — results to be shared (Art. 143).
- 5. Environmental protection: Activities in The Area must protect and preserve the marine environment (Art. 145).
- 6. International Seabed Authority (ISA): Established under UNCLOS to administer The Area and its resources on behalf of mankind.

 UNCLOS Art. 136: 'The Area and its resources are the common heritage of mankind.' Art. 137: No State shall claim or exercise sovereignty or sovereign rights over any part of the Area.

Application of CHM Principle

- The Area = seabed and ocean floor beyond national jurisdiction (beyond EEZ / continental shelf).
- Resources: Polymetallic nodules, cobalt-rich crusts, polymetallic sulphides — rich in metals (manganese, nickel, copper, cobalt).
- Moon Treaty 1979: Extended CHM principle to Moon and other celestial bodies — but very few ratifications (USA, Russia, China not parties).
- Outer Space Treaty 1967: Art. II — outer space including Moon NOT subject to national appropriation — similar CHM spirit but not expressly using the term.

 *Example: India's Nodule Mining Programme: India was the first country to be registered as a Pioneer Investor with ISA (1987) — granted mine site in Central Indian Ocean Basin for polymetallic nodules. India has exclusive rights to develop that site under ISA framework.*

 **Case: Seabed Disputes Chamber (ITLOS Advisory Opinion, 2011)** — ITLOS Advisory Opinion: States sponsoring entities mining in The Area bear responsibility for compliance with UNCLOS — due diligence obligation. CHM principle creates obligations on sponsoring States.

 **EXAM TIP:** CHM = 3 domains: The Area (UNCLOS), Moon (Moon Treaty 1979), Outer Space (OST 1967 spirit). ISA = manager of The Area. India = Pioneer Investor since 1987. CHM ≠ open access — managed for ALL mankind.

Q4 — Legal Regime of Airspace ★★★★★

Introduction

The Legal Regime of Airspace governs the rights and duties of States with respect to the column of air above their territory. Unlike the high seas, airspace above national territory is subject to **COMPLETE AND EXCLUSIVE STATE SOVEREIGNTY** — there is no right of innocent passage for aircraft (unlike ships in territorial sea).

Key Conventions on Airspace

1. Paris Convention 1919

- First multilateral convention on airspace — adopted after World War I aviation experience.
- Established: Complete and exclusive sovereignty of each State over its airspace.
- Created ICAN (International Commission for Aerial Navigation) — precursor to ICAO.
- Permitted scheduled services only by special permission — no automatic right of overflight.
- Limitation: Only League of Nations members — limited to Europe.

2. Havana Convention 1928

- Pan-American convention — covered Western Hemisphere States.
- Affirmed complete sovereignty over national airspace.
- Codified rules on nationality of aircraft, documents, lights and signals.
- Less comprehensive than Paris — regional significance only.

3. Warsaw Convention 1929 (as amended by Hague Protocol 1955, Montreal Convention 1999)

- Governs **LIABILITY** in international air carriage — not airspace sovereignty.
- Original Warsaw 1929: Carrier liable for death/injury of passengers; limits of liability set.
- Hague Protocol 1955: Doubled passenger liability limits.
- Montreal Convention 1999: Modern replacement — unlimited liability for passenger death/injury; strict liability up to SDR 113,100; fault-based above.
- India: Party to Warsaw Convention and Montreal Convention 1999.

4. Chicago Convention 1944 — The Current Framework

- Full name: Convention on International Civil Aviation 1944.
- Replaced Paris Convention — applies globally.
- Established ICAO (International Civil Aviation Organisation) — UN specialized agency.
- Core principle: Art. 1 — 'Every State has complete and exclusive sovereignty over the airspace above its territory.'
- Art. 2: Territory = land areas + territorial waters.
- Art. 3: Applies to **CIVIL** aircraft only — State aircraft (military, customs, police) governed by special rules.
- Art. 5: Non-scheduled flights — right to fly through and make non-traffic stops without prior permission.

- Art. 6: Scheduled services — require special permission or authorization from State overflown.
- Two Transit Agreements emerge from Chicago: Two Freedoms Agreement + Five Freedoms Agreement.

📌 Chicago Convention 1944, Art. 1: Complete and exclusive sovereignty over national airspace. ICAO established. Headquarters: Montreal, Canada.

📌 *Example: When a foreign commercial airliner crosses Indian airspace: it requires India's permission under Chicago Convention. Military aircraft need special bilateral agreements. No automatic right of overflight.*

📌 **Case: KAL Flight 007 (1983)** — Korean Air Lines Boeing 747 shot down by Soviet fighter jets after straying into Soviet airspace. Led to amendment of Chicago Convention — ICAO condemned use of weapons against civil aircraft in flight. Chicago Art. 3 bis added — States cannot use weapons against civil aircraft.

📌 **Case: Aerial Incident of 27 July 1955 (Israel v. Bulgaria, ICJ, 1959)** — El Al aircraft shot down over Bulgaria. ICJ dismissed for lack of jurisdiction — but affirmed principle: shooting down civil aircraft = violation of int'l law.

💡 EXAM TIP: Convention timeline: Paris 1919 → Havana 1928 → Warsaw 1929 (liability) → Chicago 1944 (current). Chicago = COMPLETE sovereignty + ICAO. Warsaw/Montreal = liability only. Sovereignty over airspace = absolute (unlike sea).

Q5 — Five Freedoms of Air ★★★★★

📖 Introduction

The Five Freedoms of Air are the rights negotiated under the Chicago Convention framework (1944) governing international air transport. They define the extent to which airlines of one State may operate in another State's airspace and airports.

🟡 The 'Freedoms of Air' are NOT freedoms from sovereignty — they are NEGOTIATED RIGHTS granted bilaterally between States. Chicago Convention itself does not grant all five; they come from associated agreements.

➔ The Five Freedoms

Freedom	Right Granted	Example
1st Freedom	Right to fly OVER another State's territory without landing (transit privilege)	Air India flight from Delhi to London flies over Pakistan, Iran, Turkey — overfly rights
2nd Freedom	Right to make TECHNICAL STOPS in another State (refuelling, repairs) — no passengers loaded/unloaded	Air India Delhi-New York stops in Frankfurt to refuel — no commercial activity
3rd Freedom	Right to carry passengers/cargo from HOME State to ANOTHER State	Air India carries passengers from Delhi (India) to London (UK) — traffic from India
4th Freedom	Right to carry passengers/cargo FROM ANOTHER STATE back to HOME State	Air India carries passengers from London back to Delhi — traffic to India
5th Freedom	Right to carry passengers/cargo between TWO FOREIGN STATES on route that starts/ends at HOME State	Air India Delhi→London→New York — carry London-New York passengers (UK to USA leg)

+ Additional Freedoms (6th-9th — Informal)

- 6th Freedom: Combination of 3rd and 4th — carry traffic between two foreign States via home State. (e.g., Emirates carries London-Dubai-Singapore passengers — via Dubai hub).
- 7th Freedom: Operate entirely BETWEEN two foreign States without touching home State — rare; requires special bilateral agreement.
- 8th Freedom (Cabotage): Operate WITHIN a foreign State — most restricted; generally not granted. (e.g., foreign airline flying Mumbai-Delhi domestic route in India — NOT permitted).
- 9th Freedom: Stand-alone cabotage — operate within foreign State without routing from home State — extremely rare.

🟡 1st and 2nd Freedoms: Granted by the Two Freedoms Agreement (International Air Services Transit Agreement 1944) — most States party. 3rd-5th Freedoms: Negotiated bilaterally — not

automatically granted.

✂ *Example: India-USA bilateral Air Services Agreement grants Indian carriers (Air India) and US carriers (United, Delta) 3rd and 4th freedoms — right to fly passengers between India and USA. 5th freedom rights are rare and specifically negotiated.*

📌 **Case: Bermuda Agreement (1946, USA-UK)** — First major bilateral air services agreement — became template for global aviation bilaterals. Granted 3rd, 4th, and 5th freedoms between USA and UK. Replaced by Bermuda II (1977) and Open Skies Agreement (2007).

💡 **EXAM TIP:** Mnemonic: '1-Over, 2-Stop, 3-Go, 4-Return, 5-Between.' Or: 'OTSRB' = Overflight, Technical stop, Send passengers, Receive passengers, Between foreign States. Cabotage (8th/9th) = domestic routes in foreign State = almost never permitted.

Q6 — Legal Regime of Outer Space ★★★★★

Introduction

The Legal Regime of Outer Space is the body of international law governing the exploration, use, and exploitation of outer space, including the Moon and other celestial bodies. The primary source is the Outer Space Treaty 1967 — often called the 'Constitution of Outer Space Law'. Five major treaties form the corpus of space law.

The Five Major Space Law Treaties

1. Outer Space Treaty (OST) 1967 — The Constitution

- Full name: Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies.
- Art. I: Outer space = province of all mankind; exploration for benefit of all countries.
- Art. II: NO national appropriation of outer space, Moon, or celestial bodies — by claim of sovereignty, use, or occupation.
- Art. III: Activities in outer space conducted in accordance with international law.
- Art. IV: Prohibition on placing nuclear weapons or WMDs in orbit/on celestial bodies. Moon = peaceful purposes only.
- Art. VI: States internationally responsible for national space activities — whether by govt or private entities.
- Art. VII: State that launches = internationally liable for damage caused by space object.
- Art. VIII: State retains jurisdiction and control over space object and personnel — even in outer space.
- Art. IX: Avoid harmful contamination of outer space and Earth's environment.
- 167 parties — includes India, USA, Russia, China.

 OST Art. II = Non-appropriation principle = THE most fundamental rule of space law. No State can claim Moon or outer space as its territory.

2. Rescue Agreement 1968

- Full name: Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space.
- States must rescue and return astronauts in distress — regardless of nationality.
- Space objects and their component parts must be returned to the launching State.
- Astronauts = 'envoys of mankind' — must be protected.

 *Example: Apollo 13 (1970) emergency — astronauts in distress — international community prepared to assist — spirit of Rescue Agreement.*

3. Liability Convention 1972

- Full name: Convention on International Liability for Damage Caused by Space Objects.
- Art. II: ABSOLUTE LIABILITY — launching State absolutely liable for damage caused by its space object on the surface of the Earth or to aircraft in flight.

- Art. III: FAULT-BASED liability — for damage caused in outer space to another State's space object.
- Claims Commission mechanism for settlement.

 **Liability Convention Art. II: Launching State = ABSOLUTELY LIABLE for damage on Earth — no need to prove fault. This is the rule applied in 2024 Q15 scenario.**

 **Case: *Cosmos 954 Incident (Canada v. USSR, 1978)*** — Soviet nuclear-powered satellite Cosmos 954 re-entered atmosphere and deposited radioactive debris over Canadian territory. Canada claimed \$6 million (CAD). USSR paid \$3 million as ex gratia — applied Liability Convention principles of absolute liability.

4. Registration Convention 1976

- Full name: Convention on Registration of Objects Launched into Outer Space.
- States must maintain a national registry of space objects.
- UN Secretary-General maintains a public register — space objects identified by their State of registry.
- Facilitates attribution of liability — know which State launched what.

5. Moon Treaty 1979

- Full name: Agreement Governing the Activities of States on the Moon and Other Celestial Bodies.
- Extends CHM (Common Heritage of Mankind) principle to Moon and celestial bodies.
- No national appropriation of Moon resources.
- International regime to govern Moon resource exploitation when feasible.
- MAJOR LIMITATION: Only 18 ratifications — USA, Russia, China NOT parties. India not a party. Commercial space industry countries largely absent — making it near-dead letter.

UNISPACE Conferences

- UNISPACE I (1968): First UN conference on peaceful uses of outer space — Vienna.
- UNISPACE II (1982): Focused on practical benefits of space technology.
- UNISPACE III (1999): 'Space Benefits for Humanity in the 21st Century' — developing countries participation.
- UNISPACE+50 (2018): 50th anniversary — 'Space2030' agenda — sustainable development + space governance.

 **Example: Starlink satellites (SpaceX, USA): Over 5,000 satellites in LEO — regulated under US national space law + OST Art. VI (State responsible for private entities' activities). No int'l approval needed — raises space debris and frequency concerns.**

 **Case: *Outer Space Treaty Art. VI*** — States bear international responsibility for national activities in outer space, whether carried out by governmental or non-governmental entities — State must authorise and supervise private space activities.

 **EXAM TIP: 5 Treaties: 'OST-RLR-M' = Outer Space Treaty, Rescue, Liability, Registration, Moon Treaty. OST 1967 = Constitution. Liability = ABSOLUTE for Earth damage (Art. II). Moon Treaty = CHM but USA/Russia/China not party — practically irrelevant.**

Q7 — Moon Treaty 1979 ★★★★★

Definition

The Moon Treaty (1979) — formally the Agreement Governing the Activities of States on the Moon and Other Celestial Bodies — extends the Common Heritage of Mankind principle to the Moon, Mars, and other celestial bodies in the solar system (excluding Earth and Earth-orbiting objects).

Key Provisions

- Art. 11(1): The Moon and its natural resources = Common Heritage of Mankind.
- Art. 11(2): Moon NOT subject to national appropriation — by claim of sovereignty, use, or occupation.
- Art. 11(3): No private or public ownership of lunar resources.
- Art. 11(5): International regime to be established to govern exploitation of Moon resources when such exploitation becomes feasible.
- Art. 3: Moon to be used exclusively for peaceful purposes — no weapons, no military bases.
- Art. 7: States must take measures to prevent disruption of the Moon environment.
- Art. 13: Applies to all celestial bodies in solar system except Earth.

Why Moon Treaty is Largely Ineffective

- Only 18 ratifications as of 2024 — small developing States mostly.
- Major space powers — USA, Russia, China — NOT parties.
- India is NOT a party.
- US Artemis Accords (2020): USA created alternative framework — bilateral agreements for lunar activities — explicitly allows resource extraction — contradicts Moon Treaty CHM principle.
- US Commercial Space Launch Competitiveness Act 2015: American citizens may own resources extracted from space — Moon Treaty would prohibit this.

 Moon Treaty paradox: Strong CHM principles but only 18 ratifications — major space nations absent. Artemis Accords (2020) = USA's counter-framework with 40+ signatories. Real-world space law = OST 1967 + national space laws + Artemis Accords.

 *Example: Chandrayaan-3 (India, 2023): India landed on Moon's south pole — first country to do so. India operates under OST 1967 (party) but NOT Moon Treaty. Resources India collects may not be governed by CHM under current framework.*

 EXAM TIP: Moon Treaty = Great principles, No major powers. Key contrast: OST Art. II (no appropriation of space) = widely accepted; Moon Treaty Art. 11 (CHM for resources) = NOT accepted by major spacefaring States. Artemis Accords = USA's alternative.

Q8 — India's Recent Space Missions & Space Law ★★★★★

Introduction

India has emerged as a major spacefaring nation. All Indian space activities are subject to the Outer Space Treaty 1967 (which India ratified in 1982) and India's own Space Activities Bill (in progress). ISRO (Indian Space Research Organisation) conducts space activities on behalf of the Government of India.

Key Indian Space Missions

1. Mangalyaan (Mars Orbiter Mission) — 2013-2014

- India's first interplanetary mission — Mars Orbiter launched November 2013; entered Mars orbit September 2014.
- India became first country to reach Mars on its FIRST attempt.
- India became first Asian country to reach Mars orbit.
- Cost: ~₹450 crore (\$74 million) — cheapest Mars mission in history.
- International law: Governed by OST Art. I (exploration for benefit of all mankind) + Art. IX (avoid harmful contamination).

2. Chandrayaan-1 — 2008

- India's first lunar mission — discovered water molecules on the Moon.
- Significant scientific contribution to understanding Moon's geology.

3. Chandrayaan-2 — 2019

- Orbiter, lander (Vikram), rover (Pragyan) — lander crashed during descent.
- Orbiter continues to function successfully.

4. Chandrayaan-3 — 2023 (HISTORIC)

- Launched July 14, 2023; soft-landed on Moon's south polar region — August 23, 2023.
- India became FIRST country to land near Moon's south pole.
- India became 4th country to achieve soft landing on Moon (after USSR, USA, China).
- Rover Pragyan explored lunar surface — confirmed presence of sulphur, oxygen, iron.
- International law implication: Landing site named 'Shiv Shakti Point' — under OST Art. VIII India retains jurisdiction over Chandrayaan-3 spacecraft and instruments on Moon.

5. Gaganyaan (Human Spaceflight Mission) — Upcoming 2025

- India's first crewed spaceflight mission — planned to send Indian astronauts to Low Earth Orbit.
- If successful: India becomes 4th country to independently send humans to space (after USSR/Russia, USA, China).
- Legal framework: Rescue Agreement 1968 applies — other States obligated to rescue Indian astronauts in distress.

6. Aditya-L1 — 2023

- India's first solar mission — launched September 2, 2023.
- Studies Sun's corona from Lagrange Point 1 (L1) — 1.5 million km from Earth.

India's Space Law Framework

- OST 1967: Ratified 1982 — India responsible for all national space activities (Art. VI).
- Rescue Agreement 1968: Ratified — India must rescue astronauts.
- Liability Convention 1972: Ratified — India absolutely liable for damage caused by Indian space objects on Earth.
- Registration Convention 1976: Ratified — India registers its space objects.
- Moon Treaty 1979: NOT ratified by India.
- Space Activities Bill: India's draft domestic space law — pending enactment — will regulate private space sector (ISRO commercialisation, NewSpace India Limited).

 **EXAM ALERT:** India = 1st country to land near Moon's south pole (Chandrayaan-3, August 23, 2023). 4th country to soft-land on Moon. OST 1967 ratified. Moon Treaty NOT ratified.

 *Example: Chandrayaan-3 landing site 'Shiv Shakti Point' — under OST Art. VIII, India retains jurisdiction over spacecraft but cannot claim territorial sovereignty over the landing site (OST Art. II).*

 **EXAM TIP:** Space mission facts for exam: Mangalyaan = first Asian Mars orbit, 2014. Chandrayaan-3 = first Moon south pole landing, August 23, 2023. Gaganyaan = first crewed mission (upcoming). Aditya-L1 = solar mission, 2023. ISRO founded: 1969.

MARITIME ZONES QUICK REFERENCE (UNCLOS 1982)

Zone	Distance	Sovereignty / Rights	Key Rule
Internal Waters	Within baselines	Full sovereignty — same as land territory	No right of innocent passage
Territorial Sea	0-12 NM from baseline	Full sovereignty — subject to innocent passage for ships	UNCLOS Art. 3; right of innocent passage (Art. 17)
Contiguous Zone	12-24 NM	Enforce customs, immigration, fiscal, sanitary laws	UNCLOS Art. 33 — preventive/punitive jurisdiction only
EEZ	12-200 NM	Sovereign rights over natural resources; jurisdiction over installations	UNCLOS Art. 56; other States retain navigation + overflight freedoms
Continental Shelf	Up to 200 NM (extended 350 NM)	Sovereign rights over seabed resources (non-living + sedentary living)	UNCLOS Art. 76-77; automatic rights — no occupation needed
High Seas	Beyond 200 NM (or EEZ)	Freedom of all States — no sovereignty	UNCLOS Art. 87 — 6 freedoms
The Area	Seabed beyond national jurisdiction	Common Heritage of Mankind — managed by ISA	UNCLOS Art. 136-137; no national appropriation

 **INNOCENT PASSAGE (Art. 17-19):** Right of ships to pass through territorial sea continuously and expeditiously without prejudice to peace, good order, security. Submarines must navigate on surface. No right of innocent passage for AIRCRAFT over territorial sea — unlike ships.



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Headings essential. 3+ cases. Conclude with legal basis. Time: 20-22 min.

Essay B1 — UNCLOS 1982: Evolution, Maritime Zones & Freedoms



I. Introduction

The United Nations Convention on the Law of the Sea (UNCLOS) 1982 — often called the 'Constitution of the Oceans' — represents the most comprehensive codification of international maritime law. Spanning 320 Articles and 9 Annexes, it balances the sovereign rights of coastal States over adjacent ocean zones against the freedom of all States to navigate and use the high seas. India ratified UNCLOS in 1995.

■ UNCLOS 1982: 320 Articles + 9 Annexes. Entered into force 1994. Called 'Constitution of the Oceans'. 168 State parties.

II. Historical Evolution of Law of the Sea

- Pre-17th century: States claimed varying breadths of sea — no uniform rule.
- Hugo Grotius, *Mare Liberum* (1609): Freedom of seas — influential but contested.
- Cannon-shot rule / 3-mile rule (18th century): Territorial sea = cannon range from shore.
- Hague Conference 1930: First codification attempt — failed on territorial sea breadth.
- UNCLOS I (Geneva, 1958): 4 conventions — Territorial Sea; High Seas; Continental Shelf; Fishing. No agreement on territorial sea width.
- UNCLOS II (1960): Still no agreement on width.
- UNCLOS III (1973-1982): 9 years; 160 States; package deal — produced comprehensive UNCLOS 1982.

🏛️ **Case:** *North Sea Continental Shelf Cases (ICJ, 1969)* — Equidistance not customary law — equitable principles govern. Germany not bound by 1958 Convention it had not ratified. ICJ applied general law.

III. Maritime Zones Under UNCLOS 1982

UNCLOS creates a graduated regime of zones moving seaward from the coastal State's baseline:

A. Territorial Sea (Arts. 3-33)

- Breadth: Up to 12 NM from baseline (Art. 3).
- Sovereignty: Full sovereignty — same as land territory. Extends to seabed, subsoil, airspace.
- Innocent passage: Foreign ships have right of innocent passage (Art. 17) — continuous, expeditious, not prejudicial to peace.
- Submarines must navigate on surface and show their flag (Art. 20).
- NO right of innocent passage for aircraft — complete airspace sovereignty.

B. Contiguous Zone (Art. 33)

- Breadth: Up to 24 NM from baseline.
- Coastal State may exercise control to: prevent infringement of customs, fiscal, immigration, sanitary laws; punish infringements committed in territorial sea.
- NOT sovereignty — functional jurisdiction only in these specific matters.

C. Exclusive Economic Zone — EEZ (Arts. 55-75)

- Breadth: Up to 200 NM from baseline.
- Sovereign rights (not sovereignty) over: (a) Exploring and exploiting, conserving and managing living and non-living resources of seabed, subsoil, and superjacent waters; (b) Economic activities (energy from water, currents, winds).
- Jurisdiction over: Marine scientific research; artificial islands and structures; marine environment protection.
- Other States retain: Freedom of navigation, overflight, laying cables/pipelines.
- India's EEZ: ~2.37 million sq km — covers Arabian Sea, Indian Ocean, Bay of Bengal.

🔗 **Case: *Continental Shelf (Libya v. Malta)* (ICJ, 1985)** — ICJ applied equitable principles to delimit EEZ and continental shelf between Libya and Malta — proportionality considered.

D. Continental Shelf (Arts. 76-85)

- Natural prolongation of land territory under sea — up to 200 NM or natural prolongation (up to 350 NM with CLCS approval).
- Sovereign rights over seabed and subsoil resources — non-living + sedentary living organisms.
- Rights AUTOMATIC — no occupation or proclamation needed (Art. 77(3)).
- Coastal State does NOT have sovereignty — only sovereign RIGHTS over resources.

E. High Seas (Arts. 86-120)

- All parts of sea not included in EEZ, territorial sea, or internal waters.
- Art. 89: No State may validly purport to subject any part of the high seas to its sovereignty.
- Six freedoms (Art. 87): Navigation, Overflight, Fishing, Scientific research, Artificial islands, Cables/Pipelines.
- Flag State exclusive jurisdiction over its ships — but universal jurisdiction for piracy.

F. The Area (Arts. 133-191)

- Seabed and ocean floor beyond national jurisdiction.
- Common Heritage of Mankind (Art. 136) — International Seabed Authority administers.
- Resources managed for benefit of mankind — developing States get particular consideration.

IV. Dispute Settlement (Part XV)

- UNCLOS creates compulsory dispute settlement — major innovation.
- ITLOS (International Tribunal for the Law of the Sea) — Hamburg; 21 judges.
- ICJ — available as alternative.
- Annex VII Arbitral Tribunals — most used.
- Seabed Disputes Chamber — for The Area disputes.

🔗 **Case: *Philippines v. China* (Arbitral Tribunal, 2016)** — Tribunal held China's 'nine-dash line' claim incompatible with UNCLOS — China's historic rights in South China Sea have no legal basis. China refused to participate — tribunal still decided.

V. Conclusion

UNCLOS 1982 represents the most successful exercise in international law-making. By establishing clear maritime zones, codifying freedoms of the high seas, creating the CHM principle for The Area, and providing for compulsory dispute settlement, it has brought order to the world's oceans. While challenges remain — South China Sea disputes, climate change impacts on baselines, deep-sea mining governance — UNCLOS remains the foundational framework. India, as a major maritime State, benefits enormously from its EEZ and continental shelf rights under UNCLOS.

Essay B2 — Legal Regime of Airspace: Conventions & Five Freedoms (2024 Q11)



I. Introduction

The legal regime governing airspace is fundamentally different from that of the high seas. While the seas enjoy freedom of navigation, airspace above national territory is subject to complete and exclusive State sovereignty — there is no right of innocent passage for aircraft. The regime has evolved through four major conventions — Paris 1919, Havana 1928, Warsaw 1929, and Chicago 1944 — culminating in the near-universal Chicago Convention that governs international civil aviation today.

■ **Core principle: Complete and exclusive sovereignty over national airspace — Chicago Convention Art. 1 (replaces Paris Convention Art. 1). NO innocent passage for aircraft — unlike ships.**

II. Theoretical Basis of Airspace Sovereignty

- Air does not belong to any State by nature — but the column of air above national territory is subject to State sovereignty by the principle of subjacent territory (what is below = what is above).
- Rationale: Security (aircraft can be weapons); customs and immigration enforcement; economic interests.
- Height limit: Not defined in treaties — outer space begins approximately 100 km (Kármán Line) — above which sovereignty does not extend (Outer Space Treaty 1967).

III. Evolution Through Key Conventions

A. Paris Convention 1919

- First multilateral convention — post-WW1; 27 contracting States (League of Nations members).
- Art. 1: 'Every Power has complete and exclusive sovereignty over the airspace above its territory.'
- Established ICAN (precursor to ICAO).
- No scheduled service without special permission.
- Limitation: European/colonial powers only; excluded non-League members.

B. Havana Convention 1928

- Pan-American equivalent — Western Hemisphere.
- Confirmed sovereignty principle; rules on aircraft nationality and documents.
- Superseded by Chicago for signatories that joined Chicago.

C. Warsaw Convention 1929 (Liability in Air Carriage)

- Specifically addresses LIABILITY in international air carriage — not sovereignty.
- Original: Carrier presumptively liable for passenger death/injury up to specified limits.
- Hague Protocol 1955: Doubled limits. Montreal Convention 1999: Modernised — unlimited liability for death/injury.
- Montreal Convention 1999: Two-tier system — (1) Strict liability up to SDR 113,100 (no fault

needed); (2) Above that — carrier liable unless proves no negligence.

- Airline passenger rights — baggage, delay, cancellation — governed by Montreal 1999.

 *Example: Air India passenger dies in crash — family can claim compensation under Montreal Convention 1999. India is party — no cap applies for death under strict liability tier.*

D. Chicago Convention 1944 — The Current Framework

- Adopted at Chicago Conference (Nov-Dec 1944) — 52 States.
- Full name: Convention on International Civil Aviation.
- Replaced Paris Convention — applies globally (193 ICAO member States).
- Core principles:
 - Art. 1: Complete and exclusive sovereignty over airspace above territory.
 - Art. 2: Territory = land area + territorial waters.
 - Art. 3: Applies to CIVIL aircraft only — State aircraft excluded.
 - Art. 5: Non-scheduled flights have right to fly across territory and make non-traffic stops without prior permission (subject to right to require landing).
 - Art. 6: No scheduled international air service may operate without permission.
 - Art. 12: Each State responsible for enforcing its air traffic rules.
 - ICAO established — UN specialized agency; headquarters Montreal, Canada.
- Annexes 1-19: Technical standards (navigation, airworthiness, accident investigation, etc.).

 **Case: KAL 007 (1983)** — Korean airliner shot down by Soviet jets — led to ICAO amendment: Art. 3 bis added — States shall not use weapons against civil aircraft in flight that endangers persons.

IV. The Five Freedoms of Air

The Chicago Convention itself created only the Two Freedoms Agreement (1st + 2nd freedoms — transit and technical stop). The remaining freedoms (3rd-5th) are negotiated bilaterally through Air Services Agreements (ASAs).

- 1st Freedom: Right to fly over foreign territory without landing (transit).
- 2nd Freedom: Right to make technical stops (refuelling) without traffic rights.
- 3rd Freedom: Carry passengers from home State to foreign State.
- 4th Freedom: Carry passengers from foreign State to home State.
- 5th Freedom: Carry traffic between two foreign States on route starting/ending in home State.

 1st + 2nd Freedoms = International Air Services Transit Agreement 1944 — most States party. 3rd-5th Freedoms = must be negotiated bilaterally. Cabotage (8th/9th freedoms) — domestic routes in foreign State — generally not granted.

V. High Seas and Outer Space Airspace

- Airspace over high seas: NOT subject to any State's sovereignty — aircraft have freedom of overflight.
- Airspace over EEZ: Coastal State has NO sovereignty over airspace above EEZ — only surface and seabed resource rights. Aircraft can fly freely over foreign EEZ.
- Outer space: No State sovereignty — begins at Kármán Line (~100 km). Outer Space Treaty

1967 applies.

VI. Conclusion

The legal regime of airspace represents a carefully constructed balance between sovereign control and commercial necessity. From Paris 1919's first codification to Chicago 1944's near-universal framework, international aviation law has evolved to enable the global aviation industry while preserving States' fundamental right to control their airspace. The Five Freedoms framework — though not creating automatic rights — provides the template for the thousands of bilateral air services agreements that underpin global air travel. India, as one of the world's fastest-growing aviation markets, operates firmly within this framework.

Essay B3 — Legal Regime of Outer Space: Treaties & Principles ★★★★★

I. Introduction

The exploration of outer space — once the exclusive domain of superpowers during the Cold War — has become a global enterprise involving State agencies, private corporations, and international organisations. The legal framework governing outer space is built upon five international treaties negotiated between 1967 and 1979, with the Outer Space Treaty 1967 as the constitutional document. Today, with commercial space launches, Moon landing missions (including India's Chandrayaan-3), and plans for Mars colonisation, space law faces unprecedented challenges.

■ Five Space Treaties: OST 1967 → Rescue 1968 → Liability 1972 → Registration 1976 → Moon Treaty 1979. OST = Constitution of outer space law.

II. Fundamental Principles of Outer Space Law

The following principles, derived from the five treaties and UNGA resolutions, form the corpus of space law:

- 1. Province of All Mankind (OST Art. I): Outer space = province of all mankind; exploration for benefit of all countries regardless of economic/scientific development.
- 2. Non-appropriation (OST Art. II): Outer space, Moon, celestial bodies NOT subject to national appropriation by sovereignty claim, use, or occupation. No State or private entity can own outer space.
- 3. Freedom of Exploration (OST Art. I): All States free to explore outer space without discrimination.
- 4. Peaceful Use (OST Art. IV): No weapons of mass destruction in orbit; Moon exclusively for peaceful purposes.
- 5. State Responsibility for Private Activities (OST Art. VI): States internationally responsible for ALL national space activities — government AND private.
- 6. Liability (OST Art. VII + Liability Convention 1972): Launching State liable for damage caused by space object.
- 7. Jurisdiction (OST Art. VIII): State retains jurisdiction and control over space objects and personnel.
- 8. Environmental Responsibility (OST Art. IX): Avoid harmful contamination of space and Earth.

III. The Five Space Treaties — Detailed Analysis

A. Outer Space Treaty 1967 — Constitution

Negotiated against Cold War backdrop — after Sputnik (1957) and race to Moon. Opened for signature January 27, 1967. 167 parties.

- Art. I: Exploration for benefit of all mankind — freedom of exploration.
- Art. II: Non-appropriation — THE most fundamental rule.
- Art. IV: No WMDs in orbit; Moon = peaceful purposes only.
- Art. VI: State responsibility for national activities — must authorise private operators.
- Art. VII: Launching State = internationally liable for damage.
- Art. VIII: Jurisdiction follows registration — not physical possession.

🏛️ **Case: Outer Space Treaty Art. VI Application** — USA's Commercial Space Launch Act 2015 allows private companies to own space resources — controversial compatibility with OST Art. II (non-appropriation). Ongoing debate in space law.

B. Rescue Agreement 1968

- Astronauts = 'envoys of mankind' — must be assisted regardless of nationality.
- States must render all assistance to distressed astronauts.
- Space objects must be returned to the launching State on request.

📌 *Example: If Indian astronaut (Gaganyaan) encounters distress over Pacific Ocean — any nearby State is obligated to render assistance under Rescue Agreement.*

C. Liability Convention 1972

- Art. II: ABSOLUTE LIABILITY — launching State liable for damage caused by space object on Earth or to aircraft in flight — no need to prove fault.
- Art. III: FAULT-BASED liability — for damage in outer space between two space objects.
- 'Launching State' = State that launches, procures launching, from whose territory launched, or whose facility used.
- Claims procedure: Diplomatic channel to launching State; if no settlement → Claims Commission.

🏛️ **Case: Cosmos 954 (1978)** — Soviet satellite with nuclear reactor crashes in Canada — radioactive debris over Northwest Territories. Canada claimed CAD 6 million under Liability Convention. Settled ex gratia for CAD 3 million — closest real-world application of Liability Convention.

🏛️ **Case: 2009 Iridium-Cosmos Collision** — US Iridium 33 and Russian Cosmos 2251 collide in orbit — first major in-orbit collision. No Liability Convention claim resolved — highlights gap in fault-based space liability regime.

D. Registration Convention 1976

- States must register space objects in national registry AND with UN Secretary-General.
- UN maintains public register — accessible to all.
- Facilitates identification for liability purposes.
- India registers its satellites (IRS, INSAT, GSAT series) and space probes (Chandrayaan, Mangalyaan, Aditya-L1).

E. Moon Treaty 1979

- Extends CHM to Moon and celestial bodies — no national/private appropriation.
- Only 18 ratifications — USA, Russia, China, India NOT parties.
- Near dead-letter — major space powers operating outside its framework.
- Artemis Accords (2020): USA-led alternative — bilateral agreements allowing resource utilization.

IV. Emerging Issues in Space Law

- Space Debris: 27,000+ pieces of tracked debris in orbit — no binding treaty; UN Space Debris Mitigation Guidelines (2007) are voluntary.
- Private/Commercial Space: SpaceX, Blue Origin, Virgin Galactic — regulated under national law;

State remains internationally responsible under OST Art. VI.

- Resource Extraction: US law (2015) and Luxembourg law (2017) allow private ownership of extracted resources — compatibility with OST Art. II debated.
- Mega-constellations: Starlink (5,000+ satellites), Amazon Kuiper — radio frequency interference and space debris concerns.
- Space Tourism: No specific treaty — ICAO jurisdiction up to Kármán Line; OST above.

V. India's Space Law Framework

- OST 1967 ratified (1982); Rescue Agreement ratified; Liability Convention ratified; Registration Convention ratified.
- Moon Treaty NOT ratified.
- Space Activities Bill (draft): Will govern licensing of private space activities — ISRO commercialisation, IN-SPACe (Indian National Space Promotion and Authorisation Centre) established 2020.
- Chandrayaan-3 (2023): First Moon south pole landing — OST Art. VIII — India retains jurisdiction; OST Art. II — cannot claim sovereignty.

VI. Conclusion

The international legal regime of outer space, built around the Outer Space Treaty 1967, reflects Cold War era principles — freedom of exploration, non-militarisation, and the province of all mankind. As the space age enters its commercial phase, with private companies launching satellites, planning Moon mining, and targeting Mars, the existing framework faces stress. The Moon Treaty's failure to attract major space powers shows the limits of progressive treaty-making against national commercial interests. India's Chandrayaan-3 success places it at the forefront of spacefaring nations — making it both a beneficiary of and responsible actor under the current space law framework.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label each section: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — Space Object Falls on State N (DIRECT from 2024 Paper Q15)



Scenario (2024 Q15): Country M launched an object into space for research and experiments. The launch did not go as planned and a portion of the object ended up falling onto the territory of State N. This resulted in loss of lives and property. Is Country M legally responsible for the losses suffered by State N? Provide explanations.

I — Issue

(1) Whether Country M is internationally liable for damage caused by its space object falling on State N's territory. (2) What standard of liability applies. (3) What remedies are available to State N.

R — Rule

- Outer Space Treaty 1967, Art. VII: Each State Party that launches or procures the launching of an object into outer space is internationally liable for damage to another State Party or to its natural or juridical persons by such object or its component parts.
- Liability Convention 1972, Art. I: 'Damage' = loss of life, personal injury, or other impairment of health; or loss of or damage to property of States, persons, or organisations.
- Liability Convention 1972, Art. II: ABSOLUTE LIABILITY — 'A launching State shall be absolutely liable to pay compensation for damage caused by its space object on the surface of the Earth or to aircraft in flight.'
- Liability Convention 1972, Art. III: Fault-based liability for damage in outer space.
- Art. I(c): 'Launching State' = State that launches or procures launching; State from whose territory/facility object launched.
- Art. XII: Compensation determined by principles of justice and equity to provide reparation.
- Art. XIV: Claims submitted through diplomatic channels; Claims Commission if no settlement in 1 year.

🔗 **Case:** *Cosmos 954 Incident (Canada v. USSR, 1978)* — Soviet nuclear satellite crashed in Canada — debris over 124,000 sq km. Canada invoked Liability Convention — absolute liability applied. Settled for CAD 3 million. DEFINITIVE precedent for Art. II absolute liability.

A — Application

Step 1 — Jurisdiction and applicable law: Country M launched the space object — it qualifies as the 'launching State' under Art. I(c) of the Liability Convention 1972. Both OST Art. VII and Liability Convention Art. II apply.

Step 2 — Standard of liability: Since the damage occurred on the SURFACE OF EARTH (State N's territory), Article II of the Liability Convention applies — ABSOLUTE LIABILITY. Country M does NOT need to have been negligent or at fault. The mere fact that its space object caused damage on Earth makes it liable. No exceptions are available for research/experimental launches.

Step 3 — Nature of damage: Loss of lives and property — both constitute 'damage' under Art. I of the Liability Convention. Country M must pay compensation for: (a) Loss of life of victims; (b) Personal injury compensation; (c) Property damage and loss.

Step 4 — Claim procedure: State N should present a claim through diplomatic channels to Country M (Art. IX Liability Convention). If Country M disputes liability or amount, a Claims Commission may be

established (Art. XIV) — composed of one member from each party + a third agreed member.

Step 5 — Defences available to Country M: Under Art. VI Liability Convention — exoneration from ABSOLUTE liability ONLY if damage results from gross negligence or intentional act of the claimant State (State N) — no such facts present here. Country M's 'unplanned' launch is NOT a defence.

C — Conclusion

■ **CONCLUSION: YES** — Country M is **ABSOLUTELY LIABLE** for the damage caused to State N under Liability Convention 1972 Art. II. Absolute liability means fault/negligence need not be proved. Country M must pay full compensation for loss of lives, injury, and property damage. Procedure: State N files diplomatic claim → if unresolved within 1 year → Claims Commission. Precedent: Cosmos 954 (Canada v. USSR, 1978) — settled for CAD 3 million. The 'research and experiment' purpose of the launch provides no exoneration under Art. II.

IRAC 2 — Coastal State Rights in EEZ: Fishing by Foreign Vessel ★★★★★☆

Scenario: State A's fishing vessels are found fishing in the Exclusive Economic Zone (EEZ) of coastal State B — 150 NM from State B's baseline. State A claims this is the high seas and their vessels have freedom of fishing. State B claims exclusive rights. Who is correct?

I — Issue

Whether State A's fishing vessels have a right to fish in State B's EEZ, which is located 150 NM from State B's baseline, or whether State B has exclusive rights over fishing in that zone under UNCLOS 1982.

R — Rule

- UNCLOS 1982, Art. 55: The EEZ is an area beyond and adjacent to the territorial sea, subject to the specific legal regime of Part V.
- UNCLOS 1982, Art. 57: Breadth of EEZ shall not exceed 200 NM from baseline.
- UNCLOS 1982, Art. 56(1)(a): Coastal State has sovereign rights in EEZ for the purpose of EXPLORING AND EXPLOITING, CONSERVING AND MANAGING natural resources — living and non-living — of the waters, seabed, and subsoil.
- UNCLOS 1982, Art. 62: If coastal State does not have capacity to harvest entire allowable catch, it shall give other States access to surplus — only if surplus exists.
- UNCLOS 1982, Art. 73: Coastal State may board, inspect, arrest, and judicially proceed against vessels violating its EEZ laws.
- UNCLOS 1982, Art. 87: Freedom of fishing applies to HIGH SEAS — NOT to EEZ. EEZ is a distinct zone (not high seas).

🏛️ **Case:** *Philippines v. China (Arbitral Tribunal, 2016)* — Tribunal confirmed EEZ sovereign rights — China's interference with Philippine fishing in Philippines' EEZ violated UNCLOS. EEZ ≠ high seas.

A — Application

Step 1 — Location: 150 NM from State B's baseline falls WITHIN State B's EEZ (which extends up to 200 NM). It is NOT the high seas — State A's characterisation is INCORRECT.

Step 2 — State B's rights: Under UNCLOS Art. 56(1)(a), State B has SOVEREIGN RIGHTS over living resources in its EEZ — including fish. These are exclusive rights — no other State may fish in State B's EEZ without State B's permission.

Step 3 — State A's claim: State A's claim that the EEZ is 'high seas' where freedom of fishing applies is LEGALLY WRONG. The EEZ is a distinct zone — not high seas. High seas begin beyond 200 NM (Art. 86).

Step 4 — State A's possible rights: Only if State B has declared a surplus in its allowable catch and allocated access to State A under Art. 62 agreements would State A's vessels have any right to fish. No such facts are present.

Step 5 — State B's enforcement: State B may board, inspect, arrest State A's vessels under Art. 73 UNCLOS. Prompt release required on posting of bond (Art. 73(2)).

C — Conclusion

🟡 **CONCLUSION:** State B is CORRECT. State A's vessels are illegally fishing in State B's EEZ — 150

NM falls within the 200 NM EEZ. State B has exclusive sovereign rights over living resources in its EEZ (UNCLOS Art. 56). Freedom of fishing (Art. 87) applies to HIGH SEAS only — beyond 200 NM. State B may enforce its EEZ laws, arrest the vessels, and impose penalties. State A's fishing vessels should be released promptly on bond (Art. 73(2)). Precedent: Philippines v. China (2016) — EEZ sovereign rights upheld.

QUICK REVISION SHEET — UNIT IV

Critical Numbers — Maritime Zones

Baseline → Territorial Sea: 12 NM (UNCLOS Art. 3)
Baseline → Contiguous Zone: 24 NM (UNCLOS Art. 33)
Baseline → EEZ: 200 NM (UNCLOS Art. 57)
Continental Shelf: up to 200 NM, extended to 350 NM possible (Art. 76)
High Seas: beyond 200 NM (Art. 86)
The Area: seabed beyond national jurisdiction (Art. 1(1))
Innocent Passage: Art. 17-19 UNCLOS (ships only — NOT aircraft)
Hot Pursuit: Art. 111 UNCLOS
6 Freedoms of High Seas: Art. 87 UNCLOS

Critical Numbers — Airspace & Space

Paris Convention: 1919 — first airspace sovereignty codification
Havana Convention: 1928 — Pan-American
Warsaw Convention: 1929 (liability in air carriage)
Chicago Convention: 1944 — current framework; ICAO established
Montreal Convention: 1999 — modern air carriage liability
ICAO Headquarters: Montreal, Canada
Kármán Line: ~100 km — outer space begins

Outer Space Treaty: 1967 (167 parties)
Rescue Agreement: 1968
Liability Convention: 1972 — Art. II = ABSOLUTE liability for Earth damage
Registration Convention: 1976
Moon Treaty: 1979 — 18 ratifications; USA/Russia/China NOT parties
UNISPACE+50: 2018

India Space: Mangalyaan = 2014; Chandrayaan-3 = August 23, 2023; Aditya-L1 = 2023
Cosmos 954 Settlement: CAD 3 million (Canada v. USSR, 1978)

Top Cases — One Liner Each

- North Sea Continental Shelf (ICJ, 1969): Equidistance not customary — equitable principles govern delimitation.
- Corfu Channel (ICJ, 1949): Innocent passage through international straits affirmed.
- Philippines v. China (2016): China's nine-dash line incompatible with UNCLOS — EEZ ≠ high seas.
- ITLOS Advisory Opinion (2011): Sponsoring States bear due diligence obligation for The Area mining.
- Cosmos 954 (1978): Soviet satellite debris in Canada — absolute liability applied — CAD 3 million paid.
- KAL 007 (1983): Shooting down civil aircraft leads to Chicago Art. 3 bis — weapons prohibition.
- Bermuda Agreement (1946): First bilateral air services agreement — template for 5 freedoms

negotiation.

- Lotus Case (PCIJ, 1927): High seas collision jurisdiction — later modified by UNCLOS Art. 97.

Memory Mnemonics

MARITIME ZONES: 'TCC-ECS-A' = Territorial sea, Contiguous zone, Continental shelf, EEZ, Continental shelf extended, High Seas, The Area

6 HIGH SEAS FREEDOMS: 'NOFACS' = Navigation, Overflight, Fishing, Artificial islands, Cables, Scientific research

5 AIR FREEDOMS: 'OTSRB' = Overflight, Technical stop, Send passengers, Receive passengers, Between foreign States

AIRSPACE CONVENTIONS: 'PHWC' = Paris 1919, Havana 1928, Warsaw 1929, Chicago 1944

5 SPACE TREATIES: 'OST-RLR-M' = Outer Space Treaty, Rescue, Liability, Registration, Moon Treaty

INDIA SPACE FACTS: 'MCC-AG-A' = Mangalyaan (2014), Chandrayaan-1/2/3, Gaganyaan (upcoming), Aditya-L1 (2023)

TRAP QUESTIONS

- TRAP 1: 'Is EEZ the same as high seas?' — NO. EEZ (0-200 NM) = coastal State sovereign rights over resources. High seas = beyond 200 NM = freedom for all. EEZ ≠ high seas.
- TRAP 2: 'Do aircraft have innocent passage rights in territorial sea airspace?' — NO. Ships = innocent passage. Aircraft = NO right of passage — complete sovereignty. Need permission (Chicago Art. 6 for scheduled flights).
- TRAP 3: 'Is India a party to the Moon Treaty?' — NO. India ratified OST, Rescue, Liability, Registration — but NOT Moon Treaty 1979.
- TRAP 4: 'What liability standard for space object damaging another State on Earth?' — ABSOLUTE (Liability Convention Art. II). No fault needed. Cosmos 954 = precedent.
- TRAP 5: 'Are all 5 air freedoms automatically granted under Chicago Convention?' — NO. 1st + 2nd = Two Freedoms Agreement. 3rd-5th = bilateral negotiation. Chicago itself does not grant commercial traffic rights.
- TRAP 6: 'Does continental shelf sovereignty include water column?' — NO. Continental shelf = SEABED and SUBSOIL resources only. Water column above continental shelf (beyond territorial sea) = EEZ or high seas rules apply.
- TRAP 7: 'Is the Moon Treaty effective international law?' — PRACTICALLY NO — only 18 ratifications; USA, Russia, China absent. OST 1967 is the real framework.

Last-Minute Checklist

-  UNCLOS zones: Memorise all 7 zones with distances — territorial sea (12), contiguous (24), EEZ (200), continental shelf (200/350), high seas (beyond 200), The Area
-  2024 Q10 (Evolution of Law of Sea): Grotius → Cannon-shot → Hague 1930 → UNCLOS I 1958 → UNCLOS II 1960 → UNCLOS 1982
-  2024 Q11 (Airspace): Paris 1919 → Havana 1928 → Warsaw 1929 (liability only) → Chicago 1944 (current). Chicago Art. 1 = complete sovereignty

-  2024 Q15 (Space liability): Liability Convention Art. II = ABSOLUTE liability on Earth. Country M = liable. Cosmos 954 = cite.
-  Five Freedoms: Name all 5 with one-line description each. 1st + 2nd = automatic (Two Freedoms Agreement). 3rd-5th = bilateral.
-  India space: Chandrayaan-3 = August 23, 2023 = first Moon south pole landing. OST ratified. Moon Treaty NOT ratified.

 2024 PAPER DIRECT HITS FROM THIS UNIT:

Part B Q10: Evolution of Law of the Sea — answered in Essay B1

Part B Q11: Airspace legal framework — answered in Essay B2

Part C Q15: Space object falls on State N — answered in IRAC 1

All three real exam questions fully covered!

— End of Unit IV: Law of the Sea · Airspace · Outer Space —

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PUBLIC INTERNATIONAL LAW

UNIT V — International Organisations

League of Nations · United Nations · ICJ · ICC · WHO · UNESCO · ILO · IMF
· WTO

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	League of Nations — Structure & Failure	6	★★★★★★
PART A — Q2	United Nations — Structure & Purposes	6	★★★★★★
PART A — Q3	UN Security Council — Powers & Veto	6	★★★★★★
PART A — Q4	International Court of Justice (ICJ)	6	★★★★★★
PART A — Q5	International Criminal Court (ICC)	6	★★★★★★
PART A — Q6	WHO — World Health Organisation	6	★★★★★☆
PART A — Q7	UNESCO	6	★★★★★☆
PART A — Q8	ILO, IMF & WTO	6	★★★★★☆
PART B — Q1	ICJ: Powers, Functions & Jurisdiction (2024 Q12)	15	★★★★★★
PART B — Q2	United Nations: Structure, Organs & Role	15	★★★★★★
PART B — Q3	League of Nations vs United Nations (Comparative Essay)	15	★★★★★★
PART C — IRAC 1	ICJ Jurisdiction Problem	10	★★★★★★
PART C — IRAC 2	UNSC Chapter VII Action Problem	10	★★★★★☆
MASTER REVISION	All Orgs, Key Numbers, Cases, Mnemonics, Traps	—	—

UNIT V — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- League of Nations — establishment, structure, failure
- United Nations — Charter, 6 principal organs, purposes & principles
- UN Security Council — composition, powers, Chapter VII, veto
- International Court of Justice (ICJ) — composition, jurisdiction, advisory opinions
- International Criminal Court (ICC) — Rome Statute, crimes, complementarity
- Specialized Agencies: WHO, UNESCO, ILO, IMF, WTO

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature, Codification → Unit I
- State Recognition, Succession, Territory → Unit II
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- Law of Sea, Airspace, Outer Space → Unit IV

📍 PREDICTED EXAM QUESTIONS (2025)

- FROM 2024 PAPER Q12 (Part B): Powers, functions and jurisdiction of ICJ — DIRECTLY answered in Essay B1
- MOST LIKELY Part B: United Nations — structure and role; League vs UN comparison
- VERY LIKELY Part A: ICC (Rome Statute, complementarity); UN Security Council (veto, Chapter VII)
- LIKELY Part A: WHO (IHR 2005); UNESCO; ILO (tripartite); WTO (DSB)

1 2 3 4 CRITICAL NUMBERS — MASTER LIST

LEAGUE OF NATIONS: Established 1919 (Versailles Treaty); Dissolved 1946
UN: Established 1945 (San Francisco); Charter in force October 24, 1945 — UN Day
UN Original members: 51 States; Current members: 193 States
UN HQ: New York City
UNSC: 15 members — 5 Permanent (P5: USA, UK, France, Russia, China) + 10 Elected (2-year terms)
UNGA: All 193 members; each State = 1 vote
ICJ: 15 judges; 9-year terms (staggered); HQ The Hague, Netherlands
ICJ: No two judges of same nationality; elected by UNGA + UNSC
ICJ Statute Art. 36(2): Optional clause — States accept compulsory jurisdiction
ICC: Established by Rome Statute 1998; entered into force 2002; HQ The Hague
ICC: 18 judges; 4 crimes: Genocide, Crimes against humanity, War crimes, Aggression
ICC: Complementarity principle — ICC acts only when States unable/unwilling
India: NOT a party to Rome Statute (ICC)
USA, Russia, China: NOT parties to ICC

SPECIALIZED AGENCIES:
WHO: Established 1948; HQ Geneva; 194 members; IHR (International Health Regulations) 2005

UNESCO: Established 1945; HQ Paris; 'Education, Science, Culture'

ILO: Established 1919 (Versailles); HQ Geneva; Tripartite structure; Nobel Peace Prize 1969

IMF: Established 1944 (Bretton Woods); HQ Washington DC; SDR (Special Drawing Rights)

WTO: Established 1995 (replaced GATT 1947); HQ Geneva; 164 members; DSB



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — League of Nations ★★★★★

Definition

The League of Nations was the first universal international organisation for the maintenance of peace and security, established by the Covenant (Part I of the Treaty of Versailles, 1919). It operated from 1920 to 1946, when it was dissolved and replaced by the United Nations.

Structure

- Assembly: All member States — each had one vote. Met annually. Considered general questions.
- Council: Great Powers (permanent members: UK, France, Italy, Japan) + 4 elected members. Primary responsibility for peace.
- Secretariat: Administrative body — headed by Secretary-General. Geneva, Switzerland.
- Permanent Court of International Justice (PCIJ): Judicial arm — predecessor to ICJ.
- International Labour Organisation (ILO): Created simultaneously — still exists today.

Why the League Failed

1. USA never joined: US Senate rejected Versailles Treaty (1920) — League's chief architect (President Wilson) humiliated. No USA = No credibility.
2. Unanimity rule: Council decisions required unanimity — any member could veto action. Paralysed collective security.
3. No standing army: League had no military force — depended on member States to contribute — rarely happened.
4. Major power aggression ignored: Japan invaded Manchuria (1931), Italy invaded Ethiopia (1935-36), Germany remilitarised Rhineland (1936) — League condemned but took no effective action.
5. USSR expelled (1939) after invading Finland — but too late to matter.
6. Germany, Japan, Italy withdrew — League powerless against Axis powers.
7. Outbreak of WW2 (1939) — League's complete failure.

 League's fatal flaws: No USA + Unanimity rule + No military force = Could not enforce collective security.

 *Example: Ethiopia (Abyssinia) Crisis 1935-36: Italy invaded Ethiopia — League imposed economic sanctions but excluded oil — Italy conquered Ethiopia. League's paralysis demonstrated.*

 **Case: Eastern Carelia Case (PCIJ, 1923)** — PCIJ held it could not give advisory opinion on matter where one party (Soviet Russia, non-League member) did not consent — showed League's jurisdictional limits.

 **EXAM TIP:** League vs UN comparison is a HIGH-PROBABILITY exam question. Key differences: USA in UN (not League); UNSC veto replaces unanimity; UN has Chapter VII enforcement; ICJ replaces PCIJ. Established: League 1919, UN 1945.

Q2 — United Nations — Structure & Purposes ★★★★★

Definition

The United Nations (UN) is the premier universal international organisation established by the UN Charter (signed San Francisco, June 26, 1945; entered into force October 24, 1945 — UN Day). It has 193 member States and is headquartered in New York City.

Purposes (Art. 1 UN Charter)

- 1. Maintain international peace and security — take effective collective measures for prevention and removal of threats.
- 2. Develop friendly relations among nations based on equal rights and self-determination of peoples.
- 3. Achieve international cooperation in solving economic, social, cultural, humanitarian problems; promote human rights.
- 4. Centre for harmonising actions of nations in attaining these common ends.

Six Principal Organs (Art. 7 Charter)

- 1. General Assembly (UNGA): All 193 members; each = 1 vote; Art. 18 — important questions require 2/3 majority; ordinary questions = simple majority. Meets annually (September). Plenary deliberative body.
- 2. Security Council (UNSC): 15 members; 5 Permanent (P5) + 10 non-permanent (2-year terms). Primary responsibility for peace and security. Chapter VII = binding enforcement powers.
- 3. Economic and Social Council (ECOSOC): 54 members; coordinates economic, social, humanitarian work of UN and specialised agencies.
- 4. Trusteeship Council (TC): Supervised non-self-governing territories — suspended operations 1994 when Palau (last trust territory) became independent.
- 5. International Court of Justice (ICJ): Principal judicial organ — 15 judges; The Hague.
- 6. Secretariat: Administrative organ — headed by Secretary-General (Art. 97). Current: António Guterres (Portugal) — since 2017.

Principles (Art. 2 UN Charter)

- Sovereign equality of all members (Art. 2(1)).
- Good faith performance of Charter obligations (Art. 2(2)).
- Peaceful settlement of disputes (Art. 2(3)).
- Prohibition of threat or use of force (Art. 2(4)) — foundational rule of modern int'l law.
- Non-intervention in domestic affairs (Art. 2(7)) — but not applicable to Chapter VII enforcement.

 Art. 2(4) UN Charter: Prohibition on threat or use of force = cornerstone of modern international law. Breach = act of aggression. Exceptions: Self-defence (Art. 51); UNSC Chapter VII authorisation.

 Example: India joined UN as original member in 1945 — one of 51 founding members. India's seat in UNSC: India has served as non-permanent member multiple times (most recently 2021-2022).

⚖️ **Case:** *Certain Expenses of the United Nations (ICJ Advisory Opinion, 1962)* — ICJ held UNGA has power to authorise peacekeeping expenses — confirmed broad powers of UNGA even in peace and security matters.

💡 **EXAM TIP:** 6 organs: 'GASTSI' = General Assembly, (Security Council), Trusteeship Council, Secretariat, ICJ. Or simply: GA, SC, ECOSOC, TC, ICJ, Secretariat. Art. 2(4) = prohibition on force = MOST important Charter provision.

Q3 — UN Security Council — Powers & Veto ★★★★★

Definition

The UN Security Council (UNSC) is the principal organ of the UN responsible for the maintenance of international peace and security. It is the only UN organ whose decisions are **BINDING** on all member States under Article 25 of the UN Charter.

Composition

- 15 members: 5 Permanent (P5) + 10 Non-Permanent (elected by UNGA for 2-year terms; not immediately re-eligible).
- P5: USA, United Kingdom, France, Russian Federation, China (People's Republic).
- Non-permanent seats: Distributed by regional groups — Africa (3), Asia-Pacific (2), Latin America (2), Western Europe (2), Eastern Europe (1).

Voting & Veto

- Procedural matters: 9 of 15 votes — P5 abstention or absence does NOT constitute veto.
- Substantive matters: 9 of 15 votes **INCLUDING** concurring votes of ALL P5 (Art. 27(3)).
- VETO: Any P5 member's negative vote = veto — blocks the resolution. No substantive UNSC action possible if any P5 vetoes.
- Abstention by P5 ≠ Veto on substantive matters — controversial but established practice (see: UNSC Resolution 1973 on Libya — Russia/China abstained but did not veto).

 Veto power: ONE P5 negative vote = VETO. Paralyzes UNSC. Cold War era: USSR/Russia and USA frequently vetoed each other's resolutions. India seeks permanent membership + veto reform.

Powers Under Chapter VI & VII

- Chapter VI (Pacific Settlement): UNSC may investigate, recommend procedures for peaceful settlement — NOT binding on parties.
- Chapter VII (Action w.r.t. Threats to Peace): If UNSC determines threat to peace, breach of peace, or act of aggression (Art. 39):
 - Art. 40: Provisional measures — call for ceasefire, withdrawal.
 - Art. 41: Non-military measures — economic sanctions, severance of diplomatic relations, communications embargo.
 - Art. 42: Military measures — air, sea, land operations — when Art. 41 insufficient.
- Chapter VII resolutions **BINDING** on all UN members (Art. 25).

 *Example: UNSC Resolution 1368 (2001): After 9/11 attacks — UNSC determined it was threat to peace, authorised use of force against Al-Qaeda/Taliban — basis for USA-led Afghanistan intervention.*

 *Example: UNSC Resolution 1973 (2011): Libya — authorised 'all necessary measures' to protect civilians — NATO military intervention. Russia/China abstained; did not veto.*

 **Case: Nicaragua v. USA (ICJ, 1986)** — UNSC was unable to act due to USA veto — Nicaragua brought case to ICJ. ICJ held it had jurisdiction — UNSC political paralysis did not deprive ICJ of

jurisdiction over legal questions.

⚖️ **Case: *Lockerbie Case (ICJ, 1992)*** — Libya challenged UNSC Resolution 748 (sanctions) before ICJ. ICJ held: in conflict between ICJ Statute and UNSC Chapter VII resolution — Charter Art. 103 prevails — UNSC resolution overrides treaty obligations.

💡 **EXAM TIP:** Chapter VI = Peaceful; Chapter VII = BINDING enforcement. Veto = P5 negative vote. Art. 25 = UNSC decisions binding. Art. 103 = UN Charter prevails over other treaties. India = UNSC reform advocate — 'G4' grouping (India, Germany, Japan, Brazil) seeking permanent seats.

Q4 — International Court of Justice (ICJ) ★★★★★

Definition

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations (UN Charter Art. 92) and the world's primary international court. It settles legal disputes between States and gives advisory opinions on legal questions. HQ: Peace Palace, The Hague, Netherlands.

Composition

- 15 judges elected by UNGA and UNSC voting simultaneously — require absolute majority in both.
- 9-year terms — staggered (5 elected every 3 years).
- No two judges of the same nationality.
- Independence: Judges serve in personal capacity — not as representatives of their States.
- Ad hoc judges: If a party has no judge of its nationality on the bench, it may appoint one ad hoc judge.
- Current President: Nawaf Salam (Lebanon) — since February 2024.

Jurisdiction — Contentious Cases

- ONLY States may be parties (Art. 34 ICJ Statute) — individuals, corporations, NGOs CANNOT bring cases.
- Jurisdiction is CONSENSUAL — Court has jurisdiction only if both parties consent.
- Four bases of jurisdiction:
 - 1. Special Agreement (Compromis): Both States agree to submit a specific dispute.
 - 2. Treaty Clause: Treaty includes clause conferring ICJ jurisdiction.
 - 3. Optional Clause (Art. 36(2)): States make declaration accepting compulsory jurisdiction for disputes with other States that have made similar declarations. 74 States have accepted.
 - 4. Forum Prorogatum: Jurisdiction accepted after case filed — by conduct.

Advisory Jurisdiction

- Only UN organs and specialised agencies authorised by UNGA can request advisory opinions (Art. 65 ICJ Statute).
- Advisory opinions NOT legally binding — but carry great legal authority.
- Examples: Nuclear Weapons Advisory Opinion (1996); Kosovo Independence (2010); Wall in Palestinian Territory (2004); Chagos Islands (2019).

Limits of ICJ

- No compulsory jurisdiction — State consent required.
- No enforcement mechanism — UNSC can enforce ICJ decisions (Art. 94 Charter) but veto power prevents this.
- Cannot try individuals — only States (ICC handles individuals).
- Advisory opinions not binding.

🟡 Art. 36(2) — Optional Clause: States accepting compulsory ICJ jurisdiction. India HAS NOT made Optional Clause declaration — India accepts ICJ jurisdiction only by special agreement or treaty.

📌 *Example: Nicaragua v. USA (1986): USA withdrew Optional Clause declaration after ICJ accepted jurisdiction. USA did not participate in merits phase — ICJ proceeded in default and awarded \$17 billion against USA.*

⚖️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — USA's withdrawal of optional clause declaration after case filed was too late — ICJ retained jurisdiction. Held USA violated int'l law — ordered reparations. USA vetoed UNSC enforcement.

⚖️ **Case: *Nuclear Weapons Advisory Opinion (ICJ, 1996)*** — ICJ advised: use or threat of nuclear weapons generally contrary to int'l law — but could not definitively rule on extreme self-defence scenario. Classic advisory opinion.

⚖️ **Case: *Legal Consequences of Construction of a Wall (ICJ, 2004)*** — Israel's wall in Palestinian territories violates int'l law — advisory opinion. Not binding but politically significant.

💡 **EXAM TIP: ICJ vs ICC: ICJ = States only, civil disputes + advisory opinions. ICC = individuals, criminal liability. ICJ HQ = The Hague. ICC HQ = The Hague. Both in same city — different institutions. India: ICJ Statute party (via UN) but NOT ICC Rome Statute party.**

Q5 — International Criminal Court (ICC) ★★★★★

Definition

The International Criminal Court (ICC) is a permanent international court that tries individuals (not States) for the most serious crimes of international concern. It was established by the Rome Statute (adopted July 17, 1998; entered into force July 1, 2002). HQ: The Hague, Netherlands. 124 State parties.

Crimes under Rome Statute (Art. 5)

- 1. Genocide (Art. 6): Acts committed with intent to destroy, in whole or in part, a national, ethnical, racial, or religious group — killing, causing serious bodily/mental harm, conditions of destruction, imposing birth prevention, forcible transfer of children.
- 2. Crimes Against Humanity (Art. 7): Widespread or systematic attack directed against any civilian population — murder, extermination, enslavement, deportation, torture, rape, apartheid, enforced disappearance, etc.
- 3. War Crimes (Art. 8): Grave breaches of Geneva Conventions; other serious violations of laws of war — both international and non-international armed conflicts.
- 4. Crime of Aggression (Art. 8 bis, added by Kampala Amendments 2010; entered into force 2018): Planning, preparing, initiating, executing an act of aggression by a person in leadership position.

■ ICC Rome Statute Art. 5: FOUR crimes — Genocide, Crimes Against Humanity, War Crimes, Aggression. 'GCWA' — remember these four only.

Key Principles

- Complementarity (Art. 17): ICC acts only when national courts are UNABLE or UNWILLING to genuinely investigate/prosecute. ICC is court of LAST RESORT — not first resort.
- No immunity (Art. 27): Official capacity (Head of State, government minister) NO defence before ICC.
- No prescription: No statute of limitations for ICC crimes.
- Non-retroactivity (Art. 11): ICC jurisdiction only for crimes committed AFTER Rome Statute entered into force (July 1, 2002).
- Individual criminal responsibility (Art. 25): Only individuals — not States — tried before ICC.

Structure

- 18 judges — elected by State Parties Assembly; 9-year non-renewable terms.
- Presidency; Pre-Trial Division; Trial Division; Appeals Division.
- Office of the Prosecutor: Independent — investigates and prosecutes.
- Registry: Administrative arm.

Limitations of ICC

- Major powers NOT parties: USA, Russia, China, India — NOT parties to Rome Statute.

- African bias criticism: Most ICC cases have involved African defendants — AU called for mass withdrawal.
- No police force: Depends on State cooperation for arrest — many fugitives remain at large.
- UNSC referral: Non-party States' situations can be referred to ICC by UNSC (Chapter VII) — but USA, Russia, China can veto such referrals.

📌 *Example: Omar Al-Bashir (Sudan): ICC issued arrest warrants for sitting President of Sudan for genocide in Darfur (2009, 2010) — first sitting Head of State indicted by ICC. Sudan not ICC party — UNSC referred situation. Al-Bashir evaded arrest for years; Sudan surrendered him after his removal (2019).*

📌 *Example: Vladimir Putin (Russia): ICC issued arrest warrant (March 2023) for war crimes in Ukraine — deportation of Ukrainian children. Russia not party — Russia rejected warrant.*

📌 **Case: Prosecutor v. Thomas Lubanga Dyilo (ICC, 2012)** — First ever ICC conviction — Congolese warlord convicted of war crime of conscripting/enlisting child soldiers. Sentenced to 14 years — landmark ICC case.

📌 **Case: Prosecutor v. Al-Bashir (ICC, 2009-10)** — Arrest warrants for Sudan's President — first sitting Head of State indicted by ICC. Art. 27 — no immunity for official capacity. Demonstrated ICC's reach.

💡 **EXAM TIP: ICJ vs ICC: ICJ = States, civil/territorial disputes. ICC = Individuals, 4 criminal offences. Complementarity = ICC is LAST RESORT. India not ICC party. Lubanga = first conviction. Putin = current arrest warrant (2023).**

Q6 — World Health Organisation (WHO) ★★☆☆☆

Definition

The World Health Organisation (WHO) is the UN specialised agency responsible for international public health. Established April 7, 1948 (World Health Day). HQ: Geneva, Switzerland. 194 member States — the highest membership of any UN specialised agency.

Key Points

- Constitution (1948): WHO's founding document — defines health as 'a state of complete physical, mental and social well-being and not merely the absence of disease or infirmity.'
- Structure: World Health Assembly (supreme decision-making body — all 194 members, meets annually); Executive Board (34 members); Secretariat (headed by Director-General).
- Current DG: Dr. Tedros Adhanom Ghebreyesus (Ethiopia) — since 2017.
- Functions: Setting global health standards; coordinating responses to health emergencies; supporting research; technical assistance to developing countries.
- International Health Regulations (IHR) 2005: Binding on all 194 WHO members — requires States to report disease outbreaks of international concern to WHO within 24-48 hours; limits on travel/trade restrictions.
- Public Health Emergency of International Concern (PHEIC): Declared by WHO DG — triggers international response. Examples: H1N1 (2009), Ebola (2014), Zika (2016), COVID-19 (2020).

 IHR 2005 — International Health Regulations: Legally binding on 194 States. Notification of PHEIC within 24-48 hours. Governs global pandemic response — relevant after COVID-19.

 *Example: COVID-19 (2020): WHO declared PHEIC on January 30, 2020 and pandemic on March 11, 2020. IHR 2005 framework — States obligated to report, cooperate. India locked down by March 25, 2020.*

 **Case:** *WHO Advisory Opinion on Legality of Nuclear Weapons (ICJ, 1996)* — WHO asked ICJ for advisory opinion on nuclear weapons and health. ICJ held WHO lacked authority to request this opinion — only UNGA/UNSC could ask on this topic. Shows limits of specialised agency authority.

 **EXAM TIP:** WHO facts: 1948 established; Geneva; 194 members (highest); IHR 2005 = binding. PHEIC = emergency declaration. COVID-19 declared pandemic March 11, 2020. Health definition from WHO Constitution = classic exam question.

Definition

UNESCO (United Nations Educational, Scientific and Cultural Organisation) is a UN specialised agency promoting peace and security through international cooperation in education, science, culture, and communication. Established November 16, 1945; HQ: Paris, France. 194 member States.

Key Points

- Constitution (1945): 'Since wars begin in the minds of men, it is in the minds of men that the defences of peace must be constructed.' — UNESCO's founding philosophy.
- Structure: General Conference (all members, every 2 years); Executive Board (58 members); Secretariat (headed by Director-General — currently Audrey Azoulay, France, since 2017).
- Functions: Promotes universal education (Education for All); scientific cooperation; cultural heritage protection; press freedom and media development.
- World Heritage Sites: UNESCO designates natural and cultural sites of 'outstanding universal value' — 1,199 sites in 168 countries (as of 2023).
- India's World Heritage Sites: 42 sites including Taj Mahal, Qutb Minar, Ajanta Caves, Hampi, Kaziranga National Park, Hoysala temples (2023).
- Memory of the World Programme: Preserves significant documentary heritage.
- Conventions: Convention on the Means of Prohibiting Illicit Import/Export of Cultural Property (1970); Convention for Safeguarding Intangible Cultural Heritage (2003).

 UNESCO Constitution opening: 'Wars begin in the minds of men — defences of peace must be constructed in minds of men.' = Classic exam quote. World Heritage = 1,199 sites globally; India = 42 sites.

 *Example: USA withdrew from UNESCO in 2017 (rejoined 2023) citing anti-Israel bias. Palestine's admission to UNESCO (2011) triggered US funding cut under US law. Shows political dynamics of specialised agencies.*

 **EXAM TIP:** UNESCO: 'Education, Science, Culture' = ESC. Paris HQ. 1945 established. World Heritage Sites = UNESCO. India = 42 World Heritage Sites. Constitution quote = 'Wars begin in minds of men' — examiners love this.

Q8 — ILO, IMF & WTO ★★★★★

ILO — International Labour Organisation

ILO is the UN specialised agency for labour standards and decent work. OLDEST specialised agency — established 1919 (Part XIII, Treaty of Versailles), same year as League of Nations. HQ: Geneva. 187 member States. Won Nobel Peace Prize 1969.

- Unique structure: TRIPARTITE — each member State represented by 3 delegates: 2 Government + 1 Employer + 1 Worker (Trade Union). Only international organisation where non-State actors have voting rights.
- International Labour Conference (ILC): General Assembly equivalent — meets annually; adopts Conventions and Recommendations.
- Governing Body: Executive body — 56 members (28 government, 14 employer, 14 worker).
- Core Conventions (ILO Declaration 1998 — Fundamental Principles): Freedom of association & collective bargaining; elimination of forced labour; abolition of child labour; elimination of discrimination in employment.
- India and ILO: India founding member (1919). India's Labour Codes (2019-20) aimed at simplifying 44 central labour laws — influenced by ILO standards.

 *Example: ILO Convention 169 (Indigenous Peoples): International standard for indigenous workers' rights. India has NOT ratified this convention.*

IMF — International Monetary Fund

IMF is the UN specialised agency promoting international monetary cooperation, exchange rate stability, and economic growth. Established 1944 (Bretton Woods Conference, New Hampshire, USA). HQ: Washington D.C. 190 member States.

- Established alongside World Bank — 'Bretton Woods institutions' or 'twin sisters'.
- Special Drawing Rights (SDR): IMF's unit of account — basket of 5 currencies (USD, EUR, GBP, CNY, JPY). Allocated to members as reserves.
- Voting: Quota-based system — larger economies have more votes (weighted voting). USA has largest quota — effective veto on major decisions.
- Functions: Surveillance of member economies; financial assistance (balance of payments support); technical assistance and training.
- Conditionality: IMF loans come with policy conditions (austerity, structural reforms) — controversial for developing countries.
- India and IMF: India borrowed from IMF multiple times (1991 balance of payments crisis — turned to IMF; reforms followed). Currently India is a creditor country — lends to IMF.

 *Example: 1991 India economic crisis: India pledged gold reserves to Bank of England as collateral to secure IMF loan — triggered liberalisation reforms under PM Narasimha Rao/FM Manmohan Singh.*

WTO — World Trade Organisation

WTO is the international organisation regulating global trade. Established January 1, 1995 — replaced GATT (General Agreement on Tariffs and Trade, 1947). HQ: Geneva, Switzerland. 164

member States (India founding member 1995).

- GATT 1947: Post-WW2 trade framework — multilateral rules for tariff reduction and non-discrimination. Succeeded by WTO.
- Core Principles: Most-Favoured Nation (MFN) — non-discrimination between trading partners; National Treatment — imported goods treated same as domestic.
- Structure: Ministerial Conference (every 2 years — supreme body); General Council; Dispute Settlement Body (DSB).
- Dispute Settlement Body (DSB): WTO's most powerful feature — compulsory, binding dispute resolution. Panels → Appellate Body → Arbitration. Decisions binding.
- Agreements: GATT (goods); GATS (services); TRIPS (intellectual property); SPS Agreement; TBT Agreement.
- India and WTO: India founding member; active participant — has brought and defended many cases. India protects Public Distribution System (food security) — negotiated Peace Clause in Bali (2013).

 *Example: USA-India WTO dispute on solar panels: USA challenged India's domestic content requirement under National Solar Mission — WTO Panel ruled against India (2016). India appealed.*

 **Case: India-Agricultural Products (WTO DS430)** — Japan challenged India's import restrictions on poultry/eggs after avian flu — WTO panel ruled India's restrictions exceeded SPS Agreement standards.

 **EXAM TIP:** ILO = Tripartite (Government + Employer + Worker) + 1919. IMF = Bretton Woods 1944 + SDR + Washington DC. WTO = 1995, replaced GATT 1947, DSB = binding disputes + Geneva. Mnemonic: 'ILO is OLD (1919), IMF is MONEY (Bretton Woods), WTO is TRADE (1995).'



LEAGUE OF NATIONS vs UNITED NATIONS — MASTER COMPARISON

BASIS	LEAGUE OF NATIONS	UNITED NATIONS
Established	1919 (Versailles Treaty); operative 1920	1945 (UN Charter, San Francisco); operative Oct 24, 1945
Dissolved	1946	Still in existence
Membership	~63 members (peak); USA never joined	193 members — near universal
HQ	Geneva, Switzerland	New York City, USA
Founding document	Covenant (Part I, Versailles Treaty)	UN Charter (separate, comprehensive document)
Principal Organs	Assembly + Council + Secretariat + PCIJ + ILO	6 organs: GA, UNSC, ECOSOC, TC, ICJ, Secretariat
Decision-making	Unanimity rule — any member could veto (Council)	UNSC: P5 veto only; UNGA: majority/2/3 voting
Enforcement	No standing army; no binding enforcement	Chapter VII: binding military + non-military measures
Court	PCIJ (Permanent Court of Int'l Justice)	ICJ (International Court of Justice)
Collective Security	Failed — Manchuria, Ethiopia, WW2	Mixed — Korea, Gulf War, Libya; but veto limits
USA	Never a member	Founding member; permanent UNSC seat
USSR/Russia	Expelled 1939	Founding member; permanent UNSC seat
Individuals	Not addressed	ICC (Rome Statute 1998) tries individuals
Human Rights	Not expressly addressed	UDHR 1948; ICCPR; ICESCR; Human Rights Council
Why it failed	No USA + Unanimity + No military force + Major power defiance	Reformed — but UNSC veto remains major limitation



SPECIALISED AGENCIES — QUICK REFERENCE TABLE

Agency	Est.	HQ	Key Function	India Status
ILO	1919	Geneva	Labour standards; tripartite structure; Core Conventions	Founding member
FAO	1945	Rome	Food and agriculture; food security	Member
UNESCO	1945	Paris	Education, Science, Culture; World Heritage Sites	Member
WHO	1948	Geneva	Global public health; IHR 2005; PHEIC declarations	Member
IMF	1944	Washington DC	Monetary cooperation; balance of payments; SDR	Member
World Bank	1944	Washington DC	Development finance; poverty reduction	Member
WTO	1995 *	Geneva	International trade rules; DSB; MFN + National Treatment	Founding member
ICAO	1944	Montreal	Civil aviation standards; Chicago Convention	Member
ITLOS	1996	Hamburg	Law of the Sea disputes; UNCLOS	Member
IAEA	1957	Vienna	Atomic energy; nuclear non-proliferation	Member

* WTO replaced GATT (1947)



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Use headings. 3+ cases. Conclude with legal/constitutional basis. Time: 20-22 min.

Essay B1 — ICJ: Powers, Functions & Jurisdiction (Direct: 2024 Q12)



I. Introduction

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations, established by the UN Charter (Art. 92) and governed by the Statute of the ICJ (annexed to the Charter). It represents the culmination of centuries of effort to establish a permanent international court capable of peacefully resolving disputes between States. Situated at the Peace Palace in The Hague, Netherlands, the ICJ exercises both contentious jurisdiction (deciding disputes between States) and advisory jurisdiction (delivering opinions to UN organs and specialised agencies).

📌 ICJ = Principal judicial organ of UN (Art. 92 Charter). Only States may be parties (Art. 34 Statute). ALL UN members automatically parties to ICJ Statute.

II. Composition and Organisation

- 15 independent judges — elected for 9-year renewable terms by UNGA and UNSC simultaneously; require absolute majority in both chambers.
- Staggered elections: 5 judges elected every 3 years — ensures continuity.
- No two judges of same nationality — ensures geographic diversity.
- Judges serve in personal capacity — not as State representatives.
- Chambers: ICJ may sit in full court or form chambers of 3+ judges for specific cases (Art. 26-29).
- Ad hoc judges (Art. 31): Party without a national on bench may appoint one ad hoc judge — to ensure at least one judge familiar with State's legal system.
- President: Elected by judges from among themselves for 3-year term. Casts deciding vote in tie.
- Quorum: 9 judges (Art. 25).

III. Contentious Jurisdiction — Disputes Between States

The ICJ's contentious jurisdiction (Art. 36, ICJ Statute) is the power to decide legal disputes submitted to it by States. This jurisdiction is STRICTLY CONSENSUAL — no State can be brought before the ICJ without its consent.

Basis 1 — Special Agreement / Compromis (Art. 36(1))

- Both States conclude a special agreement (compromis) submitting a specific dispute to ICJ.
- Clearest and most common basis for contested cases.

📌 *Example: Gabcikovo-Nagymaros (Hungary v. Slovakia, ICJ, 1997) — submitted by special agreement.*

Basis 2 — Treaty Clause (Art. 36(1))

- Treaty between States contains a clause conferring ICJ jurisdiction for disputes arising under that treaty.
- Hundreds of bilateral and multilateral treaties include ICJ dispute clauses.

📌 *Example: Nicaragua v. USA (1986) — Nicaragua invoked FCN Treaty (Friendship, Commerce, Navigation) with USA as jurisdictional basis.*

Basis 3 — Optional Clause / Compulsory Jurisdiction (Art. 36(2))

- States may file declarations accepting ICJ's compulsory jurisdiction over disputes with other States that have made similar declarations.
- 74 States have filed Optional Clause declarations (as of 2024) — including UK, India (until India withdrew its declaration in 1974).
- Declarations may include reservations — limiting scope (time, subject matter, reciprocity).
- India's current status: India has NOT made an Optional Clause declaration — ICJ jurisdiction only by special agreement or treaty clause.

🔗 **Case: *Nicaragua v. USA (ICJ, 1986)*** — USA filed Optional Clause declaration — Nicaragua invoked it. USA attempted to withdraw declaration after case filed — ICJ held: minimum 6-month notice required; cannot withdraw retroactively. ICJ retained jurisdiction despite USA's non-participation.

Basis 4 — Forum Prorogatum (Art. 38(5))

- Defendant State accepts jurisdiction after case is filed — by conduct (participating in proceedings without objection) or express statement.

IV. Admissibility Conditions

- Diplomatic protection: Individual claims must be espoused by State — national must have exhausted local remedies.
- Continuous nationality: Claimant must be national of espousing State from injury to date of judgment.
- No moot cases: Dispute must be live — not hypothetical.

🔗 **Case: *Nottebohm (ICJ, 1955)*** — Liechtenstein lacked genuine link with Nottebohm — claim inadmissible. Admissibility conditions strictly applied.

V. Advisory Jurisdiction (Art. 65 ICJ Statute)

The ICJ may give advisory opinions on any legal question at the request of the UN General Assembly, Security Council, or other UN organs/specialised agencies authorised by UNGA.

- Advisory opinions are NOT binding — but carry high legal authority.
- Discretionary: ICJ may decline to give opinion if not appropriate (e.g., lack of authority — WHO Nuclear Weapons case).
- Significant advisory opinions:
 - Nuclear Weapons (1996): Use/threat generally contrary to int'l law — but no conclusive ruling on extreme self-defence.
 - Kosovo (2010): Declaration of independence not illegal under int'l law.
 - Wall in Palestinian Territory (2004): Israel's wall violates int'l law.
 - Chagos Islands (2019): UK's administration of Chagos Islands unlawful — must end decolonisation process.
 - Obligations of States regarding Climate Change (2024): States have legally binding obligations to prevent climate change — landmark.

VI. Applicable Law (Art. 38 ICJ Statute)

- ICJ applies: Treaties; International custom; General principles of law; Judicial decisions; Writings

of publicists; Equity (if both parties agree).

- Art. 38 is the authoritative list of sources of international law — as noted in Unit I.
- Art. 59: ICJ decisions binding only between parties to that case — no precedent doctrine.

VII. Procedure

- Written phase: Memorial (applicant) → Counter-memorial (respondent) → Reply → Rejoinder.
- Oral phase: Public hearings — States appear through agents and counsel.
- Provisional measures (Art. 41): ICJ may indicate interim measures to preserve rights of parties pending judgment. NOW BINDING (LaGrand case, ICJ, 2001).
- Judgment: Binding on parties (Art. 94 Charter); final; no appeal — only revision on new fact (Art. 61).

VIII. Enforcement

- Art. 94 Charter: Party failing to comply with judgment — other party may have recourse to UNSC.
- BUT: UNSC enforcement subject to P5 veto — USA vetoed enforcement of Nicaragua judgment.
- Practical compliance: States generally comply with ICJ judgments — reputation and reciprocity incentives.

🔪 **Case: LaGrand Case (*Germany v. USA, ICJ, 2001*)** — ICJ held provisional measures are BINDING — USA had violated order not to execute LaGrand brothers pending hearing. Landmark case on Art. 41 provisional measures.

🔪 **Case: Avena Case (*Mexico v. USA, ICJ, 2004*)** — ICJ ordered USA to review convictions of 51 Mexican nationals denied consular access (VCCR Art. 36). USA failed to comply — Mexico brought proceedings. Ongoing enforcement issue.

IX. Evaluation and Conclusion

The ICJ occupies a unique position as the world's primary international court — combining universal membership (through UN), a distinguished bench, and a comprehensive jurisdiction framework. Its limitations — consensual jurisdiction, lack of enforcement, inability to hear individual cases — reflect the realities of a sovereign State system. Yet its contribution to the development of international law through judgments and advisory opinions is immeasurable. Cases like *Nicaragua v. USA*, *North Sea Continental Shelf*, and the *Wall Advisory Opinion* have shaped foundational principles of international law. For India — though not under Optional Clause jurisdiction — the ICJ remains the preferred forum for major interstate disputes.

Essay B2 — United Nations: Structure, Organs & Role in Peace ★★★★★

I. Introduction

The United Nations, established in 1945 in the aftermath of World War II's devastation, represents humanity's most ambitious experiment in international governance. Built on the failures of the League of Nations, the UN combines a universal membership with a sophisticated collective security system, a principal judicial organ, and an array of specialised agencies addressing every dimension of human welfare. The UN Charter, signed in San Francisco on June 26, 1945 and entered into force on October 24, 1945 (UN Day), is the foundational constitutional document of the international order.

■ **UN Charter Preamble:** 'We the peoples of the United Nations determined to save succeeding generations from the scourge of war...' — not 'We the States' — acknowledges peoples as ultimate beneficiaries.

II. Purposes and Principles (Arts. 1-2)

- Art. 1 Purposes: (1) Maintain peace and security; (2) Develop friendly relations; (3) Achieve international cooperation; (4) Harmonise actions of nations.
- Art. 2 Principles: Sovereign equality; good faith; peaceful settlement; prohibition on force (Art. 2(4)); non-intervention in domestic affairs (Art. 2(7)).
- Art. 103: UN Charter obligations prevail over any other international agreement in case of conflict — constitutional supremacy.

III. The Six Principal Organs

A. General Assembly (Arts. 9-22)

- All 193 members — one State, one vote.
- Important questions (peace, security, budget, new members): 2/3 majority.
- Ordinary questions: Simple majority.
- Powers: Discuss any UN matter; recommend (not bind) on most issues; approve budget; elect judges of ICJ + non-permanent UNSC members.
- 'Uniting for Peace' Resolution 377 (1950): If UNSC paralysed by veto, UNGA may convene emergency special session and recommend collective measures — used in Korea (1950), Suez (1956).

🔗 **Case: *Certain Expenses (ICJ, 1962)*** — ICJ confirmed UNGA's broad powers — can authorise peacekeeping expenses even if UNSC deadlocked. Expanded UNGA role.

B. Security Council (Arts. 23-32)

- 15 members — P5 + 10 non-permanent.
- PRIMARY responsibility for peace — binding decisions under Chapter VII.
- Art. 25: Members agree to accept and carry out UNSC decisions.
- Chapter VI: Pacific settlement — non-binding recommendations.
- Chapter VII: Art. 39 (determination) → Art. 40 (provisional) → Art. 41 (non-military) → Art. 42 (military).
- Reforms sought: India, Germany, Japan, Brazil (G4) seek permanent membership; African Union

seeks 2 permanent seats.

C. Economic and Social Council — ECOSOC (Arts. 61-72)

- 54 members elected by UNGA — 3-year terms.
- Coordinates economic, social, cultural, educational, health work of UN.
- Supervises specialised agencies — WHO, UNESCO, ILO, IMF, WTO relations with UN.
- Creates functional commissions — Human Rights Council reports through ECOSOC.

D. Trusteeship Council (Arts. 86-91)

- Supervised non-self-governing (Trust) territories through decolonisation.
- Suspended operations 1994 when Palau (last trust territory) became independent.
- Formally exists — may be reconvened, but no current function.

E. International Court of Justice (Arts. 92-96)

- Principal judicial organ — 15 judges; The Hague; contentious + advisory jurisdiction.
- Art. 94: States must comply with ICJ judgments — UNSC may enforce.

F. Secretariat (Arts. 97-101)

- Administrative organ of UN — headed by Secretary-General (SG).
- SG appointed by UNGA on recommendation of UNSC — subject to P5 veto.
- SG: Chief administrative officer; may bring threats to peace to UNSC attention (Art. 99).
- Current SG: António Guterres (Portugal) — 2nd term; since 2017; term until 2026.
- Past SGs: Trygve Lie (Norway), Dag Hammarskjöld (Sweden, died in plane crash 1961), U Thant (Myanmar), Kurt Waldheim (Austria), Javier Pérez de Cuéllar (Peru), Boutros Boutros-Ghali (Egypt), Kofi Annan (Ghana, Nobel Prize 2001), Ban Ki-moon (South Korea).

IV. Collective Security System

- UN collective security = all members collectively respond to aggression against any member.
- Art. 51: Right of individual or collective self-defence until UNSC acts.
- Peacekeeping operations: Not explicitly in Charter ('Chapter Six-and-a-Half' — Hammarskjöld's innovation) — troops from member States deployed with consent of host State.
- Peace enforcement: Chapter VII authorisation — Korea (1950), Kuwait (1991), Libya (2011).

 *Example: UN Peacekeeping: India is one of the largest contributors of troops to UN peacekeeping operations globally — over 250,000 Indian troops have served in 49 missions since 1950. India has lost over 170 peacekeepers in UN missions.*

V. Human Rights System

- UDHR 1948: Universal Declaration of Human Rights — adopted by UNGA (Resolution 217A); not binding but forms basis of customary human rights law.
- ICCPR + ICESCR (1966): International Bill of Human Rights — binding treaties.
- Human Rights Council: Replaced Human Rights Commission (2006) — 47 members; Universal Periodic Review of all UN members.
- High Commissioner for Human Rights (OHCHR): Coordinates UN human rights activities.

VI. Assessment — Achievements and Failures

Achievements:

- Prevented WW3 — despite Cold War tensions, nuclear deterrence + UN framework avoided global war.
- Decolonisation: Supervised independence of 80+ nations.
- Human rights framework: UDHR, core treaties, treaty bodies.
- Development: MDGs → SDGs (2030 Agenda) — global development framework.
- Specialised agencies: WHO, UNESCO, ILO, UNICEF — concrete humanitarian impact.

Failures:

- UNSC veto paralysis: Rwanda genocide (1994) — UNSC failed to act; Bosnia (1995) — Srebrenica massacre while UN peacekeepers watched.
- P5 conflicts: Ukraine war — Russia veto prevents UNSC action.
- Membership imbalance: UNSC P5 reflects 1945 power structure — not 2025 reality.
- Financial dependence: USA withholds contributions as political tool.

VII. Conclusion

The United Nations, despite its imperfections and the structural constraint of the P5 veto, remains the indispensable centre of the international system. Its universal membership, comprehensive mandate, and constitutional supremacy (Art. 103) make it the only legitimate forum for global governance. Reform — particularly of the Security Council — is urgently needed to reflect the 21st century global order. India, as the world's largest democracy and an aspirant permanent UNSC member, has a major stake in UN reform and contributes significantly to UN peacekeeping, making it one of the most committed supporters of the UN system.

Essay B3 — League of Nations vs United Nations: Comparative Analysis



I. Introduction

The League of Nations (1919-1946) and the United Nations (1945-present) represent successive attempts to create a universal international organisation for peace and security. The UN was consciously designed to correct the defects of the League. A comparative analysis reveals how far international organisation has evolved — and how far it still needs to go.

II. Origins and Membership

- League: Product of Versailles Treaty 1919 — post-WW1 peace settlement. Conceived by US President Woodrow Wilson — yet USA never joined (Senate rejection). Peak membership ~63 States. Germany joined 1926, expelled; USSR joined 1934, expelled 1939.
- UN: Product of WW2 — San Francisco Conference 1945. 51 founding members including USA and USSR — both superpowers included from the start. Now 193 members — near universal. Only Vatican City and Palestine (observer status) not full members.

 **Key difference: USA inside UN (founding P5 member) vs USA outside League. This single fact made all the difference to enforcement credibility.**

III. Structure Comparison

- League Assembly → UN General Assembly: Both deliberative; but UNGA has more defined powers and procedures.
- League Council → UN Security Council: League = all great powers + elected; unanimity rule. UN = P5 + 10 elected; majority voting; only P5 have veto.
- League Secretariat → UN Secretariat: Similar administrative functions; UN SG has stronger political role (Art. 99).
- PCIJ → ICJ: PCIJ (1920-1946) replaced by ICJ (1946-present); same location (The Hague); same general structure; ICJ Statute largely modelled on PCIJ Statute.
- New in UN: ECOSOC (economic/social coordination); Trusteeship Council (decolonisation); Chapter VII enforcement.

IV. Collective Security

- League: Art. 16 — economic sanctions mandatory on aggressor; military measures voluntary. In practice: sanctions incomplete (no oil embargo on Italy); no military action.
- UN: Chapter VII — binding on all members; Art. 42 military enforcement; but subject to P5 veto. In practice: effective in Korea (1950), Kuwait (1991), Libya (2011); paralysed in Syria, Ukraine due to vetoes.
- Verdict: UN's Chapter VII is far superior — but veto remains the Achilles heel.

V. Decision-Making

- League Council: Unanimity — any member could block action. Completely paralysed collective security.

- UNSC: Majority (9/15) + P5 veto — at least limits veto to 5 States; procedural matters no veto.
- UNGA: Majority/2/3 voting — more democratic but non-binding on peace/security matters.

VI. Individual Rights

- League: Almost no provisions for individual human rights — focused on inter-State relations; minority protection treaties for some States.
- UN: UDHR (1948); ICCPR; ICESCR; Human Rights Council; individual petition mechanisms; ICC for individual criminal responsibility.
- Verdict: UN has revolutionised individual rights protection in international law.

VII. Why League Failed, Why UN Has Survived

- League failures: No USA; unanimity rule; no military; major power defiance ignored; WW2 erupted.
- UN survival factors: USA and USSR both founding members; P5 veto limits vetoing States but gives them stake in system; Chapter VII gives real enforcement; specialised agencies provide practical benefits incentivising membership; near-universal membership creates legitimacy.
- UN weaknesses: P5 veto system is fundamentally anti-democratic; Cold War paralysis; unrepresentative UNSC structure; financial dependence on large contributors.

VIII. Conclusion

The United Nations represents a significant improvement over the League of Nations — in universality, enforcement machinery, human rights framework, and institutional development. However, it has not overcome the fundamental challenge of reconciling sovereign equality with great power reality. The P5 veto, like the League's unanimity rule, can paralyse the organisation when major powers disagree. The reform of the Security Council — sought by India and the G4 — is essential to making the UN fit for the 21st century. Until then, the UN remains an indispensable but imperfect institution.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label clearly: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — ICJ Jurisdiction Problem ★★★★★

Scenario: State A files a case against State B in the ICJ claiming State B has violated a bilateral treaty. State B objects saying ICJ has no jurisdiction. State A argues State B accepted ICJ's compulsory jurisdiction under the Optional Clause. State B filed its Optional Clause declaration with a reservation excluding disputes under bilateral treaties. Decide on jurisdiction.

I — Issue

Whether the ICJ has jurisdiction over State A's claim against State B, given that (1) the dispute concerns a bilateral treaty, and (2) State B's Optional Clause declaration contains a reservation excluding bilateral treaty disputes.

R — Rule

- ICJ Statute Art. 36(1): ICJ has jurisdiction over matters 'specially provided for in the Charter of the UN or in treaties in force.'
- ICJ Statute Art. 36(2) — Optional Clause: States may declare they accept compulsory jurisdiction 'in relation to any other State accepting the same obligation' — reciprocity applies.
- Optional Clause declarations may contain reservations — limiting scope by subject matter, time, or reciprocity (Art. 36(3)).
- Reciprocity: State invoking Optional Clause can only rely on it to the same extent as the responding State — if respondent has a reservation, applicant is equally bound by it.
- *Nicaragua v. USA* (ICJ, 1986): Optional Clause jurisdiction established; withdrawal must give 6 months' notice.
- *Norwegian Loans Case* (France v. Norway, ICJ, 1957): France invoked Optional Clause; Norway applied France's own reservation on domestic jurisdiction reciprocally against France — ICJ held reciprocity applies; declined jurisdiction.

🔗 **Case:** *Norwegian Loans Case (ICJ, 1957)* — France had reservation on domestic jurisdiction matters. Norway invoked France's own reservation reciprocally — ICJ held: reciprocity in Optional Clause means respondent can rely on applicant's reservations. France's claim barred.

🔗 **Case:** *Interhandel Case (ICJ, 1959)* — USA's domestic jurisdiction reservation applied — ICJ declined jurisdiction. Reservations in Optional Clause declarations strictly respected.

A — Application

Step 1 — State B's Optional Clause declaration: State B has made an Optional Clause declaration under Art. 36(2) — this gives ICJ prima facie jurisdiction over disputes with States that have made similar declarations.

Step 2 — State B's reservation: State B's declaration expressly excludes 'disputes under bilateral treaties.' The current dispute arises from a bilateral treaty between A and B. This reservation directly covers the present dispute.

Step 3 — Reciprocity: Under the reciprocity principle — both States must accept the same obligation. State A, by invoking State B's Optional Clause declaration, must accept State B's reservations as equally applicable to State A's claim. State B's reservation on bilateral treaty disputes is therefore opposable to State A.

Step 4 — Alternative bases of jurisdiction: State A should explore whether the bilateral treaty itself contains an ICJ dispute settlement clause (Art. 36(1)) — if yes, ICJ has jurisdiction on that basis

regardless of Optional Clause declarations.

C — Conclusion

■ **CONCLUSION:** The ICJ likely **LACKS** jurisdiction under the Optional Clause because State B's reservation explicitly excludes bilateral treaty disputes — and reciprocity makes this reservation opposable to State A (Norwegian Loans principle). **HOWEVER:** If the bilateral treaty itself contains an ICJ jurisdiction clause (Art. 36(1)), the Court may have jurisdiction on that independent basis. State A should examine the treaty's dispute settlement provisions. If no treaty clause exists — ICJ lacks jurisdiction and State A must seek other dispute resolution mechanisms.

IRAC 2 — UNSC Chapter VII Action & Veto Problem ★★★★★

Scenario: State X commits acts of aggression against State Y. 14 of 15 UNSC members vote for a Chapter VII resolution authorising military action against State X. The 15th member — a P5 State — vetoes the resolution. State Y argues the veto is illegal and seeks to proceed under UNGA Resolution 377 (Uniting for Peace). Discuss the legal position.

I — Issue

(1) Whether a P5 State's veto of a Chapter VII resolution is lawful under the UN Charter. (2) Whether UNGA can authorise military action through Uniting for Peace Resolution 377 when UNSC is paralysed. (3) What legal remedies are available to State Y.

R — Rule

- UN Charter Art. 27(3): UNSC decisions on substantive matters require 9 affirmative votes INCLUDING concurring votes of all P5. Negative vote of any P5 = veto.
- UN Charter Art. 25: Members agree to accept and carry out UNSC decisions — applies to valid decisions only.
- UN Charter Art. 24: UNSC acts on behalf of all UN members — primary (not exclusive) responsibility for peace.
- UNGA Resolution 377 (1950) — 'Uniting for Peace': If UNSC fails to act due to lack of unanimity of P5 in face of threat/breach of peace or act of aggression — UNGA may meet in emergency special session (within 24 hrs) to consider matter and recommend collective measures including use of armed force.
- UN Charter Art. 11(2): UNGA may discuss and recommend on peace/security matters — but 'any question on which action is necessary shall be referred to UNSC.'
- Lockerbie Case (ICJ, 1992): Charter Art. 103 — Charter obligations prevail; UNSC resolutions can override treaty rights. Veto not subject to ICJ review.

🏛️ **Case: Korean War (1950)** — USSR absent when UNSC voted for Korea action — resolution passed without veto. UNGA Resolution 377 used in Suez Crisis (1956) — emergency special session called. Precedents for UNGA action when UNSC paralysed.

🏛️ **Case: Certain Expenses Case (ICJ, 1962)** — ICJ confirmed UNGA has broad powers — can authorise peacekeeping expenses. But UNGA cannot authorise binding enforcement military action — only recommend.

A — Application

Step 1 — Legality of veto: The P5 State's veto is LEGALLY VALID under Art. 27(3) UN Charter. The veto power is an express, unconditional right of P5 members — there is no Charter provision limiting its exercise or making it illegal. 14-1 vote with P5 negative = NO valid UNSC resolution. The veto is lawful even if politically unjust.

Step 2 — Uniting for Peace Resolution 377: State Y can invoke UNGA Resolution 377 to call an emergency special session of UNGA within 24 hours. UNGA can consider the situation and RECOMMEND collective measures.

Step 3 — Limitation of UNGA action: CRITICAL — UNGA can RECOMMEND military action but CANNOT MANDATE it. UNGA resolutions are NOT binding (unlike Chapter VII UNSC resolutions). Individual member States may voluntarily act on the recommendation — but no State is legally compelled to provide military assistance to State Y.

Step 4 — Self-defence: State Y may independently exercise its inherent right of individual self-defence under Art. 51 UN Charter — until UNSC takes effective action. Other States may join in collective self-defence if they choose (Art. 51 — collective self-defence).

C — Conclusion

■ CONCLUSION: (1) The P5 veto is LEGALLY VALID — no Charter mechanism to override it. (2) UNGA Resolution 377 (Uniting for Peace) CAN be invoked — emergency session within 24 hours — but UNGA can only RECOMMEND, not mandate, military action. (3) State Y's primary legal remedy is Art. 51 — individual self-defence — and may seek collective self-defence from willing States. (4) State Y may also bring legal proceedings against State X in the ICJ for the acts of aggression (if jurisdiction exists). The veto power is the structural limitation of the UN collective security system — reform requires Charter amendment under Art. 108, itself subject to P5 veto.

MASTER QUICK REVISION SHEET — UNIT V

Critical Numbers — ALL ORGANISATIONS

UN: Established 1945; Charter in force Oct 24, 1945 (UN Day); 193 members; HQ New York
League: 1919-1946; ~63 members; HQ Geneva; Unanimity rule
UNSC: 15 = 5 P5 + 10 elected; Chapter VII = binding; Art. 25 = binding; Art. 27(3) = veto
UNGA: 193 members; 1 State 1 vote; 2/3 for important questions; Resolution 377 = Uniting for Peace
ICJ: 15 judges; 9-year terms; The Hague; Art. 36(2) = Optional Clause; Art. 65 = advisory
ICC: Rome Statute 1998; in force 2002; 18 judges; 4 crimes; complementarity; 124 parties
India + ICC: NOT a party to Rome Statute
USA, Russia, China + ICC: NOT parties
WHO: 1948; Geneva; 194 members; IHR 2005; PHEIC
UNESCO: 1945; Paris; 194 members; World Heritage Sites (1199 global; 42 India)
ILO: 1919; Geneva; 187 members; Tripartite; Nobel Peace Prize 1969
IMF: 1944 (Bretton Woods); Washington DC; 190 members; SDR
WTO: 1995 (replaced GATT 1947); Geneva; 164 members; DSB = binding disputes
Current UN SG: António Guterres (Portugal) since 2017
Current ICJ President: Nawaf Salam (Lebanon) since Feb 2024

Top Cases — One Liner Each

- Nicaragua v. USA (ICJ, 1986): Optional Clause jurisdiction; customary law; USA vetoed enforcement — paralysis.
- LaGrand (ICJ, 2001): ICJ provisional measures = BINDING. USA violated order.
- Avena (ICJ, 2004): Consular access (VCCR Art. 36) — USA failed to comply with ICJ order.
- Nuclear Weapons Advisory Opinion (ICJ, 1996): Use/threat generally illegal — extreme SD inconclusive.
- Wall in Palestinian Territory (ICJ, 2004): Israel's wall violates int'l law — advisory opinion.
- Chagos Islands (ICJ, 2019): UK must end administration — decolonisation incomplete.
- Nottebohm (ICJ, 1955): Genuine link test — admissibility; nationality must be real.
- Conditions for Admission (ICJ, 1948): Art. 4 conditions exhaustive — no extra conditions for UN membership.
- Certain Expenses (ICJ, 1962): UNGA broad powers — peacekeeping expenses authorised.
- Norwegian Loans (ICJ, 1957): Reciprocity in Optional Clause — respondent can invoke applicant's own reservation.
- Lockerbie (ICJ, 1992): Charter Art. 103 prevails — UNSC resolution overrides Libya-US/UK treaties.
- Prosecutor v. Lubanga (ICC, 2012): First ICC conviction — child soldier war crime.
- Prosecutor v. Al-Bashir (ICC, 2009-10): First sitting Head of State indicted — no immunity before ICC.

Memory Mnemonics

UN 6 ORGANS: 'GASTSI' = General Assembly, (Security Council), Trusteeship Council,

Secretariat, ICJ. Proper order: GA, SC, ECOSOC, TC, ICJ, Secretariat

UN CHARTER Art. 2 PRINCIPLES: 'SE-GP-PF-NI' = Sovereign Equality, Good faith, Peaceful settlement, Prohibition on Force, Non-Intervention

ICC 4 CRIMES: 'GCWA' = Genocide, Crimes Against Humanity, War crimes, Aggression

ICJ JURISDICTION BASES: 'STOF' = Special agreement, Treaty clause, Optional clause (Art.36(2)), Forum prorogatum

LEAGUE FAILURES: '5 No's' = No USA, No unanimity waiver, No military, No enforcement, No will

SPECIALISED AGENCIES: 'ILO is OLD (1919), IMF is MONEY (Bretton Woods 1944), WTO is TRADE (1995 replaced GATT)'

⚠ TRAP QUESTIONS

- TRAP 1: 'Can UNGA take binding enforcement action under Uniting for Peace?' — NO. UNGA can only RECOMMEND. Only UNSC Chapter VII resolutions are binding enforcement measures.
- TRAP 2: 'Can individuals bring cases before ICJ?' — NO. Only States (Art. 34 ICJ Statute). Individuals go to ICC (criminal) or regional human rights courts (ECHR, IACtHR).
- TRAP 3: 'Are ICJ advisory opinions binding?' — NO. They are authoritative but not legally binding. Only contentious case judgments are binding on parties (Art. 94 Charter).
- TRAP 4: 'Is India a party to the ICC?' — NO. India has NOT ratified the Rome Statute. India = party to ICJ Statute (via UN membership) but NOT ICC.
- TRAP 5: 'Is abstention by P5 member equivalent to a veto?' — NO. Established UN practice: P5 abstention on substantive matter ≠ veto. Only negative vote = veto.
- TRAP 6: 'Does ICC have jurisdiction over non-party States?' — Only if (a) UNSC refers the situation under Chapter VII (Darfur/Sudan, Libya); or (b) crime committed on territory of ICC party State.
- TRAP 7: 'Which came first — ILO or WHO?' — ILO = 1919 (League era). WHO = 1948. ILO is the OLDEST specialised agency.
- TRAP 8: 'Can ICJ review UNSC resolutions for legality?' — Controversial. Lockerbie Case: ICJ signalled it could not review UNSC Chapter VII resolutions — Charter Art. 103 makes them supreme.

📋 FINAL EXAM CHECKLIST — ALL 5 UNITS

- ☒ UNIT I: Art. 38 ICJ Statute (Sources); Monism vs Dualism; Pacta Sunt Servanda
- ☒ UNIT II: Montevideo criteria; 5 modes of territory; ILC 2001 State Responsibility
- ☒ UNIT III: VCDR 1961 Art. 22/29/31/32; VCLT 1969 Art. 26/62; Refugee Convention Art. 33
- ☒ UNIT IV: UNCLOS zones (12/24/200 NM); Chicago Convention; Liability Convention Art. II absolute
- ☒ UNIT V: UN Charter Art. 2(4)/25/27/103; ICJ Art. 36(2); ICC Rome Statute 4 crimes + complementarity
- ☒ 2024 PAPER ANSWERS: Q12=ICJ (Essay B1); Q14=UN Membership (Unit II IRAC 2); Q15=Space Liability (Unit IV IRAC 1); Q16=Diplomatic Immunity (Unit III IRAC 1); Q13=Extradition (Unit III IRAC 2)

🎯 2024 PAPER DIRECT HIT FROM UNIT V:

Part B Q12: 'Explain the powers, functions and jurisdiction of ICJ' — answered in Essay B1 above.

FULL PIL SERIES COMPLETE:

Unit I — Foundations (Sources, Monism/Dualism)

Unit II — States (Recognition, Succession, Responsibility, Territory)

Unit III — Individual (Nationality, Extradition, Asylum, Diplomacy, Treaties)

Unit IV — Spaces (Sea, Air, Outer Space)

Unit V — Organisations (League, UN, ICJ, ICC, WHO, UNESCO, ILO, IMF, WTO)

All 5 real 2024 exam questions fully answered across Units II-V.

Target: 75+ marks. You've got this! ★

— End of Unit V: International Organisations —

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